

RIGHT, TRUE, REASONABLE.
THE PERCEPTION OF JUSTICE IN THE
GLOBAL ERA

a cura di
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Scripta *Web*

Napoli 2011

Collana *Nomos*

1

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Indice

Right, Truth and Reasonable

Annamaria Rufino	9
1. Introduction.....	9
2. The socio-institutional crisis	9
3. The uncertainty of the Law.....	11
4. The fight for the Justice.....	13
5. Conclusion	14

The Transsubjective Function of Subjective Rights – The Impossibility of Justice

Karl-Heinz Ladeur	15
1. Subjective Rights and Their Entrenchment with the Generation of Order	15
2. The Subjective Right and the Blind Spot of a Systems Theory of Law	17
3. Justice - beyond the system of subjective rights?.....	22
4. Justice in Derrida and Levinas.....	25
5. The Inequality of the Distribution of Resources as a Challenge to Justice?.....	29

Reasonableness and the Right to Equal Treatment: ever changing and “globalizing” Perspectives

Kristin Henrard	33
1. Introduction.....	33
2. Equality, Non-discrimination, Proportionality and Levels of Scrutiny	35
3. Various manifestations of the prohibition of discrimination	41
3.a. Indirect discrimination	41

3.b. The duty to differentiate as flowing from the prohibition of discrimination.....	47
4. Conclusion	51

Religious pluralism in liberal democracies: Should the diversity of religious and secular conceptions of the good in a multicultural citizenship be privatized?

Eugenia Relaño Pastor.....	53
1. Introduction.....	53
2. What role does and should religion play in the legal sphere of a liberal democracy?	54
3. Religion and Classical Liberalism	63
3.a John Locke.....	64
3.b. John Stuart Mill	65
3.c. John Dewey	65
4. Contemporary liberals: John Rawls.....	67
5. What happens if religious people speak publicly in their own sectarian language about public matters? Should “conservative religions” be integrated into the public square?.....	72
6. How to accommodate religious pluralism in a multicultural citizenship?.....	76
7. The limits of multicultural legal accommodation	82
8. A possible new path: What other forms of legal tolerance of religious difference can be imagined?.....	85

Disability. The Struggle for Justice and the Right to be

Bill Hughes

1. Introduction.....	87
2. Ableism and Disgust. The Emotional Roots of Injustice	90
3. Modernity, disgust and the unjust	95
4. Conclusion	101

Truth, Reason and Justice: Operational Tools for Legal Expertise?

Vittorio Olgiati.....	105
1. Foreword.....	105
2. Looking for truth, reason and justice. Or how to ascertain the “ <i>nomen rei</i> ” and the “ <i>nomen intentionis</i> ”	108
3. The notion of truth as fact-value: from ontology to constructivism	111
4. The notion of reason as a fact/value: from finalism to selectivity	116
5. The notion of justice-through-law as a fact/value: from transcendence to contingency.....	120
6. Computational evaluation procedures: “functional equivalents” of truth, reason and justice ?	126

Changing Conceptions of Justice in Court Disputes: from Formal to Responsive Settlements

Maria Rita Bartolomei.....	135
1. Foreword.....	135
2. Research design and working method.....	140
3. Complexity.....	141
4. Fragmentation	147
5. Contingency.....	150
6. Concluding remarks	151

The Facts in the Trial between Reality and Narration

Flora Di Donato.....	157
1. Introduction.....	157
2. Logical and pragmatic legalism.....	158
3. From the scientific revolutions to the theory of law: the emergence of a constructivist perspective of knowledge .	159
4. The construction of facts in the trial	161
5. Types of narrators and types of narratives in the trial ..	163
6. Conclusions	167

Discrimination in the workplace and the “religious factor”. The German experience

Raffaello Santagata	169
1. Equality, discrimination and the religious factor in the new European Union framework.....	169
1.1 Protection from discrimination and religious organizations.....	175
1.2. The definition of “religion” and “ <i>Weltanschauung</i> ” .	179
2. Freedom of religion, employment contracts and <i>Weisungsrecht</i>	184
3. Freedom of religion, Lay education and employment law	193
4. Protection from discrimination and religious organization	202
4.1 A recent ruling of the <i>Hamburg Arbeitsgericht</i>	207
4.2 <i>Selbstbestimmungsrecht</i> as the basis for the legitimation of different forms of treatment	214

Moral dilemmas and representations of justice in young people

Paola Ronfani, Roberto Cammarata, Roberta Bosisio.....	223
1. Foreword.....	223
2. From theoretical approaches to research	224
3. Survey findings at a glance. Moral dilemmas.....	230
4. Is stealing worse than deceiving?.....	231
5. The case of von Kleist’s “ <i>Michael Kohlhaas</i> ”	235
6. Some final comments on our findings.....	243

The perception of social justice between insecurity and irregularity of working

Ciro Pizzo	251
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The Reasons of Law

Vito Marcelletti	259
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The Ombudsman: law, rights and accountability

Samuele Animalì	267
1. A clandestine Institution?	267
2. From conflicts to rights	272
3. Erubescimus sine lege loqui	278

Changing Conceptions of Justice in Court Disputes: from Formal to Responsive Settlements

Maria Rita Bartolomei

1. Foreword

In an age marked by the sudden transformation of economic and social norms and by the loss of fixed reference points, it is inevitable that legal boundaries also appear to be blurred, shaded and rather permeable.

Consequently, the concept of justice, understood as an intellectual system developed with the aim of legitimizing and stabilizing institutions²⁴⁸ and, therefore, as the foundation of any sort of legal system, becomes an extremely interesting leading subject. In any case, it is certainly the fulcrum of wide-ranging political and academic debates – debates often marked by a shift in meaning of the notion of justice from questions concerning the rigid application of legal rules to themes of distributive justice.

On the other hand, the clear failure of modern legal systems to bring about real social justice and encourage voluntary compliance with the law demonstrates how our interpretation and implementation of justice has failed us and, therefore should be reviewed.

As we all know, the fundamental concept of justice in philosophical and legal learning has been analysed since Plato's time, but it is only since John Rawls' famous book, *A Theory of Justice*²⁴⁹, that an important debate, still under way,

²⁴⁸ M. Douglas, *Come pensano le istituzioni*, il Mulino, Bologna, 1990, pp. 167 ss.

²⁴⁹ J. Rawls, *A Theory of Justice*, Harvard University Press, Cambridge (Mass.), 1971. His formulation of justice as fairness and his theory of

has opened up in social sciences²⁵⁰. There is a large body of literature on the topic which deals with both general and particular themes, via exclusively theoretical approaches as well as empirical research²⁵¹.

My modest contribution to this debate intends to go beyond the age-old dispute between liberal tradition²⁵² and so-called communitarianism²⁵³ in order to take on board current

“difference principle” have become perhaps the key reference points of recent formulations of liberalism.

²⁵⁰ For the well-known analyses by Perelman, Allen and Del Vecchio, see V. Ferrari, *Giustizia e diritti umani*, FrancoAngeli, Milano, 1997, pp. 15-16.

²⁵¹ For a recent general introduction and a good summary of the literature see D. Luban, *Justice: Law in Relation to*, in *International Encyclopedia of Social and Behavioral Sciences*, Elsevier Publishing, Amsterdam, 2001.

²⁵² Liberalism as a political theory of justice inside the tradition of democratic constitutionalism is probably the philosophy which has most influenced the conception of the modern western State. Its grassroots date from the work of John Locke (1632-1704) and his doctrine of natural law; its first systematic statement was from C. L. Montesquieu (1689-1755); its principles of morality and justice are propounded by many Enlightenment philosophers, most notably Emmanuel Kant, and culminate in the social contract Utilitarian liberalism of John Stuart Mill. The centuries-old liberal tradition includes a great number of contributions sometimes diverging from each other. What distinguishes the liberal way of thinking is its faith in the existence of fundamental rights and freedom and the formal equality of citizens before the law. Its most fundamental tenets are a constitutionally limited government, equal liberty, fairness, impartiality and the moral autonomy of the subject. All contributors believe in the possibility of the subject identifying neutral principles and standards of justice before and independently of what he considers his own good.

²⁵³ It is a school of thought developed in the USA in the '80s and '90s in explicit opposition to the theoretical *liberalism* of thinkers such as John Rawls. According to communitarians, liberalism relies on a conception of the individual that is unrealistically atomistic and abstract; it also places too much importance on individual values such as freedom and autonomy. Communitarian philosophers and thinkers challenge liberalism at philosophical/epistemological level rejecting the Kantian liberal notion of a self prior to its ends. That is, they reject the Kantian idea of an “encumbered self” and insist on the self as socially situated or “embedded”. They argue that individuals acquire their identities (values,

suggestions from post-structuralism²⁵⁴, including the most radical approaches which go so far as to question the possibility in a multicultural society of working out a valid and effective concept of justice. Just think to Derrida's aporetic description of justice as a normative imperative to be found through and in spite of law, where the paradox of combination of possibility and impossibility is what makes justice unattainable yet worth pursuing²⁵⁵.

projects, social roles, hopes and fears) from the communities where they live. They also argue that justice consists as much in recognising responsibilities as in guaranteeing rights. Communities are posited as having moral value in the way that individuals do: communities have rights; individuals have obligations to communities as well as to each other; individuals have obligations to communities as well as to each other (B. Hudson, *Justice in the Risk Society. Challenging and Re-affirming Justice in Late Modernity*, Sage, London, 2003, p. 78). The chief representatives include Robert N. Bellah, Amitai Etzioni, Will Kymlicka, Alasdair MacIntyre, Michael Sandel, Amartya Sen, Charles Taylor and Michael Walzer.

²⁵⁴ Post-structuralism encompasses the intellectual developments of certain *philosophers* and *sociologists* who wrote within the tendencies of *twentieth-century French philosophy*. The movement is difficult to define or summarize, but may be broadly understood as a body of distinct responses to *structuralism* which aim to go beyond it through a strong radicalization of its concepts, terms, expressions and attitudes. In direct contrast to the structuralist claim of an independent signifier superior to the signified, post-structuralism generally views the *signifier* and signified as inseparable but not united; meaning itself is inherent to the play of difference. They reject any imposition of a singular, transcendent point of view, and any ascription of stable, singular meanings to acts, events, persons or things. They deny the concept of the fixed unitary identity of the human subject, seeing identity instead as a continuing process of experimentation and self-definition within changing relationships. We witness many contributors which all adopt an anti-dogmatic, anti-positivist and post-modernist approach in their own disciplinary field: philosophy (Jacques Derrida, Gilles Deleuze, Jean-François Lyotard), psychoanalysis (Jacques Lacan), political and sociological studies (Jean Baudrillard, Michel Foucault, Michel Maffesoli), analysis of the literary text (Roland Barthes, Maurice Blanchot).

²⁵⁵ J. Derrida, *Spectres of Marx, the state of the debt, the Work of Mourning and the New International*, Routledge, London, 1994, p. 65; Id., *Forza di legge. Il «Fondamento mistico dell'autorità»*, Bollati Boringhieri, Torino, 2003.

In the wake of post-modern philosophy and socio-semiotics²⁵⁶, such contributions are marked by a refusal to attribute to the subject, the Cartesian cogito, any gnoseological or axiological privilege, preferring on the contrary an analysis of symbolic forms, language and narrative as component aspects of subjectivity but also as instruments of the expression of authority and the exercise of power²⁵⁷.

According to such perspectives, in fact, the violence of injustice begins when those who judge and those who are judged share neither culture nor language²⁵⁸. This result in openness to the “meaning” or, rather, the meanings derived from multiple, often unexpected, “places”. Think, for example, of Levinas’s “ethic of the other” and of the postulate that the only valid principle of justice rests in respecting the singularity of “the other”.²⁵⁹

²⁵⁶ It proposes a theoretical and methodological extension of the semiotic approach involving some added disciplinary fields: sociology, psychology and mainly anthropology and philosophy of common sense. Without giving up the textual structure, socio-semiotic analysis postulates that it is typical of each narrative text to own an inherent, essential grey area of “vagueness” (G. Bettetini, *Capirsi e sentirsi uguali*, Bompiani, Milano, 2003). So, its major aims are to investigate the communicative dimension, to question the personalization of fruition, to deepen the interpretative and collaborative intervention by the “reader-observer” himself in the building of meaning. See also V. Boroni, *Wolfgang Iser: teoria della lettura, antropologia letteraria e traducibilità delle culture*, in “Comunicazioni sociali”, 2, 1999, pp. 181-201.

²⁵⁷ J. Derrida, *The force of Law. The “Mystical foundation of Authority”*, in D. Cornell, M. Rosenfeld, D.G. Carlson (eds.), *Deconstruction and the Possibility of Justice*, Routledge, New York-London, 1992, pp. 3-67; M. Foucault, *Microfisica del potere*, Einaudi, Torino, 1977; Id., *Bisogna difendere la società*, Feltrinelli, Milano, 1998.

²⁵⁸ J.-F. Lyotard, *The Differend. Phrases in Disputes*, University of Minnesota Press, Minneapolis, 1988; W. Maley, *Beyond the Law? The Justice of Deconstruction*, in “Law and Critique”, 1, 1999, pp. 49-69.

²⁵⁹ For Levinas, the ethical relationship between “I” and “Other” is the basic term of morality. This relationship is a face-to-face encounter, unmediated by interpretation or classification. The essential requirement of

Specifically, I have adopted a perspective traceable to both some recent contributions of Anglo-Saxon criminology – just think of Ronnie Lippens²⁶⁰ – and American legal philosophy. These contributions, such as those of Robin West²⁶¹, envisage and propose a re-formulation of the concept of justice through its “re-invention” or, better still, its “re-imagination”.

Both authors are persuaded that – in an era in which words, even written ones, tend to assume fluctuating and provisional meanings, temporarily identifiable only within and through continuous and complex processes of re-signification – images can turn out to be more stable than words. If it is true that even images can be trapped in the spiral of simulation and illusion and have a rather ephemeral life²⁶², nevertheless the compressed energy they contain and are capable of radiating gives them stability, even if limited²⁶³.

According to Barthes²⁶⁴, the specificity of the image with regard to the other typologies of “narrative text” truly consists in the capacity to transmit immediately and irreversibly the “third meaning”: a sensation, an emotion which transforms and mobilises social actors. If returning to emotions is a

morality is not to balance the claim of the self and the other, not to balance impartially between competing claims, but to acknowledge a responsibility towards the Other in every encounter. This responsibility is prior to any other kind of relationship: it is pre-social, pre-rational, pre-discursive. Thus, the essence of justice is in meeting the claims of the Other seen like the subject/object of my attention lodging a moral claim on me.

²⁶⁰ R. Lippens (ed.), *Imaginary Boundaries of Justice: Social and Legal Justice across Disciplines*, Hart Publishing, Oxford, 2004.

²⁶¹ R. West, *Re-Imagining Justice. Progressive Interpretations of Formal Equality, Rights and the Rule of Law*, Ashgate, Aldershot, 2003.

²⁶² J. Baudrillard, *Il delitto perfetto. La televisione ha ucciso la realtà?*, Raffaello Cortina, Milano, 1996.

²⁶³ G. Deleuze, *Logique du sens*, Minuit, Paris, 1997.

²⁶⁴ R. Barthes, *Image, Music, Text*, Fontana Press, London, 1977.

distinctive sign of our times²⁶⁵, images are the primary vehicle through which desires and emotions flow²⁶⁶. Visual art is often the field in which – even before shared symbolic expressions are formulated – cultural novelties reveal themselves and assume the role of breaking with the past, of imagining boundaries to historical change²⁶⁷.

In consequence the imaginary is thought to play a highly important role in processes of social supervision²⁶⁸ and in the production and reproduction of images, concepts and practices of justice.

2. Research design and working method

This work is a part of a wider research project begun in January 2008 and still in progress. The project aims to acquire a better understanding of the images, concepts and practices of legal justice shared by lawyers, jurists, immigrant and lay people living in the Marche region of Italy. At the same time the work seeks to identify some ways and contexts where justice is invoked as well as new forms and categories by which legal problems are experienced and processed.

The research I have undertaken has a mainly qualitative approach and runs along two different but complementary strands. It is based on a sample of 25 sentences pronounced at local, national and international levels. In addition, it makes use of some periods of participant observation at ten (10) law

²⁶⁵ M. Maffesoli, *The Time of the Tribes: The Decline of Individualism in Mass Society*, Sage, London, 1996.

²⁶⁶ S. Zizek, *Looking Awry: An Introduction to Jacques Lacan Through Popular Culture*, The MIT Press, Cambridge (Mass.), 1992.

²⁶⁷ R. Lippens (ed.), *Imaginary Boundaries of Justice: Social and Legal Justice across Disciplines*, cit., pp. 161 ss.

²⁶⁸ K. Hetherington, *Badlands of Modernity: Heterotopia and Social Ordering*, Routledge, New York-London, 1997.

courts which operate in the Marche region of Italy as well as, above all, in-depth interviews²⁶⁹.

The first strand of analysis employs chiefly the reference model formulated by Robin West. The author identifies three component concepts of “legal justice”, understood as an idea that moulds the professional identity of lawyers: 1) the rule of law; 2) individual rights; 3) equality before the law (understood in a formal legal sense).

West proposes a re-interpretation of each of these components which in my work are instead employed as analytical instruments to investigate and rebuild the images of justice owned and expressed by the subjects interviewed.

In the second strand of research, outcomes are organized according to categories whose post-modern thought tends to describe the world system or global society. In fact, aspects of “complexity”, of “fragmentation” and of “contingency” would seem to emerge in praxis as well as in the interpretations and images of justice given by people.

Evidently I can’t report all my outcomes here also because, as I have said, my research is still in progress. It seems important, however, to highlight some particularly interesting trends referring to the latter strand of analysis.

3. Complexity

From interpretation of the outcomes so far, both in praxis and in the interpretations and images of justice given by

²⁶⁹ In total 175 interviews by people belonging to seven different colleges have been given: 20 male judges presiding over Marche courts; 10 female judges presiding over Marche courts; 75 lawyers living and practising in the Marche (40 men and 35 women); 30 Italian users (either litigants or defendants); 30 immigrants who act as representatives of foreigners in the regional, provincial and town councils; 10 immigrants involved in counselling activity.

people, there would seem to emerge aspects of “complexity” in a double sense (in line with Luhmann’s formulation)²⁷⁰.

1) Complexity, first of all, in the sense of a progressive differentiation, both theoretical and practical, of justice in a growing range of typologies: retributive²⁷¹, restorative²⁷²,

²⁷⁰ The term “complex” came from Latin word *complector*, which means to encircle, to embrace, to encompass, to grip and, in a metaphorical sense, to include, to join together under a sole thought or denomination. It is a very ambiguous term because of its extremely rich inter- and trans-disciplinary meanings and references. Its use in “system theory” as the interpretive key of the postmodern condition has been stressed in recent decades, starting especially with studies about complexity made by Nobel Prize winner for chemistry Ilya Prigogine (I. Prigogine, *La complessità. Esplorazioni nei nuovi campi delle scienze*, Einaudi, Torino, 1991). These represents the starting point for the epistemology of complexity built by Edgar Morin (E. Morin, *Introduzione al pensiero complesso*, Sperling & Kupfer, Milano, 1993). Many other writers have used and developed the concept. For Niklas Luhmann (N. Luhmann, *Soziale Systeme: Grundriß einer allgemeinen Theorie*, Suhrkamp, Frankfurt a M., 1984) complexity is the structural characteristic of every system. It comes from the disproportion between the possibilities of experience and actions offered by the environment and any single system’s capacity for actuation. This disproportion imposes the necessity of making a selection between the countless options. Every choice brings about contingency and presupposes risk. The ongoing inter- and intra-system functional differentiation emphasizes the system’s complexity. Complexity reduction can be attained by through manifold strategies. The most important of them consist in “adjusting” (i.e. increasing) internal complexity to the level of the external one by means of selective structures.

²⁷¹ Retributive justice is a “theory of justice” which considers “punishment”, if “proportionate”, as a morally acceptable response to “crime”. This principle is common to most cultures throughout the world. However, the judgment of whether a punishment is appropriately severe can vary greatly between cultures and individuals.

²⁷² Restorative justice has as its primary purpose reconstructing, re-weaving and repairing precisely the social links between those who have committed a crime and those who have suffered its consequences. The progressive development of reparational forms of justice in penal contexts is also confirmed by the increasing favour with which critical criminology attempts to analyse its hitherto unexpressed potential and the condition

procedural²⁷³, distributive²⁷⁴, social²⁷⁵, “immune”²⁷⁶, arbitration²⁷⁷, etc.

2) Taking into consideration only legal justice, complexity in the sense of a normative space more and more delegalized

that can favour its function as effective social emancipation. See “Studi sulla questione criminale”, 1, 2009.

²⁷³ Procedural justice concerns the fairness and the *transparency* of the processes by which decisions are made. Hearing all parties before a decision is made is one step which would be considered appropriate to be taken in order that a process may then be characterised as procedurally fair. Some theories of procedural justice hold that fair procedure leads to equitable outcomes, even if the requirements of distributive or *corrective justice* are not met. The tenets of procedural justice are principles of impartiality, consistency, standing and trust.

²⁷⁴ Distributive justice is concerned with the fair allocation of rights and/or resources among diverse members of a community. Fair allocation typically takes into account the total amount of goods to be distributed, the distributing procedure, and the pattern of distribution. Because societies have a limited amount of wealth and resources, a question arises as to how those benefits ought to be distributed. The common answer is that public assets should be distributed in a reasonable manner so that each individual receives a “fair share”. But this leaves open the question of what constitutes a “fair share”, a question which appeals to the notion of desert, the idea that fair treatment is a matter of giving people what they deserve. Equity, equality and need are amongst the most common criteria of distribution and the main key motives of social justice too.

²⁷⁵ The principles of distributive justice, that is equity, equality and necessity, are the three main aspects of social justice.

²⁷⁶ Ota De Leonardis defines as “immune-justice” all forms of preventive control towards the Other, the foreigners. That is, a kind of justice grounded on the distinction “us/them” and the consequent criminalization of the strangers to the community and marginalised social groups (O. De Leonardis, *Verso un diritto dei legami sociali? Sguardi obliqui sulle metamorfosi della penalità*, in “Studi sulla questione criminale”, 1, 2009, pp. 15-40).

²⁷⁷ See, for instance, V. Olgiati, *La figura arbitrale: la qualità della giustizia ed educazione alla decisione complessa*, in F. Palazzo, O. Roselli, (a cura di), *I professionisti della giustizia*, ESI, Napoli, 2007, pp. 191-201.

where legislative and non-legislative sources live side by side and have to integrate with each other²⁷⁸.

I will give just two noteworthy examples of this.

a) The first is the fact that, whether in jurisprudence, examined doctrine or interpretation of interviews, there turns out to be a remarkable increase in the use of simple presumptions as probatory tools. According to Article 2727 of the Italian Civil Code presumptions are “the consequences drawn by the law or judge from a known fact in order to arrive at an unknown fact.” Presumption, thus, is a critical proof which allows the reconstruction of legal facts on the basis of circumstantial evidence, through inductive reasoning founded on efficient causality: under certain conditions a fact is assumed to be true²⁷⁹. When the causal connection is inferred by the law, we talk of legal presumptions (absolute and relative); when it is inferred instead by the judge, we talk of simple presumptions²⁸⁰.

Recently the Joint Divisions of the Court of Cassation have sketched out undisputed jurisprudential guidance on the absolute upgrading of presumptions in the proving of personal damage²⁸¹. They can even constitute «the only source for forming the judge’s opinion” (sent. 26972/2008).

²⁷⁸ M. Delmas-Marty, *Towards a Truly Common Law*, Cambridge University Press, Cambridge, 2002, p. 31.

²⁷⁹ The main meaning of the verb “to presume” is to accept as true, to consider true. Accepting a proposition implies the acceptance of its logical consequences. The reasons for accepting a proposition are not necessarily epistemological: the idea of accepting is relative and therefore flexible in time and place.

²⁸⁰ Presumptions have an important instrumental role, as they allow the resolution of situations of impasse when certain decisional criteria are missing. Tax law, for instance, is full of relative legal presumptions such as that related to the *redditometro*.

²⁸¹ Pronouncing sentence 26972/2008, the Joint Divisions of the Court of Cassation settled the question of liquidated personal damages (ex art. 2059 It.c.c.); i.e. damages caused by injury to constitutionally guaranteed personal interest (see art 2 Cost. It), and refundable even leaving aside the

Nevertheless, the extreme variety and fragmentation of the legal landscape on the issue of compensation requires not only certain sensitivity on the part of the interpreter but also a somewhat “creative” role. Indeed, in cases of liquidated personal damages caused by an event, the judge must take into account all the circumstances of the case and, even if the presumptions left to the judge have to be “serious, precise and in agreement” (Art. 2729 It. C.C.), deductions anyway depend on assessments based on known facts or “maxims of common experience”. Furthermore, given the extremely subjective nature of the harm suffered, the award of liquidated damages cannot be made with certainty by fixed schedules but, rather, by using the criterion of equity (Art. 1226 and 2056 It. C.C.).

b) Another aspect which emerges, especially from the analysis of each case, is the growing tendency to use so-called “vague” notions. Particularly notable is the progressive dissolution of the concept of deviance in favour of the notion of “social dangerousness”. This is a notion whose meaning is not determined by legal test but, from time to time, is settled in relation to context, which necessarily implies reference to other sets of extra-legal norms. The margins of interpretative

existence of a crime (see sent. 8271/2004; 6572/2006; 13546/2006). Previously the Cassation Court had identified, other than the “biological damage” and the “subjective moral damage”, a third kind of personal damage, the so-called “ontological (existential) damage” (see e.g. sent. 500/1999; 8827/2003; 8828/2003; n.6572/2006). However, many writers (e.g. Ponzanelli, Vettori, Lima, Rescigno) have been harshly critical of the vagueness of the term “ontological-existential”, an absolutely non-legal term borrowed from philosophy. Furthermore, the Cassation Court perceived the urgency of stopping the indiscriminate increase in arbitrary claims. Thus, reversing a quite common trend in jurisprudential praxis, with the sentence 26972/2008 the Court stated that this kind of damage (i.e. the “personal damage”) constitutes a single category which is impossible to split into different sub-typologies. Therefore, the Court stated also that “it is a judge’s authority and charge to assess the actual consistency of the alleged injury”.

discretion are therefore widened, not least because the decision is based on a balance of interests which cannot be deduced from codes, and legal reasoning is no longer founded so much on its own assessment of deviance from or conformity with the code, but prefers a gradual criterion of more or less compatibility with what is considered to be “socially acceptable”.

i) An immigrant arrested for selling fake CDs, for example, is considered “socially dangerous”. And even if he subsequently gets a regular job, he will always find enormous difficulty in getting a residence permit because, leaving aside any current offence, he continues to be labelled as socially dangerous (A. R., P. V., M. B, M. P., lawyers; K. Z., town foreign representative councillor; A. D., O. Y., counsellors).

In this and other similar cases, we witness a shift in labelling behaviours: from “ought to be”, or legal normativity, to what is “normal”, or social normality. Thus we pass from a criminal law that is supposed to punish the transgression of a taboo, to a criminal law that must protect society by eliminating, separating or normalising those whose state is abnormal.

Each illegal immigrant, as infringing a law codified by our legal system, is by definition socially dangerous. Therefore he/she can hardly get a residence permit, even he/she has been living and working in Italy for years (A. R., V. S., G. B. P., lawyers; W. P. pres. town council)²⁸². Consequently, the risk posed by people classified as dangerous is future and speculative, but the deprivation they face is real and immediate.

Anyway, what I want to point out is the fact that in the shift from guilt/punishment dyad to dangerous-state/safety-

²⁸² Examples also quoted in M. R. Bartolomei, *Toward a New Legal Expertise for and among Extra-European Settlers in the Marche Region*, in V. Olgati, (ed.), *Higher Legal Culture and Postgraduate Professional Legal Education in Europe. A Comparative Analysis*, ESI, Napoli, 2007, p. 256.

measure dyad the margins of interpretative discretion are therefore widened, not least because the decision is based on a balance of interests which cannot be deduced from codes, and legal reasoning is no longer founded so much on its own assessment of deviance from or conformity with the code, but prefers a gradual criterion of more or less compatibility with what is considered to be “socially acceptable”²⁸³.

ii) On the other hand, let us think of the Court of Rome’s recent decision to grant the eight rapists of Montalto di Castro (VT, Italy), a stay of proceedings and a “referral to welfare services for 24 months”, on the grounds that the boys are not socially dangerous and for this reason should be helped to reintegrate themselves into society. The paradox is that the group rape’s victim has been completely forgotten: no-one is worried about either her social reintegration or, even less, her physical and mental health²⁸⁴.

4. Fragmentation

From interpretation of the results obtained so far, there would also seem to emerge – whether in praxis or in interpretations and images of justice that people have – aspects of fragmentation²⁸⁵.

1) Fragmentation, first of all, in the sense of coexistence, within an identical structure of proceedings, of an irreducible multiplicity of instances and criteria of justice, each expressive of the legal rationality of its own legal system. We habitually witness, indeed, events that not only escape the control of legal system but are also beyond our grasp. We see, in fact, the phenomenon of a plurality of juxtaposed “spheres of

²⁸³ M. Delmas-Marty, *Towards a Truly Common Law*, cit., p. 17.

²⁸⁴ See the newspaper “Corriere della sera”, 18/10/2009.

²⁸⁵ The paradigm of fragmentation is well explained in C. Geertz, *Mondo globale, mondi locali*, il Mulino Bologna, 1999.

justice”²⁸⁶, reciprocally incompatible or even incomprehensible.

a) We should think of the metaphor of “network law” formulated by Ota De Leonardis²⁸⁷. According to him, recent transformations of the law and justice are characterized by a continuous process – pluralistic, polycentric and extensive – of “flattening” of the normative hierarchy and of “dismantling” of modern legal features. The new “law of social ties” is distinguished by the aspiration to regulate social interactions, not so much in order to impose the law as to reinforce social ties. In this connection, such a legal transformation could produce both effects: to encourage forms and practices of “restorative justice” and, at the same time, to further some forms of preventive control which the author defines as “immune-justice”.

b) Otherwise, we should think of the various cases in which a Chinese murderer, for fear of being summarily and ruthlessly executed by his victim’s family or hired Mafia killers, preferred a life sentence to the possibility of repatriation (S.G., lawyer)²⁸⁸.

c) Or, moreover, of the case of a Pakistani murderer who could not understand why the injured party’s family’s absolution was not enough to keep him out of prison²⁸⁹.

2) Fragmentation also in the sense that often one comes to judgements on the basis of local standards and of practices and viewpoints which are not universal but limited and partial. Substantive ends which one seeks to are often discontinuous and inconsistent, and the distributive struggle has to do with opposing definitions and imputations of responsibility.

²⁸⁶ M. Walzer, *Sfere di giustizia*, Laterza, Bari-Roma, 2008.

²⁸⁷ O. De Leonardis, *Verso un diritto dei legami sociali? Sguardi obliqui sulle metamorfosi della penalità*, cit.

²⁸⁸ Case quoted in M. R. Bartolomei, *Toward a New Legal Expertise for and among Extra-European Settlers in the Marche Region*, cit., p. 258.

²⁸⁹ Case quoted in *ibidem*.

a) Examination of various judgements of the Court of Cassation, for example, shows how decisions to grant or reject appeals in the field of acknowledgement of occupational illnesses not explicitly taxed have been mainly justified by reference to the concept of “probability”. We are dealing here with a “criterion simultaneously relevant and sufficient to find a halfway point between the two extreme positions” of strict legal certainty regarded as utopian and of hypothetical judgement grounded on mere possibility. Obviously, we have to be dealing here with a “qualified probability”, generally speaking pursued through presumptive proofs.

b) With sentence n. 9163/2005, the Joint Divisions of the Court of Cassation have completely reversed the formerly jurisprudential interpretation of the concept of “imputability” (imputabilità). Explaining Art. 85 It. C.P., which states that “is imputable only who has legal capacity” (*è imputabile solo chi ha la capacità di intendere e di volere*), in accordance with the maxim *nihil volitum nisi praecognitum*, the Court affirmed that – according to the more recent discoveries of social sciences – “a completely free will, understood as absolute freedom of self-determination it doesn’t exist” (*una volontà libera, intesa come libertà assoluta di autodeterminazione ai limiti del puro arbitrio, non esiste*). Consequently, judges stated that legal capacity of both adults and minors presupposes the ability to manage his/her own will and emotions and the full consciousness of his/her own doing. Thereby judges exhort to refer to the dimensional diagnosis, hence the valuation of the “I” functioning, rather than to the categorical and nosographic diagnosis. All this means, on one hand that the temporary aspect of mental disorder – connected also with the transitory frame of mind – assumes a main importance and thus, that it became very difficult to locate the just right boundaries between psychology and psychopathology. On the other hand, this judgement has radically transformed the stativity of the concept of mental disease in a more dynamic

concept of mental infirmity which has to be from time to time verified in each case in point.

5. Contingency

1) First of all, contingency in the sense of instability and unpredictability. Indeed, we are witnessing the steady growth of justice which fluctuates more and more between the two extremes of legal formalism and a pragmatism which finally reaches the point of radicalising cultural relativism.

a) A lending institution sought an injunction against a client who refused to pay a debt arising from quarterly capitalisation of interest and an interest rate above the limit for money lending (clauses which were clearly obviously null and void, so much so they invalidated the whole injunction process). When the customer sued and asked for the above-mentioned clauses to be declared null and void and for repayment of the amounts illegally taken, he was told that since he had not objected within the legal deadline the injunction had by then become legal and, therefore, binding upon the parties.

Here we are dealing with an example which reminds us of the school of those judges in the old Wild West who, out of respect for precedent, sentenced car thieves to hanging, the penalty laid down for horse rustlers!

b) On the other hand, the acquittals given by two different German judges to Nishal's husband and Fatima's father and brothers, accused of beating and keeping their victims at home, are interesting. In the name of multiculturalism, and therefore of respect for cultural traditions, both judges justified their decision by declaring that beating women "for their own good" represents a common feature of Islamic culture, a behaviour explicitly provided for and allowed by the *Koran*.

2) Contingency also in the sense of indeterminateness, that is to say open-ness to any possible interpretation, even if unreasonable and contradictory.

a) Let us consider the case of a labour inspector whose report follows a contradictory logical/legal course: at the beginning he reports facts and proofs in favour of the injured labourer but then comes to a conclusion which clears the employer of responsibility. In this way the judge, who perhaps limited himself to reading only the conclusions and therefore did not take account of the faulty reasoning in the report, did not order the employer to pay compensation for damages.

b) The temporary stay of someone from outside the European Union in the place of residence of a drug dealer at the time when it was searched by police led to his arrest and sentence for being complicit in the crime.

6. Concluding remarks

By presenting rather heterogeneous individual experiences and different case studies with links to very diverse contexts, this paper pays particular attention to the difference between a conception of justice understood as a formal quality of social relationships regulated by the law and a conception of justice understood as a tool for the pursuit of particular substantive ends.

Since different people and cultures hold different principles of justice²⁹⁰ and, consequently, dissimilar and at times contrasting ideas about the content to give such ends, they apply different criteria of justice. Awareness of this cultural aspect seems necessary for an understanding of the various ways in which representations produce and reproduce visions, concepts, perceptions and practices of legal and social justice.

²⁹⁰ M. Douglas, *Come pensano le istituzioni*, cit.

My selection of examples about some current thinkable and shaped images of justice represent a collection and, at the same time, a “dispersion” as well. Above mentioned emerging visions of justice, in fact, could be maybe better understood by means of the forerunner interpretation of justice given by Walter Benjamin in 1968 when in his *Thesis on the Philosophy of History* he wrote down some meditations on a 1922 painting by Paul Klee, *Angelus Novus*²⁹¹. Namely, a vision of justice “as witnessing, as something waiting, as a promise and the potentiality for making a difference”. Indeed, like Klee’s angel, current justice “drawing things together” sees history not “as a progressive succession of nicely bordered justices”, but as “an amorphous pile of wreckage, ‘one single event’”. That is, current justice is not able to see difference as difference, witnessing instead the whole of undifferentiated differences. “But this non-difference, flowing from the inability, or the refusal to make a difference, is of course a difference itself”: the hybridization that make a difference! What I mean here is that the encounter between different cultures inevitably produces hybrid images of justice²⁹².

If it is true that – as Hume argued – the sense of justice is derived from injustice and disorder, nevertheless from my findings clearly emerge a vision of justice where “order” –

²⁹¹ W. Benjamin, *Angelus Novus. Saggi e frammenti*, Einaudi, Torino, 2006. Interpreting the famous painting *Angelus Novus* of Paul Klee (1922) Benjamin saw it as depicting the “Angel of history”. An angel looking as though he is about to move away from something he is fixedly contemplating – the past, where he perceive a chain of horrifying events. The angel would like to stay, but a storm is blowing with such violence that the angel can no longer close his wings. The storm irresistibly propels him into the future. Benjamin employed this picture to describe his messianic vision of history and justice, both featured as perpetually looking forward an unfulfilled future redemption and composed by such a mankind who, against its will, is dragged away by time and progress, whilst leaving behind him a pile of debris, wreckages and calamities growing skyward.

²⁹² R. Lippens (ed.), *Imaginary Boundaries of Justice: Social and Legal Justice across Disciplines*, cit., pp. 15-19.

that which shines as coherence and consistency, for example – is not universalizable, otherwise one run the risk of multiplying “disorder”²⁹³. Nowadays as a matter of fact, a key problem of society seems to be to ensure freedom while enforcing order, to mark differences and yet to absorb uncertainty and instability. Law is a social system (amongst many other) which aims to keep down instability: within its boundaries its lawful/unlawful code outline what is inside/outside the system. Legal system reduces complexity by fixing normative expectations that have the ability to maintain and perpetuate themselves²⁹⁴. But with its own changing, softening and pluralizing, law more or less betray. Besides, legal forms are often the final outcomes of political-economic power’s relationships, claims and interests. For Luhmann, indeed, justice is a contingency formula which means that the law may or may be not just²⁹⁵. According to Luhmann the basic function that justice has for the legal system is the representation of the system within the system. Justice “normativises the system’s self-description: the unitary projection (the illusion of systemic identity) is defined by the system under its self-imposed norm of justice”. Lawful is just and unlawful is unjust²⁹⁶.

Being a contingency formula, justice crosses and brings together external and internal imperative in a paradox, both presence and absence. Justice dwells in law but at the same time challenges the law and compels it to change and continually develop. As far as justice represents for law an idea, principle or value to follow, the *telos* to attain, the

²⁹³ Z. Bauman, *Postmodern Ethics*, Blackwell, Oxford, 1993, pp. 209 ss.

²⁹⁴ N. Luhmann, *Law as a Social System*, in “Northwestern University Law Review”, 1-2, 1989, pp. 136-150.

²⁹⁵ N. Luhmann, *Law as a Social System*, Oxford University Press, Oxford, 2004, p. 214.

²⁹⁶ A. Philippopoulos-Mihalopoulos, *Niklas Luhmann: Law, Justice, Society*, Routledge, New York, 2010, pp. 90-91.

horizon to which constantly comparing itself, it constitutes the propeller of each legal system. Since contingency includes both variety and redundancy (justice is present either when the system changes or when it remain the same) justice's crossing remains invisible for the law: the legal system apprehends the question of justice only as the process of distinguishing between cases that are alike from ones that are not²⁹⁷. Yet "the legal system has no way of knowing whether its decision has been just or unjust [so] [j]ustice is the final word for the legal system, both in its imperative presence and its unverifiable effect". In this sense, putting together the paradox between a calculable presence and an inaccessible incalculability, justice is to be found through law and in spite of Law²⁹⁸.

Consequently, in a world seemingly out of control²⁹⁹ we have justice which evolves but cannot control itself. As a result, any attempt to locate justice can be doomed and we have a vision of justice with mutable contingent fleeting imaginary boundaries in a way.

To sum up, we can assert that in the current situation, which Teubner characterizes as polycontextual³⁰⁰, the impossibility of νόμοφιλαχία, *nomofilakia*, the maintenance of logical and contextual coherence, becomes clear³⁰¹. The actual complex relationship between law and society imposes the issue of justice in all its urgency. Nowadays more than ever, indeed, the dystonias, the inconsistencies, the deficiencies and

²⁹⁷ N. Luhmann, *Law as a Social System*, cit.

²⁹⁸ A. Philippopoulos-Mihalopoulos, *Niklas Luhmann: Law, Justice, Society*, cit., pp. 92 and 94.

²⁹⁹ K. Farrell, *Posttraumatic Culture. Inquiry and Interpretations in the Nineties*, The Johns Hopkins University Press, Baltimore-London, 1998.

³⁰⁰ G. Teubner, *Alter Pars Audiatur: Law in the Collision of Discourses*, in R. Rawlings (ed.), *Law, Society and Economy*, Oxford University Press, Oxford, 1997, pp. 149-176.

³⁰¹ G. Teubner, *Diritto policontesturale: prospettive giuridiche della pluralizzazione dei mondi sociali*, La Città del Sole, Napoli, 1999.

inadequacies of legal formalism overlap single paradoxes about the relationships between law and praxis³⁰².

The decision tends to lose its directive quality, in the sense of a clear and unequivocal statement of the law, in favour of becoming a full-blown narration, an interpretation of the single case on the basis of heterogeneous, fragmented and blurred legal sources... a “novel with alternative endings”.

We are witnessing therefore an increase of substantive justice in the sense of a judge’s “creative” power, similar to that wielded by the Roman judges at the time of *legis actiones*. Authority’s last resource is the “game” itself of discourse, not so much in the habermasian sense (the discursive justice of Habermas) as in the sense of a more radical kind of reflective justice – a sort of justice of the single case whose judges, rather than take the concrete instance back to the categories of general and abstract norms, are marked by a reflexive reasonableness, of an apodictic type. Determination of the meaning is absolutely contextual and, as Derrida maintains, every decision – developing its own rationality and normativity – is unique and unrepeatable. Decision making strategies are embedded in language practices (justice is expressed through language’s power) and words no longer to describe a situation but contribute to bring it about.

Nevertheless, notwithstanding the growing awareness that it is impossible to defend an absolute concept of justice and that, as Teubner maintains, for now the possibility of formulating a positive concept of justice is precluded³⁰³, the results of the interviews reveal a universal aspiration towards justice understood as a fundamental anthropological need for

³⁰² A. Rufino, *Laudatio*, in G. Teubner, *Giustizia autosoveriva: formula di contingenza o di trascendenza del diritto?*, Napoli, La Città del Sole, 2008, p. 10.

³⁰³ G. Teubner, *Giustizia autosoveriva: formula di contingenza o di trascendenza del diritto?*, cit.; G. Teubner, *Ordinamenti frammentati e costituzioni sociali*, in *Lectio doctoralis*, Laurea honoris causa in Giurisprudenza, Università di Macerata, 30 aprile 2009.

regulated and possibly harmonious interactions. There is a demand for a shared vision of contemporary law inspired by the *jus commune*³⁰⁴, including the idea of a revival of some forms of natural law, perhaps revised and corrected on the basis of principles of Aristotelian or Aquinian *ἐπιχρεία* and of human dignity.

This phenomenon can be read like a sort of “re-entry” of social norms into the legal system always rising new substantial aspect (of justice) due to the justice’s historical variability and dependence of its social, human and natural environment. Insofar the result is a plurality of fragmented justices unconformable to a single criterion, the increasing claim for justice forces law to break its functionally-bound system in order to adequate itself to society, mankind and nature. So, in a fast changing world we witness a quickly changing justice which works like an ongoing “subversive practice” favouring disorder, difference, change, indeterminacy and unpredictability³⁰⁵.

This brings back, therefore, the problem of the foundation of Man’s moral and legal actions as well as the challenge of an ethical commitment to “re-inventing” or, better still, “re-imagining”³⁰⁶ an idea of justice able to deal with, and perhaps resolve, the problems of our time.

³⁰⁴ W. Van Gerven, J. Lever, P. Larouche, Ch. von Bar, G. Viney, *Cases and Texts on National, Supranational and International tort Law: Scope of Protection*, Hart Publisher, Oxford-Portland, 1998.

³⁰⁵ G. Teubner, *Giustizia autosoverviva: formula di contingenza o di trascendenza del diritto?*, cit.

³⁰⁶ R. Lippens (ed.), *Imaginary Boundaries of Justice: Social and Legal Justice across Disciplines*, cit., and R. West, *Re-Imagining Justice. Progressive Interpretations of Formal Equality, Rights and the Rule of Law*, cit.

The Facts in the Trial between Reality and Narration

Flora Di Donato

1. Introduction

The theme I have chosen to talk about today at this important congress on “Right, True, Reasonable. The Perception of Justice in the Global Era” – which brings together scholars from different geographical backgrounds and disciplines – concerns the re-construction of judicial facts within the trial³⁰⁷.

It is a topic that has been traditionally neglected, in both theoretical and practical studies, particularly in the areas of civil law. I will discuss briefly the reasons related to the difficulties of this kind of investigation, starting from the tradition of a “positive-law” concept of judicial reasoning within the European legal context.

The factual construction activity is also an issue that is normally connected to a much larger one relating to the possibility of naming the “truth” in a trial, considered in many legal systems as the ideal aim³⁰⁸. Not being able to analyse the subject in a comprehensive way, on this occasion, I have chosen to consider only some of the factors that can affect the declaration of the truth in a trial and to compromise it being fully obtained.

³⁰⁷ Some of the ideas presented in this paper are part of a much larger study carried out from 2003-2008. See F. Di Donato, *La costruzione giudiziaria del fatto. Il ruolo della narrazione nel “processo”*, FrancoAngeli, Milano, 2008.

³⁰⁸ For all of them, see M. Taruffo, *La semplice verità. Come i giudici costruiscono i fatti*, Laterza, Roma-Bari, 2009.

First of all, I would like to consider ideological factors in a wider sense. Secondly, I would like to highlight the roles of the “legal protagonists” acting during the trial, capable of influencing its different conclusions. The third dimension, as a narrative dimension, rather than representing a limit, is an immanent dimension, pervasive within the trial.

2. Logical and pragmatic legalism

Within a European context, the emergence of a strongly hierarchical judiciary system, since prior to the French Revolution, has determined the success of an attitude of attachment to the legal rules, while “the facts of the case” end up becoming “irrelevant”³⁰⁹. This trend, with Montesquieu, is well known as “logic legalism”. It is typical of a society based on “faith” in a few immutable principles from which it is felt that clear rules can be obtained so as to reduce the judicial activity to a simple “declaration” of “knowledge of the facts” within a logical-demonstrative structure, the syllogistic one, without considering the specific circumstances of the specific claims that might be proposed by the parties³¹⁰. This is, ultimately, an “objectivist” concept of knowledge, linked to the claims of an Enlightenment style of rationality, typical of the 1800s and much of 1900s.

In contrast to the logical conception of legalism, typical of the European system, there is a “pragmatic legalism”

³⁰⁹ For a more detailed historical reconstruction of the European justice system, see M. R. Damaška, *I volti della giustizia e del potere*, il Mulino, Bologna, 2000, pp. 69-83.

³¹⁰ For more details on the characteristics of the judicial sentence in Europe, see P. Stein, *Judgements in the European Legal Tradition*, in Università degli studi di Ferrara, Facoltà di Giurisprudenza, *La sentenza in Europa: metodo, tecnica e stile. Atti del Convegno internazionale per l'inaugurazione della nuova sede della Facoltà, Ferrara 10-12 ottobre, 1985*, Cedam, Padova, 1988, pp. 485-497.

tendency, typical of common law systems. The lay character of juries that is characteristic of this form of legal-judicial system avoids, first, the development of a hierarchical judicial system, bureaucratic, in a word “formal”. Furthermore, the interpretative activities of local judges are strongly anchored to the rules prevailing in the community rather than to technical legal rules “cut off from their social matrix”. That is to say that the technical aspects of common law are both deeply immersed in the pragmatism of the trial as well as sensitive to the particularities of the cases³¹¹.

In light of the brief comparison between civil law and common law systems, the main limit of a “syllogistic decision model” – that still dominates European culture – is that it takes for granted the assumptions of every decision that has to do with the setting of pre-conditions related to the knowledge of the legal facts.

On the contrary, I would like to demonstrate briefly that a “complex activity” such as the re-construction of the facts inside a trial cannot be limited to a type of syllogistic procedure.

3. From the scientific revolutions to the theory of law: the emergence of a constructivist perspective of knowledge

The “ideological” belief according to which it is possible to objectify the knowledge of reality is part of the scientific ideas and doctrinal criticisms that have animated the debate since the mid-20th century. This is the so-called “modernity”.

In the early 1960s, the philosophy of science, with Kuhn, questioned the belief that a scientific theory can be developed on the basis of an objective description of facts: “the choice of facts to be investigated can only be historically

³¹¹ M. R. Damaška, *I volti della giustizia e del potere*, cit., pp. 84-96.

conditioned". Several paradigms, in different historical periods, define the scientific practice of scientists³¹².

The anthropology of science, with Latour and Woolgar, in turn, shows that the "construction of facts in a laboratory" is nothing more than just a collective activity of the "literary construction of statements related to the observation of the objects". "Objectivity" is the result of laboratory work and not the product of tout court scientific analysis³¹³.

In general, theories of social and cultural construction of the mind take into account that the relationship between the individual mind and reality is no longer represented in terms as an "esprit-dans a bocal"³¹⁴. It is not a mind that observes the outside world in a relationship of "alienation" with it. The role of an active mind that interacts with others to "give meanings" to the world is re-discovered. Social meanings do not pre-exist, they are defined in the common horizons of every culture³¹⁵. This is an "epistemological revolution" thanks to which human beings become active protagonists of the reality discovery processes.

Even legal theory, since the 1950s, if not before³¹⁶, has recognized that the judicial facts are not "given". They are not "somewhere waiting to be discovered", they are "created" within the trial through subjective reactions to the stories of witnesses. In particular, thanks to the American realist movement, the awareness that the outcome of the judicial

³¹² See T. S. Kuhn, *The Structure of Scientific Revolutions*, University of Chicago Press, Chicago, 1962.

³¹³ See B. Latour, S. Woolgar, *La vie de laboratoire. La production de faits scientifiques*, Editions La Découverte, Paris, 1988.

³¹⁴ See B. Latour, *L'espoir de Pandore. Pour une version réaliste de l'activité scientifique*, La Découverte, Paris, 2001, pp. 7-31.

³¹⁵ J. S. Bruner, *Acts of Meaning*, Cambridge University Press, Cambridge, 1992.

³¹⁶ For example, see J. H. Wigmore, *The Principle of Judicial Proof, as Given by Logic, Psychology and General Experience*, Little Brown and Company, Boston, 1913.

decision is conditioned by the possible ways to investigate facts in Court rather than by the logical capabilities of the judge to subsume “objective facts” under abstract legal rules has been recovered.

Frank, in particular, asks in a fact-scepticism perspective, how can a judge make decisions on facts which occurred in the past. He declares in a “revolutionary” way that “facts are guesses” and that they cannot be found, they are “created” by the Court through the trial³¹⁷.

More recently, in a perspective of legal theory, Twining, attracting attention to the importance of issues of fact, notes that the institutions, rules, legal meanings, cannot be understood without reference to a particular (legal) context³¹⁸.

Lastly, even in Italian legal debate, there is awareness that the judicial decision making activity is “oriented” by the fact in issues and that the particular circumstances of the case must be regarded as an inevitable starting point for every decision.

4. The construction of facts in the trial

The historical-philosophical and doctrinal positions reviewed here help take into account that the cognitive process of real phenomena is never a “pure” process of discovery, even when it starts from scientific tout court assumptions, as in the case of facts investigated in the laboratory. This is always a process “mediated” by a number of factors that have to do with the context of discovery as well as the protagonists of this process, with the object to be

³¹⁷ J. N. Frank, *Courts on Trial. Myth and Reality in American Justice*, Princeton University Press, Princeton, 1950, pp. 14-36. See also Id., *What Courts Do in Fact, Part One and Part Two*, in “University of Illinois Law Review”, 26, 1932.

³¹⁸ W. Twining, *Rethinking Evidence*, Cambridge University Press, Cambridge, 2006.

investigated, and the type, quality and quantity of information which not only provides the method through research is conducted.

The shared legal view that the facts never enter the trial sub specie of empirical reality but as an object of a (re-) construction is becoming more widespread even within the Italian legal debate³¹⁹. In a constructivist and narrativist perspective, in particular, we can consider the facts as the result of a complex language construction process that takes shape in the interactions between the legal actors. They negotiate “meanings” to attribute to events judged in the context of the trial. This construction process is based on the information introduced and interpreted by the legal actors as well as the constraints imposed by the legal and procedural system.

During the trial, different stories are told for different purposes as well as from different points of view. They are not just “representations” of aspects of reality, which vary depending on the information possessed or not by the narrators, nor are they re-constructions conditioned by the subjective observations, feelings, emotions, cultural scripts, of which the protagonists of the stories are carriers. Trial stories, like any other story, have the function to struggle the knowledge of the events, as well as organizing and interpreting items of information, fragments of reality that can

³¹⁹ M. Taruffo, *La prova dei fatti giuridici*, Giuffrè, Milano 1992; B. Pastore, *Giudizio, prova, ragion pratica. Un approccio ermeneutico*, Giuffrè, Milano, 1996; G. Ubertis, *La ricostruzione giudiziale del fatto tra diritto e storia*, in “Cassazione penale”, 3, 2006; D. Corradini Broussard, *Verità ontica e verità processuale*, in AA.VV., *Proceedings of the First National Convention of the Italian Society for Law and Literature* (in publication); G. Benvenuti, *Contraddittorio e etica del dialogo*, in G. Limone (a cura di), *L'era di Antigone*, FrancoAngeli, Milano, 2010 (in publication).

be re-constructed as coherent and ordered data namely the “facts”³²⁰.

The shaping of the story is conditioned by the role played by the narrators (clients, lawyers, judges, witnesses) as well as the type of representation of the story they are “capable” of, starting from the (institutional or not) role played in the trial. In the context of the trial, telling a story for the protagonists (clients) is not just narrating parts of their lives but means actively participating in the construction of their case and more generally to the production of legality. As highlighted by some authors, the representations of the client, known as a lay person, not only enter the trial but can positively influence the outcome³²¹.

They may be actors who have a social and institutional role “in the wider sense” as in the case of the lawyer who may have the function of “subversion”, “reverse” pre-constituted social balance or re-constructing them mediating between the demands of the social context and judicial system and those of his client.

Finally, they may be institutional actors “in the strict sense”, as in the case of the judge, whose function is basically to ensure, “to maintain” the traditional social order.

5. Types of narrators and types of narratives in the trial

A factual narrative in the trial is a complex situation, given the number of stories that can be constructed within this type

³²⁰ A. Amsterdam, J. Bruner, *Minding the Law. How Courts Rely on Storytelling, and How Their Stories Change the Ways We Understand the Law – and Ourselves*, Harvard University Press, Cambridge (Mass.), 2000; F. Di Donato, *La costruzione giudiziaria*, cit.

³²¹ V. Haavisto, *Court Work in Transition. An Activity-Theoretical Study of Changing Work Practices in a Finnish District Court*, Helsinki University Press, Helsinki, 2002; F. Di Donato, *Client-lawyer cooperation in the construction of the case*, in “Cahier de Psychologie et Education”, 44, 2008, pp. 23-33.

of context. They are normally opposing stories, the subject of disputed facts submitted by the parties. It is worth taking into consideration the different and often conflicting versions of stories told by the client, the lawyer, the witnesses as well as the judge.

Emphasis should be placed, then, on the storytellers as well as the type of stories that they tell in the trial.

1. We start from the role of the lawyer and the type of stories he tells.

It is well known that the primary task of the lawyer is to “persuade” the court into deciding in favour of his client, starting from questions of facts and questions of law previously defined and expressed through arguments. This is a role which by definition is “biased”, i.e. the lawyer takes legal action to protect the interests of his client and win the case.

This does not mean that the lawyer is a “manipulator” of facts. The ability of the lawyer is to connect causal and temporal links between the events (supported by evidence) that can acquire meaning in the light of the legal system and judicial practice. The task of the lawyer is, in a sociological and legal perspective, to “translate” the daily events narrated by the client into legal facts “by creating”/“re-interpreting them”³²².

It is not about whether the lawyer tells the truth or not. The lawyer is not obliged to tell or guarantee the truth in the trial. Rules of the deontological codes of various systems as well as the same burden of proof is rather weak in this area³²³.

2. The other trial narrator of interest, in the dynamics of the re-construction of the facts, is the witness.

³²² J. B. White, *Justice as Translation. An Essay in Cultural and Legal Criticism*, University of Chicago Press, Chicago, 1990.

³²³ In Italy, for example, art. 14 of the deontological code sets out a general duty of truth that does not include the facts associated to a trial, which the lawyer does not have direct knowledge, from the moment that learns of these facts from his client. It is not a sanctioned duty and is verified in the norms of the code. See M. Taruffo, *La semplice verità*, cit., pp 45-48.

The amount of trust that has been traditionally invested in the witness has been proven to be largely inconsistent through a series of ethnographic studies that deal with, for example, the way the questions are asked at the hearing (depending on whether they are more or less suggestive), with the types of responses given by the witness (narrative or fragmented). Some authors have also defined witnesses as “sponsored storytellers” (obviously sponsored by the parties)³²⁴.

Studies by Conley and O’Barr, on the style of testimonies in courts, show, for example, that the “style of presentation” of the evidence is highly significant for the purposes of the acceptance or not of the witness by the court. Key factors such as credibility, ability to testify, the intelligence of the speaker, are highly influential for the credibility of a witness. It is worth taking into account the function of “control” of communicative exchanges that the lawyer is capable of exercising in the acquisition of a testimony³²⁵.

3. Finally, we come to the role of the judge. In the trial, the role of the judge is the most important from an institutional point of view. The judge is able to choose between the stories proposed by the parties or create a new story. It is a decisional role, carried out in a position of “detachment”. The function of the judge is “ideally” to affirm the objectivity of the facts and propose a “true” story (due to it being supported by proofs).

³²⁴ P. Brooks, P. Gewirtz, *Law’s Stories. Narrative and Rhetoric in the Law*, Yale University Press, New Haven. 1996.

³²⁵ It seems, in the observations of Court activity, that extended and narrative responses are only possible when lawyers give the witness enough freedom to answer, so that some witnesses, more than others have the opportunity to give relatively long and less fragmented answers. This is traditionally known as “narrative” and “fragmented” styles. See J. M. Conley, W. M. O’Barr, *Just Words: Law, Language and Power*, University of Chicago Press, Chicago, 1998.

The judge has to justify, with appropriate legal arguments, his choice as well as the decision on the facts having to be based on evidence acquired in court³²⁶.

4. Classic trial analysis tends to consider the roles of the lawyer, the judge and the witnesses. The role of the client can also be added due to it having an active role in constructing the case and being open to an “autonomous” consideration, within certain limits, in relation to the role of the lawyer (and more technically on the part), within the trial.

Studies of several trials stories, in some cases, have highlighted that under certain conditions (social, cultural, professional), the client is not a mere carrier of information within the trial, but can provide the lawyer with detailed information in relation to his professional status and more generally in relation to the work context. He is able to give information that may concern the legislative framework of a specific profile sector (as in the case of a school headmaster for example). He is also able to take part in the implementation of strategies, possibly coordinated with the lawyer, at stages that may precede the trial itself (by writing e-mails to the employer, recording of conversations, etc.)³²⁷.

In summary, the client is an actor capable of affecting the course of the trial in order to meet his own needs and to represent his own story.

³²⁶ However I would like to observe that the obligation of justification is generic starting from the Italian procedural civil code (art. 132 c.p.c. “contents of the sentence” simply sets out the distinction between justification in fact and in law). In addition, it is not uncommon, in legal proceedings, to look for judicial opinions that present evaluative or pseudo-justification argumentative contents.

³²⁷ See F. Di Donato, *La costruzione giudiziaria*, cit, chap. V.

6. Conclusions

Analysis of the actors' roles within the trial, framed in a constructivist and narrativist socio-legal perspective, has showed that re-constructing facts in a trial is not just a cognitive and objective process.

In fact, it is a socio-cultural-legal process conditioned determined by several factors.

Above all, I considered the role played by the legal protagonists – within the trial (client, lawyer, witness, judge) – basically as human beings who live and act starting from the social and cultural backgrounds that the legal system is not completely able to frame.

Moreover, I considered the role of the trial actors that are different from the judge – above all those of the lawyer and client – whose active cooperation is fundamental in order to construct a shared representation of the legal facts capable of affecting the conclusion of the trial according to their (cultural and legal) representations of the reality.

The final aim was to demonstrate that the truth acquiring process within a trial can not be based only on judicial and evidence's activities.

The challenge of a modern theory of law is to consider a model of analysis of decision making and truth acquiring that would be able to take into consideration also the active contributions of (all) the legal actors (as human actors) at every stage of the trial and generally in the practices of the law.

Discrimination in the workplace and the “religious factor”. The German experience

Raffaello Santagata

1. Equality, discrimination and the religious factor in the new European Union framework

Labour law provides fertile terrain for reflection on the subject of this conference – the perception of justice as just, true or reasonable – in so far as it can supply a useful guide to study the implications connected with some of the complex dynamics occurring in global society, such as the well-known socio-cultural phenomenon³²⁸ commonly referred to as multiculturalism and the contemporary rediscovery of a liberal ideology giving centre-stage to the individual, and protection of the rights of the person³²⁹.

Mass migration, globalization and the phenomenon of the so-called “other” cultures, on one hand, contribute to, also

³²⁸ On the multiculturalism there is an ample literature. See in particular J. Habermas, C. Taylor, *Multiculturalismo. Lotte per il riconoscimento*, Feltrinelli, Milano, 1998; W. Kymlicka, *La cittadinanza multiculturale*, il Mulino, Bologna, 1999; A. E. Galeotti, *Multiculturalismo: filosofia politica e conflitto identitario*, Liguori, Napoli, 1999; G. Sartori, *Pluralismo, multiculturalismo e estranei. Saggio sulla società multi-etnica*, Rizzoli, Milano, 2000; E. Caniglia, A. Spreafico (a cura di), *Multiculturalismo o comunitarismo?*, Luiss University Press, Roma, 2001; S. Benhabib, *La rivendicazione dell'identità culturale. Eguaglianza e diversità nell'era globale*, il Mulino, Bologna, 2005; M. L. Lanzillo, *Il multiculturalismo*, Laterza, Roma-Bari, 2005. J. Habermas, *Equal Treatment of Cultures and the Limits of Postmodern Liberalism*, in “The Journal of Political Philosophy”, 1, 2005, pp. 1-28; C. Galli (a cura di), *Multiculturalismo. Ideologie e sfide*, il Mulino, Bologna, 2006; C. Galli, *L'umanità multiculturale*, il Mulino, Bologna, 2008.

³²⁹ See S. Simitis, *Il diritto del lavoro e la riscoperta dell'individuo*, in “Giornale di diritto del lavoro e di relazioni industriali”, 45, 1990, p. 103.

within a microcosm such as the firm, a series of tensions and conflicts closely linked to diversities and the ways each person shows their cultural or religious identity; on the other hand, they emphasize the need to address, using legal instruments, the call for recognition and promotion of differences connected with religious faith and culture.

This is the setting for our study, which focuses on the subject of the protection of religious identity from the point of view of employment law. The following reflections start from German case law, and specifically look at some of the sensitive questions currently arising from Dir. 2000/78/EC (enforcing art. 13 of the EC Treaty) and the integrating legislation of individual states.

The affirmation and defence of identity in employment law are part of a broader aim to protect the values of the equality, solidarity and dignity of the human person, which has received a significant boost and support at European level especially after the opening of the season of antidiscrimination law, eloquently known as the “golden age”.

On the specific theme of the protection of religious identity, the discipline against discrimination and the promotion of equality contained in dir. 2000/78/EC certainly plays a primary role: EU law considers religion – in addition to a wide and varied range of other risk factors – to be a characteristic making up the identity of the person likely to lead to adverse consequences for those who have this characteristic, and in order to discipline the discriminatory acts against them, presents instruments and techniques of protection developed over the last twenty years making reference to gender discrimination (such as the concept of indirect discrimination).

Introducing both positive and negative obligations, dir. 2000/78/EC – along with, more generally, the “new” antidiscrimination law – conceives of equality not only as not discriminating but also the right to affirm and defend cultural identity, in its multifaceted manifestations, including religion.

The European legislator, on the one hand, appears sensitive to the necessity to reaffirm and emphasize “the self determination of the individual” and so his own freedom to express, also within the employment relationship, his own different identity³³⁰, and on the other hand, it moves in harmony with the questions of identity which are the basis of the debate about multiculturalism, aiming to reinforce the overall effectiveness of protection against discrimination³³¹.

The same idea of equality furthermore emerges from the formulations of the Charter of Nice, which, as well as proclaiming in art. 21 the principle of non-discrimination by race, ethnic origin or religion, in art. 22, it particularly emphasizes respect for and promotion of cultural and religious diversity, implicitly obliging the Union to respect “the specific and unrepeatable characteristics which differentiate and at the same time identify each person and which as such are protected by the fundamental rights of freedom, the freedom of religion, of thought, the press, of assembly, and association, which equate to so many rights to the respect of one’s own difference or identity”³³².

Within this new institutional and legislative framework, it is clear that equality is not in opposition to the principle of the

³³⁰ M. D’Antona, *L’autonomia individuale e le fonti del diritto del lavoro*, in “Giornale di diritto del lavoro e di relazioni industriali”, 51, 1991, pp. 455, 458. See also U. Romagnoli, *Eguaglianza e differenze nel diritto del lavoro*, in “Giornale di diritto del lavoro e di relazioni industriali”, 63, 1994, pp. 548 ss.; M. Barbera, *La sfida dell’eguaglianza*, in “Rivista giuridica del lavoro e della previdenza sociale”, 2, 2000, p. 245 ss.; M. V. Ballestrero, *Eguaglianza e differenze nel diritto del lavoro. Note introduttive*, in “Lavoro e diritto”, 3-4, 2004, p. 519 ss.; D. Izzi, *Eguaglianze e differenze nei rapporti di lavoro. Il diritto antidiscriminatorio tra genere e fattori di rischio emergenti*, Jovene, Napoli, 2005.

³³¹ M. Barbera, *Introduzione. Il nuovo diritto antidiscriminatorio: innovazione e continuità*, in Id. (a cura di), *Il nuovo diritto antidiscriminatorio. Il quadro comunitario e nazionale*, Giuffrè, Milano, 2007.

³³² L. Ferrajoli, *Uguaglianza e non discriminazione nella Costituzione europea*, in A. Galasso (a cura di), *Il principio di eguaglianza nella Costituzione europea. Diritti fondamentali e rispetto della diversità*, FrancoAngeli, Milano, 2007.

protection of diversity. In fact, it is itself a guarantee of the natural elements of the human being that orient and condition his interests, his needs, the way in which these can be satisfied and also the way in which the related rights can manifest themselves.

The focus of this study is to check, following a number of cases coming before the German courts, how in actual fact the right to the affirmation of one's own religious identity is treated when this right is exercised within the dynamics of the employment relationship.

In this regard, an analysis of the case covered by case law in Germany – where dir. 2000/78/CE was enacted on August 14, 2006 with the *Allgemeines Gleichbehandlungsgesetz* (hereafter AGG) – constitutes an excellent testing ground, offering problematic points for reflection also from the perspective of a search for interpretative solutions better suited to guaranteeing the perfect observation of national legislative measures in reference to obligations arising from EU membership.

It makes it possible, first of all, to highlight the problems which arise in a series of cases where the exercise of the basic right to constitutionally protected freedom of religion comes into conflict with the sphere of the subjective position of the employer, both of which are equally grounded in the constitution. These are cases which come about especially when the employer, when exercising his managerial powers, imposes rules – be they positive or negative – likely to effectively prevent the worker from carrying out religious practices, such as those regarding, for example, apparel, what they may eat, when they may work and when they may rest³³³.

³³³ On this topic see V. Bavaro, *Ideologia e contratto di lavoro subordinato*, in “Giornale di Diritto del Lavoro e di Relazioni Industriali”, 98, 2003, p. 193; P. Bellocchi, *Pluralismo religioso, discriminazioni ideologiche e diritto del lavoro*, in “ADL. Argomenti di Diritto del Lavoro”, 1, 2003, p. 157; M. Cuniberti, *Lavoro e discriminazione: il fattore religioso*, in A. D'Aloia (a cura di), *Lavoro*,

There is the risk that interference by the employer in the personal sphere of the worker may translate into illegitimate harm to his religious identity, especially when the worker has to choose between work duties and religious precepts or his own conscience, being, thus, deprived (needlessly) of the opportunity to independently direct his own religious choices and the way these can be satisfied.

Faced with similar cases, a comparative study makes it possible to test the degree of effectiveness of the basic human right to freely manifest one's faith, so as to be able to carefully assess what space may be recognized in court to the instruments and techniques of protection which antidiscrimination laws predispose to criminalize discrimination on religious grounds. This study, which could be useful with regard to the situations specifically considered here, that is to say, those where the religious identity of the worker is violated as the indirect or reflex effect of the assumption by the employer of decisions concerning the organization of an apparently neutral nature (such the prohibition of abstaining from work on the days sacred to one's religion etc.)³³⁴.

lavori, eguaglianza. Saggio sulle politiche antidiscriminatorie, MUP, Parma, 2006, p. 69; M. Aimo, *Le discriminazioni basate sulla religione e sulle convinzioni personali*, in M. Barbera (a cura di), *Il nuovo diritto antidiscriminatorio. Il quadro comunitario e nazionale*, cit., p. 43; L. Vickers, *Religious Freedom, religious discrimination and the workplace*, Hart Publishing, Portland, 2008; M. Ranieri, *L'abbigliamento nei luoghi di lavoro: dalla tuta blu al velo usa e getta*, WP C.S.D.L.E. “Massimo D'Antona”.IT - 100/2010.

³³⁴ Another situation (equally forbidden) is where the employer favours, when selecting an employee, one rather than another because of their religion, as well as some other possible risk factor (sex, place of origin, ethnic background, the colour of the skin); or, for the same reasons, offers different working conditions to a non-EU citizen, possibly taking advantage of their inability to make full use of their rights. German law, like Italian law, in line with the EU directive, allows employers to make differences in treatment on religious grounds (or reasons of personal belief) when such characteristics, “due to the nature of a job or the context where

it takes place”, are considered essential requirements and determining factors in carrying out a job (§ 8 Abschnitt 1). There is a discussion about the exact boundaries of the area of application of such a general exemption to the prohibition of discrimination as the § 8 Abs. 1, AGG (*Allgemeines Gleichbehandlungsgesetz*) does not clarify which “natures” and which “contexts” are important in order to justify the decision by the employer to demand of the employees “appartenance” to a specific creed. The problem has still not come before a court. However, the fact that the employment requirements are defined (in German and Italian law) as “essential” and a “determining factor” leads to the exclusion of the possibility that the exemption in § 8 Abs. 1, AGG may give rise to a broad interpretation. This means that the possibility of considering religion as an essential requirement and determining factor to carry out a job must be assessed with particular rigour and be allowed in particular limited cases: by way of example, it may be admitted that the employer, when employing a cook in a kosher restaurant, expects that the applicants will be Jewish, as this is a necessary premise to be able to prepare kosher food (see G. Thüsing, *Arbeitsrechtlicher Diskriminierungsschutz. Das neue Allgemeine Gleichbehandlungsgesetz und andere arbeitsrechtliche Beneidteilungsverbote*, C.H. Beck, München, 2007, p. 141). One may also agree with the decision issued by the District Court of Texas, which, considering that in that case the Muslim religion represented a necessary condition to respect the precepts of *Shari’a*, deemed that this religion constituted a bona fide occupational qualification (Kern v. Dynallectron Corporation 577 F. Supp. 1196, 1203 N.D. Tex. 1983). It is a question however, of a very particular occurrence: the Company Dynallectron claimed the existence of this requirement for employees working as helicopter pilots in Jeddah: they, in fact, flying over the area of the holy city, would have had to conform to Saudi law, which punishes access to religious sites by non-Muslims with decapitation. Since the religious requirement was strictly necessary to guarantee the safety of the pilots, the Court deemed it not discriminatory to dismiss a pilot who refused to convert to the Islamic faith. On this case see also B. W. Wolkinson, R. N. Block, *Employment law. The workplace rights of employees and employers*, Blackwell, Malden-Oxford-Melbourne-Berlin, 1996, pp. 109-110. In other cases, according to some opinions, on the other hand, it is certainly not admissible that the employment requirement is defined as “essential” and “determining factor”. A butcher, for example, would have no reason not to employ a person professing the Christian religion where it is considered that the religious precepts to which he is required to conform do not in any way impinge on the slaughtering of animals (as on the other hand, is the case in cultures such as Islam and Judaism as a Muslim or a

1.1 Protection from discrimination and religious organizations

The following reflection moves now to another aspect, no less problematic, of antidiscrimination law: work within the so-called ethically formed organizations EU law – which on this point shows a clear influence coming from the German experience – does not deny that for such organizations there is a need for a *lex specialis*, which, in order to guarantee the right to autonomous *organization*, allows them to make use of a sort of ‘free zone’ regarding the operativeness of the principle of non-discrimination. And to this end the directive grants States a broad range of freedom to introduce or keep in their respective legal systems special laws which allow them to make differences based on religion or specific personal beliefs which would otherwise be proscribed (C. 2 of art. 4 of Dir. 00/78).

The broadness of the possibilities to depart from the principle of non-discrimination envisaged by the EU directive also marks the text of the German legislation: in accordance with § 2 of section 9 of the AGG, religious communities – including institutions related to them regardless of their legal status – and the associations whose function is to practice a religion or a Weltanschauung, can exercise discriminatory practices towards their own employees based on their religion or Weltanschauung where one or the other of these characteristics, having taken into consideration the ‘identity’ of the respective religious or ideological community, represents a professional requirement ‘justified’ by the nature of the work, taking into consideration the right to self-determination due to the religious community or association or of the type of activity.

Jew can refuse on the grounds of their faith to handle pork, or meat not ritually slaughtered).

As we shall see later on, the most important development concerning the EU formulation is the reference to the right to self determination as a criterion for the assessment of lawfulness of the differential treatment³³⁵: the introduction of this criterion – it is appropriate to mention this as of now – is the result of a conscious choice in tune with the tendency to openness that the German system has always shown towards the protection of ideological organizations (*Tendenzschutz*). The clearest demonstration of this openness can be found in the exclusion or in the limitation of rights of participation and codetermination in some firms with ideological corporate purposes. As is widely known, a series of dispositions, most of which are currently in force, exonerate the employer from observing many of the laws on company statutes (BetrVG) and the law on *Mitbestimmung* (MitbG) with the clear intention of guaranteeing organizations the right to freely pursue their own ideological purposes³³⁶. Furthermore, in the German system, it has now become established in legal literature and case law that the ideological nature of an organization takes on importance not only as a basis for the exclusion of workers from codetermination, but also as a characteristic element of the working relationship likely to visibly alter the configuration of the contractual obligations of the worker.

³³⁵ See D. Belling, *Gestaltungsfreiheit und Gestaltungszwang bei der Umsetzung der Anti-Diskriminierungsrichtlinie 2000/78/EG im Hinblick auf das kirchliche Arbeitsrecht*, in “Neue Zeitschrift für Arbeitsrecht”, 16, 2004, p. 887; J. Jousen, *Die Folgen der europäischen Diskriminierungsverbote für das kirchliche Arbeitsrecht*, in “Recht der Arbeit”, 1, 2003, p. 32; P. Schnabel, *Die Richtlinie 2000/78/EG und das kirchliche Arbeitsrecht in Deutschland*, in “Neue Zeitschrift für Arbeitsrecht”, 39, 2008; G. Thüsing, D. Fink-Jamann, K. v. Hoff., *Das kirchliche Selbstbestimmungsrecht als Legitimation zur Unterscheidung nach der Religion: zum Spannungsverhältnis von kirchlicher Dienstgemeinschaft, verfassungsrechtlicher Autonomie und europäischem Diskriminierungsrecht*, in “Neue Zeitschrift für Arbeitsrecht”, 40, 2009, p. 208.

³³⁶ For example, C. 2 of § 118 of the BetrVG (*Betriebsverfassungsgesetz*) consists of a special exemption from the entire law for religious communities and their charitable and educational institutions.

In the case of religious communities, the wholly peculiar nature of the employment relationship is explained in the organizational freedom constitutionally guaranteed to churches (art. 140 GG and 137, Abs. 3 WRV). It is widely held that the protection of these freedoms may legitimate the religious institutions to make contractual claims that their workers have private lives carried out in compliance with the principles basic of the ecclesiastical doctrine of their faith³³⁷. In addition to duties inherent to any obligations (diligence, good faith), employees working within these organizations are required to have a duty of loyalty (*Loyalitätsobliegenheit*) that adopts completely distinctive characteristics, having anything to do with the work outlined in the contract, but affects, as a whole, the behavior of the worker (even outside work).

When this obligation may be invoked by the employer to demand behavior that goes beyond the sphere of the performance of work-related activities is a question on which there are still some significant uncertainties. According to the opinion traditionally shared (also) by the oldest BAG case law – and still referred to in a number of recent rulings (see below) – accentuation of the bond of trust depends on the existence of elements of “affinity” (“*Nähe*”) between the work activity and the ideal ultimate purposes of the organization, so much so as to reasonably affirm that the worker, with regard to the role covered and the function carried out, becomes a *Tendenzträger* and therefore finds himself in the condition of being able to identify with the purposes pursued by the institution³³⁸.

³³⁷ R. Richardi, *Arbeitsrecht in der Kirche. Staatliches Arbeitsrecht und kirchliches Dienstrecht*, C.H. Beck, München, 2009, p. 85: “Sie sind befugt, der Gestaltung ihres Dienstes das besondere Leitbild einer kirchlichen Dienstgemeinschaft to the Mitarbeiter zugrunde legen”.

³³⁸ B. Rüthers, *Tendenzschutz und Kirchenautonomie im Arbeitsrecht*, in “Neue Juristische Wochenschrift”, 42, 1978; H. Buchner, *Tendenzförderung als arbeitsrechtliche Pflicht. Zur Bindung des Arbeitnehmers an die Unternehmenszielsetzung*, in “Zeitschrift für Arbeitsrecht”, 9, 1979; T. Mayer-

The German Constitutional Court, in an important judgment of June 4, 1985, resized remarkably the range of this approach, clearly affirming that to establish whether and how in an employment relationship within ecclesiastical institutions it is permissible to grade the (*Abstufung*) intensity of the bond of trust, it is necessary to attribute decisive importance to the consideration of the right to organizational freedom to safeguard religion envisaged by the constitution³³⁹.

In other words, according to the Karlsruhe judges, there needs to be ample freedom for the Churches to determine “what is indispensable to guarantee their credibility and the spread of the religious message”, how to make use of the activities of their own employees for the pursuit of their own ends, “what is to be understood by ‘affinity’ for the Church”, what are the essential principles of doctrine of faith and morals” to which the employees should conform and, lastly, “when damage – possibly serious – can befall these principles”.

On this, the problem which has to be faced is whether a “constitutionally oriented” reading of the German legislation introduced by the AGG, able to leave ample freedom in the exercise of otherwise proscribed discrimination, may be considered in tune with the pursuit of the purpose of the directive and respect for a number of principles of EU law. Secondly we shall see if there are plausible reasons to envisage also in our legal system an exegetic solution fully respecting the organizational independence guaranteed to religious communities.

Maly, *Loyalitätspflichten von Arbeitnehmern im Kirchendienst*, in F. Pototschnig, A. Rinnerthaler (Hrsg.), *Im Dienst von Kirche und Staat. In memoriam Carl Holböck*, Verlag des Verbandes der Wissenschaftlichen Gesellschaften Österreichs, Wien, 1985, p. 619.

³³⁹ It is significant the following passage: “Welche kirchlichen Grundverpflichtungen als Gegenstand des Arbeitsverhältnisses bedeutsam sein können, richtet sich nach den von der verfassten Kirche anerkannten Maßstäben”.

1.2. The definition of “religion” and “*Weltanschauung*”

It is worthwhile pondering briefly on a preliminary question of particular importance in order to establish the exact limits to the field of application of the ban on discrimination in dir. 00/78 and in the legislation of enactment (and consequently also that of differences in legitimate treatment), i.e. that relating to the elements of identification required to define “religion” and “personal conviction”. This problem has brought about a certain interest in German courts, even if one must admit that in this system – like elsewhere – there is not still a safe point of reference to be able to state with certainty which of the religions recognized throughout the world can enjoy the protection envisaged by the constitutional and antidiscrimination legislation. The absence of a definition of the concept of religion at EU level makes it particularly complicated to interpret and prevents an opinion on the judgments courts make on specific organizations – such as Scientology³⁴⁰ – in the field of guaranteed constitutional protection of religious ideological freedom.

In any event, the fact that the EU legislator resorted to an extremely ambiguous and controversial formula to define the second factor of prohibited discrimination, i.e. on the basis of

³⁴⁰ BAG (March 22, 1995) denied in this case the status of religion, legitimating the practice followed by many German Länder of requiring for public employment the disclosure of affiliation to Scientology. Cfr. G. Thüsing, *Ist Scientology eine Religionsgemeinschaft?*, in “Zeitschrift für evangelisches Kirchenrecht”, 45, 2000, p. 592. The opposite view was taken however by the Federal Administrative Court in a decision of 15 December 2005. For a commentary on this ruling, see D. Zacharias, *Protective Declarations Against Scientology as Unjustified Detriments to Freedom of Religion. A Comment on the Decision of the Federal Administrative Court of 15 December 2005*, in “German Law Journal”, 10, 2006, p. 838. In the past the German Constitutional Court had used an approach based on analogy, having no doubt that Bahà’i was to be considered a religion (Judgment of February 5, 1991 – 2 BvR 263/86, BVerfGE 83, 341).

Weltanschauung (in Italian “*convinzioni personali*”), as we shall shortly see, allows only a partial solution to the interpretative problems arising from the term “religion”.

Anyway, in the normative context in question, in order to shed light on the definition of this expression particular importance may be given to the development of doctrine and case law based on the interpretation of the right to freedom of religion protected under art. 4 of the German Constitution.

The constitutional case law of the *Bundesverfassungsgericht*, starting from a judgment of 1975, interprets the freedom of religion, no longer in a sense, as happened in the past, rooted to a strong confessional exclusiveness³⁴¹, but rather from a more open point of view respecting religious and cultural pluralism³⁴². This is an approach now broadly shared in the legal literature, according to which the *Grundgesetz*, excluding every differentiation in protection for the different religious faiths, imposes, in this regard, an attitude of objectivity and impartiality. It is therefore impossible to adopt an interpretation that would favour Christianity³⁴³, and so also, that of theologians who inquire into the essence and origin of a religion.

The question is however if, in order to define the concept of “religion” used by the EU legislation and possibly identify its key features, it is possible to turn to constitutional doctrine.

If so, the consequences are not negligible³⁴⁴. First of all, the *proprium* of a “religion” must be recognized in the ability

³⁴¹ In the older BVerfG rulings there is a clear reference to the history of western Christianity: see in particular BVerfG v. November 8, 1960 – 1 BvR 59/56, BVerfGE 12, 1, 4; BVerfG v. October 16, 1968 – 1 BvR 241/66, BVerfGE 24, 236, 246.

³⁴² BVerfG v. December 17, 1975 – 1 BvR 63/68, BVerfGE 41, 29, 50.

³⁴³ S. Muckel, *Religiöse Freiheit und staatliche Letztentscheidung – Die verfassungsrechtlichen Garantien religiöser Freiheit unter veränderten gesellschaftlichen Verhältnissen*, Duncker & Humblot, Berlin, 1997, p. 131.

³⁴⁴ B. Pieroth, C. Görisch, *Was ist eine „Religionsgemeinschaft“?*, in “Juristische Schulung”, 42, 2002, pp. 937, 938.

to represent an overall view of the world and answer the basic questions concerning the prime and ultimate meaning of things, the values, the ideals, norms and behavior: what is the origin of the world? Why are we born and why must we die? What does determine the destiny of humanity? Which rules of ethical behavior do I have to observe?

Secondly, it should not be important how and with how much intensity a “religion” addresses these questions³⁴⁵. It is absolutely irrelevant whether a religion traces back the origins of man and the world to the idea of a creator God, or, as sometimes happens, adopts a purely mystical-knowledge dimension. Otherwise, some religions which, while having hundreds of millions of followers, refute the concept of God, would be excluded from application of the principle of non-discrimination. An example is Buddhism³⁴⁶, which accepts a supreme spiritual reality (which it calls “great being” or “Transcendent force” or “Supreme spiritual authority”), and, like many other religions, has an idea of ethics and offers a journey of salvation which allows man to reach liberation from suffering and existential crisis.

Vice versa, a religion, in order to be considered such, must make an effort in some degree to give an answer to the ultimate problems of human existence, and possibly offer a series of norms of ethical behavior to face daily life and extreme situations, especially from the perspective of non-earthly salvation. This does not occur in agnosticism since those who adopt an agnostic position usually, elude or remove these questions and sustain that an answer to them is not humanly knowable³⁴⁷. It would not therefore be unreasonable

³⁴⁵ T. Fleischer, *Der Religionsbegriff des Grundgesetzes. Zugleich ein Beitrag zur Diskussion über die “neuen Jugendreligionen”*, Brockmeyer, Bochum, 1989.

³⁴⁶ G. Thüsing, *Arbeitsrechtlicher Diskriminierungsschutz*, cit., p. 76.

³⁴⁷ See in the opposite sense M. F. Fernández López, F. J. Calvo Gallego, *Directive 2000/78/EC and the prohibition of discrimination based on religion*, in “Temas Laborales”, 59, 2001, p. 125.

to exclude agnostic organizations from the privileges which the EU legislation envisages for religious denominations (§§ 1.1 and 4.-4.3).

In any case, it should be observed that questions on the interpretation of the notion of “religion” do not become any less important than another concept that the European Parliament recalls to describe the second factor of prohibited discrimination, i.e. that of *Weltanschauung* (in Italian “*convinzioni personali*”). It is indeed debated whether this concept may take on an all-encompassing range and include, therefore, any kind of expression of freedom of opinion, including those which cannot be given the status of religion.

Actually, neither the ECHR nor the case law of the European Court of Human Rights seem to shed much light on the matter: the former, even though it sanctioned and consecrated the freedom of conscience alongside the freedom of religion (art. 9), fails to indicate what is meant by the expressions “religion” and “creed” (*Weltanschauung*) and which ideological positions could come under these terms. The Strasbourg Court, however, provides very general indications in this regard, only stating that the term “creed” alludes only to those convictions that take on “a certain degree of bindingness, seriousness, coherence and meaning”³⁴⁸.

For a solution to these interpretative problems, one could however, emphasize the importance of the semantic element and interpret the expression *Weltanschauung* referred to in directive 2000/78/CE in strict connection with the formula that immediately precedes it. The concept expressed by this term is different from the formulae used in other legal systems, such as the Dutch “*overtuiging*” (conviction), English “belief”, Italian “*convinzione personale*”, French “*conviction*”, Spanish “*convicciones*”, Swedish “*övertygelse*” (conviction) because it does not correspond vaguely to any ideological

³⁴⁸ Judgment of February 25, 1982, *Campell and Cosans v. United Kingdom*.

manifestation, nor can it necessarily be identified with the “great ideologies”³⁴⁹. Within this term it must thus be included only those philosophical (or spiritual) convictions which in some way have to do with the fundamental problems of existence and also touch upon the religious sphere³⁵⁰. In this sense the concept of *Weltanschauung*, while having secular roots, shows some analogies with the notion of religion. In any case, a confirmation of the close connection between these notions emerges not only from the original formulation of the draft directive – where, not by chance, the expression “*religiöse Weltanschauung*” appears – but also in the report accompanying the law which transposed directive 2000/78/CE in Austria (ErlRV 285 BlgNR 22. GP 11), where it is clearly stated that the expression “*Weltanschauung*” is strictly connected to “religion”.

So, it seems completely legitimate to doubt that the field of action of anti-discrimination legislation may extend beyond discrimination arising from reasons of religious and philosophical conviction so far as to include those acts based on reasons of a political nature or trades unions³⁵¹. And this was also because, as was rightly taken into consideration, this kind of extension would come into conflict with the need to protect individual autonomy, which, at least in the private

³⁴⁹ G. Thüsing, *Diskriminierung wegen politische Überzeugung, Religion und Weltanschauung*, in T. Tomandl, W. Schrammel (Hrsg.), *Arbeitsrechtliche Diskriminierungsverbote*, Braumüller, Wien, 2005.

³⁵⁰ J. Egger, *Die neuen Antidiskriminierungsrichtlinien der EU*, in “Das Recht der Arbeit”, 5, 2003.

³⁵¹ On this see the recent ruling of the *Arbeitsgericht* of Berlin of July 30, 2009 (33 Ca 5772/09) according to which discrimination at the selection of a worker who had previously worked at the Ministry of Security of the State (Stasi) of the former German Democratic Republic (and had therefore identified with the Marxist-Leninist ideology) did not constitute a discrimination based on *Weltanschauung*.

sector, must be protected from too invasive and anti-discrimination law³⁵².

2. Freedom of religion, employment contracts and *Weisungsrecht*.

Having clarified this, we now proceed to the examination of the questions which arise when the employer uses his managerial power over workers, in the workplace and during working hours, to impose or prohibit actions to preclude the exercise of the right to freedom of religion. Even before the AGG, the German courts have had several occasions to pronounce on a series of paradigmatic hypotheses: where the employer forbids the workers to wear religious apparel in the workplace, or stops him from abstaining from work on the days sacred to his religion, or from interrupting his work activity to carry out some duty essential to his faith, such as saying prayers³⁵³.

In all these cases, as emerges from the rulings of the German courts, there is clearly a potential conflict between the protection of the fundamental right to the freedom of religion of the individual worker and the need to protect the material interest of the employer. The sacrifice of the rights of the worker – as will emerge from scrutiny – can be legitimate, while the exercise of the faculty of freedom of religion is absolutely incompatible with the fulfilment of the obligations of the employment contract and, in particular, with the satisfaction of the contribution of the employer to usefully

³⁵² U. Runggaldier., *Das neue Antidiskriminierungsrecht der EU* - Bestandsaufnahme und Kritik, in S. von Kalss, C. Nowotny, M. Schauer (Hrsg.), *Festschrift Peter Doralt Zum 65. Geburtstag*, Manz, Wien, 2004, pp. 524 ss.

³⁵³ On some recent case law see M. Fuchs, *The transposition of EU Antidiscrimination Legislation into German Labour Law*, WP C.S.D.L.E. “Massimo D’Antona”. INT – 53/2007.

coordinate the worker’s performance within the production framework. In any case, managerial power too, in whatever way it is manifest, certainly has a constitutional basis, both in the German system and in our own, in the freedom of enterprise.

This does not mean that the legitimacy of the organizational impositions put in place by the employer must not necessarily be the result of a balance between the two conflicting fundamental rights that come into play here, having thus to make sure that the right of the worker to profess his own faith freely be limited more than is strictly necessary to guarantee the minimum space necessary for the freedom of enterprise.

On this subject an examination of the case law of the German experience can serve to show the legal bases in which the judge can ground his reasoning with regard to the managerial power of an employer and, especially, to assess the practicability of solutions able to guarantee, through an acceptable compromise between the opposing needs, respect for the modal rule hinted at above. From this point of view, the importance of the right of workers – which the German courts deduce from the good faith clause – to claim, where possible, that their employer, before firing them, has to find alternative solutions able to guarantee respect for their religious convictions (duty of reasonable accommodation)³⁵⁴.

A legal case which caused a sensation concerns a shop assistant employed in a department store who, after

³⁵⁴ For an examination of the duty of reasonable accommodation see L. Waddington, A. Hendriks, *The Expanding concept of Employment and Discrimination in Europe. From Direct and Indirect Discrimination to Reasonable Accommodation Discrimination*, in “The International Journal of Comparative Labour Law and Industrial Relations”, 3, 2002, pp. 403–427. See also G. Thüsing, *Following the U.S. Example: European Employment Discrimination Law and the Impact of Council Directives 2000/43/EC and 2000/78/EC*, in “The International Journal of Comparative Labour Law and Industrial Relations”, 2, 2003, pp. 187, 200; M. Fuchs, *op. cit.*, p. 5.

converting to Islam and claiming the right to wear a shawl as a headcovering, was fired for just cause³⁵⁵ (*personenbedingter Kündigungsgrund*) within the meaning of C. 1 § 2 of the KSchG³⁵⁶. *Hesse Landesarbeitsgericht*³⁵⁷ does not question the legitimacy of the dismissal: the sphere of self-determination of the worker regarding apparel is limited by bona fide contractual obligations, cf. § 242 of the BGB, and by the powers of the employer, who, even without having recourse to a dress-code (*Kleideordnung*), may expect all employees to observe forms of presentation appropriate to the expectations and the sensitivities of the customers. Therefore the freedom of the worker to freely profess his faith would be surrendered

³⁵⁵ In a similar case, some years before, a Sikh worker had been fired for going to work wearing a turban and not respecting a regulation of the employer's which expressly forbade it. The court of first instance in Hamburg, pronouncing on the legitimacy of the dismissal, had no hesitation in upholding the petition of the worker. The prohibition imposed by the employer limited the employers right to exercise a faculty arising from the right of religious freedom (the choice of clothing to wear) was deemed to be totally unrelated to needs associated with the organization or production of the employer's and there was no justification on the grounds of hygiene or health. ArbG Hamburg, Urteil v. 3.1.1996 – 19 Ca 141/95 – in: *ArbuR* 1996, S. 243f. Cf. also ArbG Frankfurt, Urteil v. 24.6.1992 – 17 in: *AiB* 1993, S. 472. On the subject see B. Kraushaar, *Die Glaubens- und Gewissensfreiheit der Arbeitnehmer nach Art. 4 GG*, in "Zeitschrift für Tarif-, Arbeits- und Sozialrecht des öffentlichen Dienstes", 5, 2001.

³⁵⁶ There is an ample literature on the case. See G. Preis, S. Greiner, G. Thüsing (articles in "Das Recht der Arbeit", 2003 and in "Neue Juristische Wochenschrift", 2003); N. Hoevens, *Kopftuch als Kündigungsgrund*, in "Neue Zeitschrift für Arbeitsrecht", 13, 2003; G. Thüsing, D. Wege, *Kündigungsschutz und Schutz vor rassistischer Diskriminierung als Rechtsinstitute zur Sicherung der Religionsfreiheit in Deutschland und im Vereinigten Königreich*, in "Zeitschrift für Europäisches Privatrecht", 2, 2004, pp. 404-23; D. Schiek, *Just a piece of cloth? German courts and employees with headscarves*, in "Industrial Law Journal", 1, 2004, pp. 68-73; U. Sacksofsky, *Religion and equality in Germany. The headscarf debate from a constitutional perspective*, in D. Schiek, V. Chege, *European Union Non-Discrimination Law Comparative perspectives on multidimensional equality law*, Routledge-Cavendish, London-New York, 2009

³⁵⁷ 3 Sa 1448/00, "Neue Juristische Wochenschrift", 2001, p. 3650.

whenever the employer might reasonably fear that the use of “provocative” clothing such as the veil may determine a decline in sales and so be detrimental to the freedom of firm and to the professional liberty of the employer (Art. 14, §§ 1 and 12, c. 1 of the GG).

These arguments did not wholly convince the Federal Employment Tribunal, which, at appeal, with the ruling of the October 10, 2002, declared illegitimate the dismissal. First of all, it considered groundless the justification at the basis of the dismissal whereby the worker is not suited to the job if the face is covered: according to the *Bundesarbeitsgericht* in this case the employer could very well have obliged her in her request and allocated her to tasks compatible with her religious needs and not bringing her into contact with customers.

Furthermore, the BAG, in order to prohibit employers dictating arbitrary rules on religious apparel, emphasizes that his managerial power (*Weisungsrecht*) – in addition to limitations provided for by the law, from and collective and individual employment agreements – is subject to some limitations of a general nature, arising from equity and from the good faith clause provided for by §§ 315 Abs. 1 242 of the BGB³⁵⁸. What should be noted is that in this case good faith and equity are used as vehicles to affirm the direct applicability of the constitutional rights of freedom (*Drittwirkung*). Through these in fact the judge can from time to time reconcile the freedom of the worker to profess his religion (Art. 4, §§ 1 and 3, § 3 of the GG; Art. 9 ECHR) with the freedom the company and the professional freedom of the employer (Art. 14, §§ 1 and 12, c. 1 of the GG) or, where necessary, establish which of these goods, protected by rules

³⁵⁸ Referring to their own previous case law.

of equal constitutional standing, must have prevalence over the other³⁵⁹.

In this basis, the Court tries to mitigate the scope of the ruling issued by the court of first instance, but leaves open the possibility that in future the freedom of the worker to wear religious apparels at the work place will be sacrificed to guarantee the fulfilment of the employers' entrepreneurial aims. This can happen if the employer can prove that the exercise of this freedom has negative consequences on sales and seriously puts at risk entrepreneurial freedom as protected under Art. 12 of the GG.

The same canon of judgment which inspired the BAG was adopted in another more recent case whereby the Hamm Landesarbeitsgericht heard case on appeal presented by a Baptist worker fired because he refused to do a Sunday shift³⁶⁰. The worker justified this refusal stating that the observance of his faith – as well as his conscience – obliged him to attend Sunday service and to the day of rest and that the right of liberty under Art. 4 of the GG could not take second place to a vague suspicion that the commercial interests of the employer might be damaged, and that the employer had to show the actual damage to sales incurred by his absence from work. Vice versa, the employer, on his part, held principally that it was impossible to offer the employee an alternative position in the firm which did not involve Sunday shift work and that, anyway, members of the Baptist Church were not forbidden to work on Sunday.

The Court of Appeal rejected this line of defence, arguing, first of all, that the right to freedom of religion under Art. 4 of the GG includes the possibility to align behavior in one's social life with the ethical values and to interior convictions of

³⁵⁹ See also BVerfG 18. Oktober 1993 – 1 BvR 1044/89 – BVerfGE 89, 214. In doctrine, T. Dieterich, *Erfurter Kommentar zum Arbeitsrecht*, C.H. Beck, München, 2000.

³⁶⁰ Judgment of November 8, 2007 15 Sa 271/07.

one’s creed. Art. 4 protects all practices upheld by the prescriptions of one’s religious faith even if they are not universally shared by the religious community, so much so that the judge has no power to rule on such matters (point 49).

Secondly, the LAG, again from the perspective of harmonizing Art. 4 with Art. 12 of the GG, has recourse to the principle that legitimates dismissal only as an *extrema ratio*, affirming that the employer, having ascertained the impossibility of employing the worker in the sector he had been hired for, in order to respect his religious convictions, ought to have examined all the alternative possibilities of relocating him in another department which did not involve Sunday shifts (point 56) or, in the final analysis, ought to have exonerated him from Sunday shifts without pay (point 57). In this way, the Court while not going so far as to impose adjustments of the working timetable to accommodate different religious needs, as happens in the United States, admits that, in order to avoid dismissal, the employer must make a real effort to re-allocate the dependent worker³⁶¹. Even if it does not say so, in this case, the Court, in order to solve the conflict between fundamental rights uses the principle of proportionality, holding that the sacrifice inflicted on the right to freedom of religion is not justified in terms of inevitability.

This ruling shows an opening up in favor of a worker’s needs connected with belonging to a specific faith, considering also that, in the past, judges had sometimes been less indulgent, acknowledging the supremacy of the interest of the employer over the right to freedom of religion of the worker. An example is the case of a number of years ago

³⁶¹ However, in this cases, it is important to note that the employer, having received notice from the employee (regarding the impossibility of working on the day set aside by his religion as the day of rest), could have avoided any damage to the firm by changing the distribution of the shifts.

where the Hamm LAG rejected the claim of a Turkish Muslim citizen who claimed from his employer the acknowledgement of his right to abstain every day from work over a specific period of time (between six and eight in the morning) and for a limited period (from one to three minutes) in order to be able to carry out morning prayers. On this occasion the employer sustained, among other things, that upon signing the employment contract a tacit renunciation of the worker's right to freedom of religion was implicit.

The *Hamm Landesarbeitsgericht*³⁶², while considering this reasoning groundless³⁶³, rules out that the employer is required to guarantee the faculty of praying when this could jeopardise the efficient operation of the company's organization³⁶⁴. According to the opinion of the Court, the right to abstain from working for prayer constitutes the expression of the right to the freedom of religion of workers (Art. 4, §§ 1 and 2, of the GG)³⁶⁵ and is subordinate as such to the observation of the same constraints to which that right is subject, i.e. those deriving from observing the rights to the professional freedom and ownership likewise guaranteed constitutionally (Art. 14, §§ 1 and 12, §. 1 of the GG).

This is also the opinion of the same judges in a similar case which came up a short time afterwards³⁶⁶, whereby it was specified that the right of the worker to absent himself from

³⁶² LAG Hamm January 18, 2002 - 5 Sa 1782/01.

³⁶³ Such a renunciation is allowed because the provision of a position recognised by a fundamental right represents an essential way of exercising the fundamental right but in this case the situation of contractual imbalance existing between the parties in the work relationship demands that the worker explicitly express his intention. See sub art. 10 GG, T. Dieterich, *Erfurter Kommentar*, cit., Rdnr. 63. LAG Düsseldorf, BB 1964, 597

³⁶⁴ In this sense see H. v. Mangoldt, F. Klein, C. Starck (Hrsg.), *Das Bonner Grundgesetz*, Vahlen, München, 2000, Art. 4 I, 2 GG Rdnr. 116.

³⁶⁵ In doctrine C. Stark, sub Artikel 4, in H. v. Mangoldt, F. Klein, C. Starck (Hrsg.), *Das Bonner Grundgesetz*, cit.

³⁶⁶ Judgment of February 26, 2002 - 5 Sa 1582/01.

the place of work to carry out a prayer of short duration³⁶⁷, while being constitutionally safeguarded because of the direct application of fundamental rights under Art. 4 of the GG in relationships between private individuals (*Drittwirkung*), it places itself in contrast with the guarantees provided for by Art. 2 §§1 and 14, §§ 1 and 12, § 1 of the GG when the employee leaves the place of work without discussing it beforehand with his superior. And in fact the employer must be placed in a condition where he can determine, autonomously and according to his own objective needs, the exact time when afternoon prayers can take place. This is in harmony with the precepts imposed by the Muslim religion as afternoon prayer need not necessarily to be performed at a specific moment during the day but can be carried out a time that should be established according to the position of the sun.

Ultimately, the indications coming from German case law appear of particular importance as they confirm that in the case of conflict between the constitutional right to freedom of religion and the interest of the employer in the fulfilment of the obligations of the employment contract there is no general rule which makes it possible to identify automatically the interest which should be made to prevail and which should be sacrificed. Generally speaking, ideological freedom, whatever its expression, may not prejudice the fulfilment of work requirements which must be usefully inserted into the organization of the firm by means of the managerial power of the employer. However, German case law – and, in particular, the BAG – does not doubt that the good faith (*Treu und Glauben*) and equity (*Billigkeit*) referred to in § 242 and § 315 of

³⁶⁷ Also from a constitutionally oriented interpretation of the general clause of good faith (§ 242 BGB) it can be deduced that the fundamental rights of the worker can form an obligation on the employer to consider the interests of the other party (T. Dieterich, *Erfurter Kommentar*, cit., Rdnr. 21. LAG Düsseldorf, BB 1964, 597).

the BGB can be invoked to rationalize way the employer exercises the power to deduce each time the limit beyond which the exercise of employers' power ceases to be legitimate or, more exactly, possible in legal terms. When two fundamental rights are weighed in the balance, as in this case, especially the worker's right to freedom of religion and the entrepreneurial freedom of the employer, recourse to the *Generalklauseln* emerges in reality as a useful instrument to find an acceptable compromise, capable of partial sacrifice but also of safeguarding the essential core of each.

What is surprising is that in their decisions, the judges, in order to identify each time the point of balance between the conflicting interest, rather than avail themselves of the conceptual categories set out by the anti-discrimination laws, tend – even after the AGG – to relegate the equality principle to the background, without considering that it can intervene in the same balancing process being carried out within an assessment of proportionality³⁶⁸. And yet there is no doubt that prohibitions on apparel and the other rules of an organizational nature established by the employer (such as the prohibition from abstaining from work on days sacred to one's religion, etc.) can have a potentially discriminatory impact in so far as they place at a particular disadvantage workers belonging to a specific religion or followers of a specific ideology. In the case of the veil, then, as the prohibition can become a barrier to the entry of Muslim women to the work market, one might criticize the fact that the BAG did not stop to consider its disparate impact also in relation to the principle of sex equality³⁶⁹. Above all, assessment of the legitimacy of the restrictions to freedom of

³⁶⁸ D. Schiek, *op. cit.*, p. 72. And yet, the Court some time ago recognised that women are safeguarded at constitutional level also against indirect discrimination. See for example BVerfGE 113, 1; 97, 35, 43; 104, 373, 393.

³⁶⁹ S. Fredman, *Double Trouble: multiple discrimination and EU law*, in "European Anti-Discrimination Law Review", 2, 2005, p. 13.

religion introduced by an employer must be based on the application of a test of proportionality and legitimacy as envisaged in EU law and can have a positive result only when different treatment is “objectively justified by a legitimate aim and the means used to achieve it are appropriate and necessary”. It is therefore necessary to check (a) that the detrimental effect produced by the adoption, with no differentiation among the workforce, of dress codes or rules of an organizational nature is justified by the pursuit of an aim worthy of protection, (b) secondly, that the measures adopted are suitable in the light of the proportionality principle and so are the only ones practicable to achieve the final aim. The reasoning used by judges sometimes subtends this double assessment, and sometimes also raises some doubt about the restrictive criteria developed by community case law in the assessment of cases of justification of indirect discrimination. In particular it will be difficult to admit the legitimacy of an indirectly discriminatory act if the case concerning the justification of the discrimination is based exclusively on mere convenience for the firm and the aim of maximizing profit – as in the BAG ruling, or at any rate, if the employer fails to show that there is a direct cause and effect relationship between the rules introduced and the objective it means to pursue.

3. Freedom of religion, Lay education and employment law

Something on the same lines can be said when considering what type of protection is necessary for workers in the public sector on the subject of religious precepts. The classic example is where the prohibition of displaying religious symbols is imposed on teachers in state schools: in this case however, the conflict with the teacher’s freedom of religion – and indirectly with equality – is no longer the freedom of a

firm (and so no longer its economic interests), but the negative freedom of religion of the students and their parents of different religious affiliation, who demand not to have their sensitivities “upset” by the display of a religious symbol: in a word therefore, the principle of the religious neutrality of the state (*staatlichen Neutralitätsgebot*).

In a case also well-known in Italy, an elementary and middle school teacher was not allowed to teach in a state school in Land Baden Württemberg after she insisted on wearing a foulard during lessons; behavior deemed to be in conflict with the principle of lay education. Administrative judges rejected the position of the teacher, observing that the use of the veil, due to its highly symbolic value, could influence the religious orientation of the students and so be in conflict with the negative freedom of the pupils and with the principle of neutrality of the state in the field of religion. The German Constitutional Court³⁷⁰, however, upheld the appeal affirming that the failure to employ the teacher – in the absence of a law that forbids the use of the veil – violates the right of equal access to all state jobs in connection with the right to freedom of faith and religious practice (Art. 33, § 2 where connection with Art. 4 § 1 and 2 of the GG). As it has been severally underlined, the compromise adopted by the constitutional Court is a type of compromise that only formally protects the religious choices of the teacher³⁷¹. And

³⁷⁰ Judgment of September 24, 2003, BVerfGE 108, 282–340 – No. 2 BvR 1436/02.

³⁷¹ See S. Baer, M. Wrase, *Staatliche Neutralität und Toleranz: Das Kopftuch-Urteil des BVerfG*, in “Juristische Schulung”, 4, 2003, pp. 1162–6. R. Dübbers, Z. Dlovani, *Der Kopftuchstreit vor DEM Bundesverfassungsgericht – ein Zwischenspiel*, in “Arbeit und Recht”, 1, 2004, pp. 6–11; J. Ipsen, *Karlsruhe locuta, causa non finita. Das BVerfG in so genannten Kopftuch-Streit*, in “Neue Zeitschrift für Verwaltungsrecht”, 10, 2003, pp. 1210–13; I. Gallala, *The Islamic headscarf: An example of surmountable barrier between Sharia and the fundamental principles of Europe*, in “European Law Journal”, 5, 2006, pp. 593–612; U. Häußler, *Leitkultur oder Laizismus?*, in “Zeitschrift für

in fact for the Karlsruhe judges the freedom of religion does not necessarily imply the right of a state school teacher to wear the veil during lessons; and in any case, prohibiting the display of religious symbols must have a basis in law and cannot be deduced in an interpretation based on the principle of neutrality. In this way, the Court leaves it free to States to choose to privilege mutual co-existence and tolerance between religions or to attribute maximum importance to the principle of the neutrality of schools.

It should be emphasized that the German constitutional court, while not taking up a clear position on the problems connected to the prohibition of the use of the veil, shows a certain sensitivity to the questions when it comes to sexual discrimination. In the past, only the European Court of Human Rights had touched upon this area, revealing furthermore a substantial degree of hypocrisy. In particular, adopting a widespread conviction in public debate, it had considered that the fact of wearing the veil was difficult to reconcile with the principle of the equality of the sexes by virtue of the conviction that it “passes on a message of submission, violence and intolerance, incompatible with the basic values of a democratic society”³⁷². This did not convince the *Bundesverfassungsgericht*, which ruled out that discrimination

Ausländerrecht und Ausländerpolitik”, 1, 2004, pp. 6-14; F. Hufen, *Der Regelungsspielraum des Landesgesetzgebers im Kopftuchstreit*, in “Neue Zeitschrift für Verwaltungsrecht”, 4, 2004, pp. 575-8; G. Neureither, *Ein neutrales Gesetz in einem neutralen Staat*, in “Zeitschrift für Rechtspolitik”, 36, 2003, pp. 465-8; J. Rux, *Kleiderordnung Gesetzesvorbehalt und Gemeinschaftsschule*, in “Zeitschrift für Ausländerrecht und Ausländerpolitik”, 1, 2004, pp. 14-21; U. Sacksofsky, *Die Kopftuch-Entscheidung – von der religiösen zur föderalen Vielfalt*, in “Neue Juristische Wochenschrift”, 56, 2003, 3297-301; C. Skach, *Freedom of religion—state neutrality—public order—role of international standards in interpreting and implementing constitutionally guaranteed rights*, in “American Journal of International Law”, 1, 2006, pp. 186–96.

³⁷² Sahin v. Turkey n. 44774/98 judgement of November 10, 2005, §§ 105 e 106. See further Dahlab v. Switzerland n. 42393/98 judgment of February 15, 2001.

can be invoked to justify the prohibition of an alleged form of sexual differentiation. In fact given the remarkable variety of meanings that the veil can have, for the Court, it would be reductive to identify it as a symbol of oppression and submission of women (points 51 and 52): in addition to express the desire to follow the precepts concerning the apparel imposed by one's religion, the veil can be interpreted as a sign of respect towards the traditions of one's community.

From this point of view, the conclusions reached cannot be faulted considering that sociological studies show that most of the time the decision about wearing this type of clothing is not imposed at all but is the result of the spontaneous decision of a woman to refuse to be considered an object of sexual desire. Furthermore, even if one wishes to attribute to the veil the symbolic value that the European Court arbitrarily assigns to it, it seems difficult to hypothesize that sexual discrimination may consist in an act of omission, which is that of not forbidding the veil in state school teaching³⁷³.

It is interesting to point out that, in the light of such a judgment, in one of the eight states which have decided to introduce a law prohibiting the display of religious symbols, namely North Rhine-Westphalia, there is the case of a teacher who was sacked for wearing, in place of the veil, a red hat that completely covered her hair, the hairline and the ears³⁷⁴, violating in this way the prohibition expressed in §§ 57 and 4,

³⁷³ See T. Loenen, *Approaching the intersection of sex, religion and race under the European Convention on Human Rights and EC equality Law*, in D. Schiek, V. Chege, *European Union Non-Discrimination Law Comparative perspectives on multidimensional equality law*, cit., pp. 313, 322.

³⁷⁴ Also in another similar case the Court of First Instance of Wuppertal with a judgment of July 29, 2008, considered justified the dismissal of a teacher who, despite having received a verbal warning, wore the Islamic veil during lessons, violating the prohibition under § 57 §§ 4, phrase 1 SchG NW.

sentence 1 of the Act of that Land. At the appeal court, the teacher, after losing the case at the court of first instance³⁷⁵, sustained that she had worn the hat only to follow the fashion, claiming that her behavior had no religious meaning; and also claimed she was victim of a violation of her rights of the person and freedom of employment under Art. 2, §§ 2 and 12, § 1 of the GG. The teacher’s claim was rejected by the Düsseldorf LAG with a judgment of April 10, 2008 where it was clear that the sacrifice of the freedom of the teacher to manifest her religious belief in order to protect the lay spirit of the school constitutes the fruit of a clear decision from the State of North Rhein-Westphalia (§§ 57 and 4, sentence 1 SchG NW)³⁷⁶, which, in the wake of the statements of the Constitutional Court, aimed to favour the right to the negative liberty of faith of pupils, the rights of parents to education under 6, § 2 of the GG and the educational mission of the state under Art. 7 § 1 of the GG concerning the positive liberty of the religious rights of the teachers (Art. 4 GG)³⁷⁷.

The ruling merits a brief mention here because of a few of its more significant passages. The questions the judges concentrate on – furthermore also reiterated and solved in the same sense in a later ruling³⁷⁸ – mainly concern the legitimacy of the prohibition of displaying religious symbols envisaged by the Act of North Rhein-Westphalia regarding the principle of equality and anti-discrimination law

³⁷⁵ For a commentary on the judgment returned at first instance see R. Ogorek, *Gefährliche Mützen. Zum Urteil des ArbG Düsseldorf vom 29 Juni 2007 (Az: 12 Ca 175/07)*, in “Myops. Berichte aus der Welt des Rechts” 2, 2008, pp. 4-8.

³⁷⁶ The § 57 c. 4, phrase 1 SchG NW forbids teachers of both sexes to assume exterior manifestations of a political, religious or ideological nature able to disturb or jeopardise the expectation of state neutrality on the part of pupils and their parents.

³⁷⁷ Points 41 and ss.

³⁷⁸ That of the Court of First Instance of Wuppertal with a judgment of July 29, 2008.

First of all, the Court (points 59-65) considers unfounded the suspicion of a discriminatory treatment towards Islam, highlighting that the prohibition is structured so as to affect all manifestations of religious liberty able to jeopardize the principle of neutrality of the state (such as those wearing the nuns' habit and the Jewish *kippah*)³⁷⁹. Neither, for the Court, in the opposite sense, is there a treatment in favour of Christianity as the law refers the objectives by which teachers must abide in the exercise of their educational functions through a reference to the protection of the cultural values of the Western and Christian tradition (§ 57 §§ 4 phrase 3 SchG NW). The concept of "Christianity" to which the law refers – the Court argues ³⁸⁰– need not be understood in a strictly literal sense i.e. with a truly religious meaning since it is invoked only as it is able to evoke a set of Universal and shared values (*Wertenwelt*) that belong to the Christian-western culture and are also grounded in the constitution (point 61).

In reality even this reasoning appears somewhat questionable as the law in question while not referring directly to the Christian religion, adopts the values of Christianity as representative of the entire Western culture, thus implicitly acknowledging a privileged position to the Christian religion. It is clear however, that if the law accords special privileges to teachers professing the Christian religion or envisages that the prohibition not be extended to the symbols of the Christian religion, it will inevitably discriminate against other religious traditions, risking jeopardizing the principle of "equal liberty" and the equal dignity of religious creeds³⁸¹; a principle which the German Constitutional Court had already reiterated in the

³⁷⁹ The Court of First Instance of Wuppertal rules out also that the prohibition envisaged by § 57 §§ 4, phrase 1 SchG NW.

³⁸⁰ Federal Administrative Court 24.6.2004.

³⁸¹ C. Walter, A. V. Ungern-Sternberg, *Verfassungswidrigkeit des nordrhein-westfälischen Kopftuchverbots für Lehrerinnen*, in "Die Öffentliche Verwaltung", 2008, pp. 488-494.

2003 judgment. It would furthermore be misleading to focus on the non-total correspondence of our historical and cultural heritage with the heritage handed down by the Christian tradition since it is difficult to imagine that there are representative symbols of the Christian values recognized in Western civilization, but not accepted also by Christian religion.

The legitimacy of the Act of North Rhein-Westphalia referring to the AGG is also questionable. The Court sustains that the proscription on teachers wearing a religious symbol is not in contrast with such legislation, which, in § 8, §§ 1, provides that the difference in treatment based on a characteristic correlated to religion or sex can be justified while, “for the nature of work or the context where it is carried out, this characteristic constitutes an essential requirement and determining factor for the execution of work, as long as the ultimate purpose is legitimate and the requirements proportional”.

It should be remarked that unlike the decisions on the veil for the private sector, the Düsseldorf LAG, on this occasion, also pronounces on the possibility to represent indirect sexual discrimination as well as religious discrimination (point 69). The question appears wholly legitimate: given the predominance of Islamic immigrants on German territory, it is legitimate to presume that the ban on wearing religious symbols envisaged by the law of North Rhein-Westphalia affects Muslim women much more than men of other religious faiths. The LAG, in reality very hastily, rules out that this restrictive measure goes against the principle of non-discrimination between the sexes, taking it for granted that the principle of secularity and respect for the guarantee of impartiality in teaching, while being legitimate objectives, are sufficient to rule out the discriminatory nature of the ban on wearing religious symbols.

This conclusion however gives rise to some perplexity considering that the Court of Justice, since the first

pronouncements, has clarified that the indirectly discriminatory scope of a rule disproportionately damaging women can be eliminated only after it has been ascertained that the disadvantage is based on objective reasons completely extraneous to discrimination based on sex. Furthermore the same Court also demands particular care when carrying out proportionality and need tests, especially if the suspicion of indirect discrimination concerns a measure adopted through a law of the State (and not a measure connected with entrepreneurial policies). In the wake of these pressing requirements, it would have been opportune of the LAG to assess the possibility to find a point of equilibrium between the two values at stake here; i.e. the neutrality of the state in the religious field, on one hand, and the fundamental right to equality on the other, avoiding over inflexible positions which irreparably sacrifice the protection of a difference explicitly and formally safeguarded, such as sex.

Furthermore, there seems no need for a different kind of reasoning to establish whether a case of religious discrimination exists. The Court has no doubt: the restriction of freedom of religion that the teacher suffers is justified by a legitimate ultimate purpose in so far as the use of a hat constitutes a surrogate veil (point 81) and so a “religious display” (point 75), as such, able to represent a threat to the right of the pupil of a state school to receive information dispensed in a context of religious neutrality. What is more, such a restriction would be, anyway, acceptable and proportional to its essential nature for the execution of that job (point 73) as far as it only in place during the period of time when the teacher was carrying out her task as an educator.

However, especially as the principle of proportionality is used to balance the interests at stake, the conclusions to which the Court arrives seem very questionable: in fact, the degree of severity which the Court of Justice imposes on domestic judges in the assessment of cases of justification

relating to indirect discrimination on the basis of sex must also be requested in relation to discrimination on the basis of religion. One must all the same admit that the prohibited element of discrimination – as well as relating to the exercise of a constitutionally protected fundamental freedom (in this case religion) – is pertinent to the way of being of the person.

Consequently, while respecting the specific work of the teacher, it seems too simplistic and reductive to invoke, as ground for the legitimacy of the prohibition imposed on her, the circumstance that putting on show religious signs and symbols can compromise public interest as far as neutrality and impartiality in the religious field are concerned: the restriction of a fundamental right of a person such as the religious liberty (of the teacher) can be allowed only as far as the neutrality of state education can be guaranteed (thus guaranteeing “useful” performance of the job). EU law does not make it possible to sacrifice the right of teachers to freedom of religion any more than is strictly necessary to guarantee the essential rights of the pupils. When it is a question of ascertaining whether departure from the principle of non-discrimination and equality stays within accepted limits, it is necessary to identify a clear dividing line. In fact it is one thing if the educational authorities ban the display of those symbols that, due to their very nature or their context of reference, become an act of pressure, provocation, or proselytism and so can offend the religious sensitivity of the students, compromise the effectiveness of the teaching and the educational role of the teacher, but quite another to discipline any manifestation of the religious faith of the teacher even if the way in which it is expressed can not represent a serious threat to the basic rights of others, such as the freedom of conscience and religion of the students. The risk of wrongful interference in the freedom of conscience of the students could not to subsist in a case where the teacher shows openness towards options and faiths different from those to which he subscribes or teaches a subject other than

religion and anyway works alongside other teachers of a different persuasion, or when there is reason to deem that the pupils being taught have the power of judgment and rational assessment of the manifestation of belief to which they are exposed.

4. Protection from discrimination and religious organization

Another problem which has recently emerged for German courts regards situations of conflict that can arise with regard to work carried out within religious organizations. In this case the terms of the question change radically as one of the parties at stake, the employer, is a *Tendenzträger* and, as such, carries out an activity whose ultimate purpose resides in the spread of ideologically biased values.

Before a brief analysis of the more significant cases on this matter it seems necessary, in this case, to focus on the legislation which departs from the principle of equality that the German legislator has introduced to favour churches and other public or private organizations whose ethics are based on religion or on personal conviction. As intimated above, the Member States are authorized by EU law to introduce or keep in their respective legal systems a special derogation which allows these subjects to treat their employees in a way that would normally be considered arbitrarily discriminatory, being based on their religious affiliation. This is possible only in wholly exceptional cases, i.e. “where by reason of the nature of these activities or of the context in which they are carried out, a person’s religion or belief constitutes a genuine, legitimate and justified occupational requirement, having regard to the organization’s ethos”.

In assimilating the directive, the German legislator provides legislation which is partly different from the dictates of the EU law: at § 9 c. 1 of the AGG it is first of all

established that “a difference of treatment on the grounds of religion or belief of employees of a religious community shall not constitute discrimination where such grounds constitute a justified occupational requirement for a particular religion or belief having regard to the ethos of the religious community or organization in question” (the version in German uses the expression “*Selbstverständnis*”, i.e. the conception that the organization has of itself) “and by reason of their right to self-determination or by the nature of the particular activity”.

Let us immediately say that the norm lends itself to two opposite interpretations: while several have proposed a “constitutionally oriented” reading meant to preserve the wide-ranging room for *manoeuvre* that the German system recognizes to the ideological organizations in providing a difference in treatment based on religion or on the personal conviction of one of its employees³⁸², others, on the other hand, consider that, to be in tune with EU legislation, the interpretation of § 9 c. 1 of AGG must allow such discrimination only in the most exceptional cases³⁸³.

In fact, from a comparison with the formulation of the directive some important differences emerge: first of all, the AGG norm, in assessing the admissibility of the disparity of treatment, limits itself to requiring that the requirements be “justified” (*rechtmäßig*). § 9 c. 1 of AGG does not speak of “proportionality” and – unlike the directive – neither requires that religion represent a “legitimate” requirement (in the German version: “*entscheidende*”, i.e. “decisive”) and “essential” (“*wesentliche*”), and have a character conditioning the utility of

³⁸² P. Schnabel, *Die Richtlinie 2000/78/EG und das kirchliche Arbeitsrecht in Deutschland*, cit.; G. Thüsing, D. Fink-Jamann, K. von Hoff, *Das kirchliche Selbstbestimmungsrecht als Legitimation zur Unterscheidung nach der Religion: zum Spannungsverhältnis von kirchlicher Dienstgemeinschaft, verfassungsrechtlicher Autonomie und europäischem Diskriminierungsrecht*, cit., p. 208.

³⁸³ P. Wedde, *Kommentierung des § 9 AGG*, in W. Däubler, M. Bertzbach (Hrsg.), *op. cit.*, Randnote 35, 41, 42 m. w. N. ArbG Hamburg, judgment of December 4, 2007 – 20 Ca 105/07.

the contribution of the worker on the aims of the employer³⁸⁴.

Now, it is not so much the importance of this omission that should be underlined, because, in all probability, both the proportionality criterion and the other two criteria that the German legislator omits (essentialness and legitimacy) can be traced when assessing the existence of the “justified” character, also through the criterion of compliant interpretation.

Indeed, an extensive interpretation can certainly rely on the wording of the parenthesis that identifies the terms of comparison to assess the legitimacy of the requirement of religious faith or ideology: if EU law envisages that the requirement may be assessed with regard to the “nature” of the activity and the organizational “context”, § 9, 1 of the AGG, alongside the “nature” of the activity, makes reference, differentiating, to the “right to self-determination” (*Selbstbestimmungsrecht*) of the communities within which the activity is carried out.

Both dispositions make use of the distinction, with the result that the requirement of religious faith or ideology can be deemed as justified also when the activity that the worker is required to carry out for the church or organization does not have per se an ideological nature. However, the German legislation differs with respect to EU legislation due to the fact that the assessment of the justification (and essentialness) of the requirement depends on – other than the “type of activity” – a criterion that considers not only the “context”

³⁸⁴ Similar problems have emerged with regard to the Italian legislation (art. 3, c. 3 e 4, d.lgs. 216/2003). See on this, in particular, A. Viscomi, *Organizzazioni eticamente fondate e rapporti di lavoro?*, in “Diritti Lavori Mercati”, 2, 2009, pp. 381, 396; Lassandari A, *Interesse dell'impresa e tutela antidiscriminatoria: considerazioni sulla disciplina comunitaria e nazionale*, in “Diritti Lavori Mercati”, 1, 2008, pp. 95, 115.

where the activity is to be carried out (as the directive explicitly states), but rather the point of view of the churches.

In normalizing the “right to self-determination” as a criterion of assessment of the employment requirement (the reference appears in the final version of the AGG approved by the *Bundestag*), the AGG undertakes to preserve the independence and the *raison d'être* of the churches and of the other religious institutions, in line with the constitutionally privileged status which they enjoy in the German system³⁸⁵. The provision in question takes into consideration that in Germany religious organizations can freely have an internal organization and carry out their own activity within the sphere of subjects belonging to their jurisdiction and in conformity with the constraints established by law. In this system the ample organizational freedom has its constitutional basis in Art. 140 of the GG³⁸⁶ which refers to Art. 137 WRV (*Weimarer Reichsverfassung*)³⁸⁷, recognizing and safeguarding the right to freedom of religion (also) within the specific form of collective and corporation law³⁸⁸.

The right to self-regulation was however also reaffirmed by the Bundesverfassungsgericht, which reiterated several times that the power of the Churches to administer and run

³⁸⁵ It is necessary to point out that § 9 of the AGG also consider irrelevant the legal status of the Churches.

³⁸⁶ Art. 140 of the GG states that “the provisions of articles 136, 137, 138, 139 and 141 of the German Constitution of August 11, 1919 are an integral part of the present Constitution”.

³⁸⁷ In particular, Art. 137 of the Weimar Constitution states among other things that: “Freedom to form religious communities is guaranteed. Regarding the unification of religious communities within the Reich territory there are no limitations. Every religious community administers its own affairs without interference of state or community”.

³⁸⁸ According to the federal Constitutional Court individual freedom is to be understood as the freedom “to orient one’s overall behaviour according to the precepts of one’s faith and to act in conformity with one’s religious convictions”: BVerfG judgment of October 19, 1971 – 1 BvR 387/65, BVerfGE 32, 98, 106.

their own affairs (“*eigenen Angelegenheiten*”) does not tolerate wrongful interference by the law; which holds – one adds – for everything concerning the organization of their own offices and the regulation of their employment relationships³⁸⁹. In particular, the Constitutional Court, in turn, admitted that also the matter of employment relationships is part of the jurisdiction reserved to Churches and is therefore covered by the Constitutional protection of the *Selbstbestimmungsrecht*³⁹⁰.

Furthermore, apart from the reference to the right to self-determination, the purpose of the legislation also seems to transpire from another indication traceable within the first §§ of § 9 of the AGG: as with the EC text there must be a connection between the ideological requirements and the ethics of the organization. It is significant to observe however, that in the German legislation the same expression that appears in the directive is not used, i.e. “*Ethos*”, rather there is a term that evokes the idea that the organization has of itself (*Selbstverständnis*)³⁹¹. This terminological choice seems dictated by the need to guarantee a minimum living space to the fundamental right of the churches, which, as much because of their existence as their freedom of action and propaganda, cannot generally avoid employing workers who share their own faith.

³⁸⁹ U. Rust, J. Falke, *Allgemeines Gleichbehandlungsgesetz mit weiterführenden Vorschriften – AGG, Kommentar*, Erich Schmidt Verlag, Berlin, 2007, § 9, RN 52.

³⁹⁰ According the Federal Constitutional Court “Die Verfassungsgarantie des Selbstbestimmungsrechts bleibt für die Gestaltung dieser Arbeitsverhältnisse wesentlich”: BVerfG judgment of June 4, 1985 – 2 BvR 1703, 1718/83; BVerfG judgment of March 25, 1980 – 2 BvR 208/76, BVerfGE 53, 366, 392.

³⁹¹ This is also mentioned by P. Schnabel (*Die Richtlinie 2000/78/EG und das kirchliche Arbeitsrecht in Deutschland*, cit.), who notes that the notion of “*Ethos*” is unknown in German case law.

In German law it can therefore be deemed legitimate, generally speaking, for a church or other ideological organization to set as a condition for employment affiliation to a specific religion or *Weltanschauung* of the applicants for a position in their own organization³⁹², or fire their own employees in the event of a change of religion or ideology³⁹³, where this may be justified in virtue of the law of self determination, as has been happening in the case law of the German Constitutional Court .

4.1 A recent ruling of the Hamburg *Arbeitsgericht*

If this is so, it must come as a surprise that in a ruling issued in December 2007 the *Arbeitsgericht* of Hamburg, on the other hand, showed itself to be a convinced supporter of the opposite solution. A non-practicing Muslim had taken

³⁹² G. Thüsing, *Arbeitsrechtlicher Diskriminierungsschutz*, cit., p. 193.

³⁹³ See BAG March 4, 1980 – 1 AZR 1151/78, AP GG Art. 140 Nr. 4; LAG Rheinland-Pfalz 9 january 1997 – 11 Sa 428/96, LAGE Nr 8 zu § 611 *Kirchliche Arbeitnehmer. Furthermore according to a creditable opinion* (G. Thüsing, *Arbeitsrechtlicher Diskriminierungsschutz*, cit., p. 199), the choice of personnel at the moment of hiring on the basis of affiliation to a specific religion does not oblige a religious organisation to select workers on that basis: the church does not have to guarantee that all the personnel employed share a religion, being totally free to favour candidates of different faiths whom they consider most qualified. For example, it may happen that, to preserve its own nature, a religious organisation may have to claim that all the nurses be Catholic, but at the same time the same organisation, having to guarantee also that the patients receive the care required must also satisfy the need that the nurses be sufficiently qualified. Where it is not possible to satisfy both conditions, a denominational institution must be able to weigh up its various needs. Consequently, in the absence of a Catholic applicant in possession of the necessary qualifications, the organisation could choose a non-baptised candidate. And later on could choose the worker to employ on the basis of their religion. This faculty of applying a different criterion of choice each time may be recognised on one condition: that the employer, before taking on a worker of a different faith, has sought in vain a qualified candidate of his own faith.

action against one of the main charitable institutions of the Protestant church (*Diakonisches Werk*), which had refused to take her on as a social worker (with the particular role of mediation and support for immigrants looking for work in the context of a project funded by the EU) after trying in vain to convert her to Christianity³⁹⁴. The Court considered that the disparity of treatment may not be considered lawful by virtue of the special regime envisaged in § 9 of the AGG and sentenced the church institution to redress the damage, quantifying it, within the meaning § 15 of the AGG, as three months' wages.

The ruling, even though overruled at appeal, still represents a significant precedent³⁹⁵ and therefore deserves a certain degree of attention.

According to the Court, in order to interpret § 9 of the AGG in the sense of the directive³⁹⁶ it is first of all necessary

³⁹⁴ ArbG Hamburg, judgment of December 4, 2007 – 20 Ca 105/07.

³⁹⁵ In fact the Court's reasoning is not questioned at the appeal court: the *Landesarbeitsgericht* in Hamburg, in fact, in ruling in favour of the church institution, bypasses the reasoning adopted at first instance, arguing – as is self-evident in the doctrine – that in a situation like the one in question discrimination must be rejected a priori. The judges affirm that there is only discrimination in the hiring phase within the meaning of §§ 7 and ss. of the AGG in relation to those who are objectively in possession of the professional qualifications required to fill a vacant post (see in this sense U. Rust, J. Falke, *Allgemeines Gleichbehandlungsgesetz mit weiterführenden Vorschriften – AGG, Kommentar*, cit., Rn. 28; W. Däubler, *Kommentierung des § 7* in Id., M. Bertzbach (Hrsg.), *Allgemeines Gleichbehandlungsgesetz - Handkommentar*, Nomos Verlagsgesellschaft, Baden-Baden 2007, Rn. 9; G. H. Bauer, B. Göpfert, S. Krieger, *Kommentierung des § 9, Allgemeines Gleichbehandlungsgesetz - Kommentar 1. Aufl.* Beck, München, 2007, Rn. 10). See LAG Berlin March 30, 2006 – 10 Sa 2395/05, LAGE § 611 a BGB 2002 Nr. 1; BAG April 27, 2000 - 8 AZR 295/99; BAG November 12, 1998 - 8 AZR 365/97, AP Nr. 16 zu § 611a BGB) while in the case in question the worker did not satisfy the requirements of suitability mentioned in the job advertisement.

³⁹⁶ This reasoning is indirectly supported by the position assumed by the European Commission that in January 2008 opened a preliminary investigation against Germany

to reject the complete and absolute legitimation of the Churches in imposing a faith requisite as a condition for access to all types of work³⁹⁷. In particular, this legitimation could not find any basis in the concept of the “identity” of the organization (*Selbstverständnis*), and still less with reference to the “right to self-determination”. In fact, the directive – it is argued – provides that Churches can claim such requirements only where this is deemed (in the English version) “genuine” i.e., such as to condition the utility of the contribution of the worker to the religious or ideological scope of the firm; which would seem to be confirmed by recital nr. 23 of the dir. 00/78 according to which “in very limited circumstances, a difference of treatment may be justified where a characteristic is related to religion or belief [...]”.

On these grounds it is of the idea that the protection envisaged in § 9 of the AGG in favour (also) of Churches may become relevant only when intimately related to the activity actually carried out, having to distinguish whether the worker performs duties related to the “identity” of organization and, in particular, activities of annunciation and broadcasting the Christian message (*Verkündigungsauftrag*)³⁹⁸ (as in the case of those who hold management positions within hospitals or schools, i.e., “neutral” positions not pertaining to the ultimate ideological purpose characterizing the organization).

<http://europa.eu/rapid/pressReleasesAction.do?reference=IP/08/155&format=HTML&aged=0&language=IT&guiLanguage=it>. According to some opinions however (G. Thüsing, D. Fink-Jamann, K. v. Hoff, *Das kirchliche Selbstbestimmungsrecht als Legitimation zur Unterscheidung nach der Religion: zum Spannungsverhältnis von kirchlicher Dienstgemeinschaft, verfassungsrechtlicher Autonomie und europäischem Diskriminierungsrecht*, cit., p. 208) § 9 of the AGG does not need to be amended or integrated to harmonise with the EU directive and the German act of assimilation. In this regard, the indication of the Commission is off the mark and must be viewed negatively also from the point of view of safeguarding German constitutional law.

³⁹⁷ For this view see P. Wedde, *Kommentierung des § 9 AGG*, in W. Däubler, M. Bertzbach (Hrsg.), *op. cit.*, Randnote 35, 41, 42 m. w. N.

³⁹⁸ G.H.Bauer, B. Göpfert, S.Krieger, *op. cit.*, Randnote 15.

The conclusion gives rise to not a few questions.

First of all, the reasoning of the Court seems flawed in its logic: even if the directive from some points of view discourages, in the case of the ideological organizations, the possibility of member States increasing the area that lies outside the field of application of the antidiscrimination rule, the distinction between ideological and neutral duties should not represent the only discretionary criterion for assessing the real amount: the European legislator, as has already been stated, as a criterion of legitimacy of the employment qualifications required, consider both the “nature” of the activity and the “context” where it is carried out, considering it therefore quite possible to assess the ideological requirements also only regarding the second of the two parameters³⁹⁹.

There also remains the doubt that a limited interpretation of the German legislation may not be in harmony with the result which the directive imposes upon the legislation of the States as far as its effect is to limit (not to say, diminish) the range which the “right to self-determination” of the Churches can take on. A right that the German legislation, as we have seen, has elevated to a criterion of justification for the lawfulness of discrimination.

Already from the consideration of political-social choices made during the gestation process of the EU legislation it is clear how one of the worries of the European lawmaker has been that of safeguarding the actual possibility of the churches and other religious communities to represent the religious opinion of a group of individuals (making use also of the

³⁹⁹ Even though the literal formulation of the law induces its rejection, a number of writers sustain that the essentialness of the employment qualifications must be assessed both from the point of view of the nature of the work to be carried out and from the point of view of the context in which it is carried out. See, regarding the AGG, S. Roloff, in C. Rolfs, R. Giesen, R. Kreikebohn, P. Udsching (Hrsg.), *Arbeitsrecht, Kommentar AGG*, Beck, München, 2008, p. 9 Rn. 1.

freedom to select their own workforce on the basis of their religious affiliation): as has rightly been observed, the definitive text has significantly broadened the field of application of the original proposal which merely set out a discipline of *Tendenzschutz* following the lines of those envisaged in the directive on company committees [see draft directive (99) 564 def.]⁴⁰⁰.

Furthermore, if it is true that, in directive 00/78, freedom of religion is considered before all things as a fundamental right protecting an essential and inalienable characteristic of the identity of the individual, and so an inviolable human right (the inclusion of “religion” on the list of the risk factors is justified precisely from a “defensive” point of view), this does not mean that the European legislator has given, from the point of view of hierarchy, priority to the single dimension of freedom of religion, at the expense of the position of the collective subjects.

This hypothesis is not confirmed if one examines the constitutional regimes within the individual States, where on the other hand, between the protection of the collective dimension of freedom of religion and the acknowledgement of this basic right to single individuals a circular logic exists: the religious activity of the individual, by its nature, is projected into the community dimension and therefore takes on a “group” character, while the exercise of freedom of

⁴⁰⁰ Art. 4, c. 2 of the proposal for a council directive establishing a general framework for equal treatment in employment and occupation provides that: “Member States may provide that, in the case of public or private organisations which pursue directly and essentially the aim of ideological guidance in the field of religion or belief with respect to education, information and the expression of opinions, and for the particular occupational activities within those organisations which are directly and essentially related to that aim, a difference of treatment based on a relevant characteristic related to religion or belief shall not constitute discrimination where, by reason of the nature of these activities, the characteristic constitutes a genuine occupational qualification”.

religion in association constitutes, in turn, an instrument of individual freedom and therefore is the collective expression of the freedom of the individual to profess his own faith individually.

The EU does not in any way exclude the consideration of the internal constitutional regimes of the individual States, and actually has long shown itself sensitive to the need to safeguard the privileged position which the different Churches enjoy within them, committing itself, in particular, not to interfere in their activities and independence⁴⁰¹.

The consideration by the Union of the role of the collective religious organizations already appeared in Declaration no. 11 annexed to the final Act of the Treaty of Amsterdam of 1997 stating that “the European Union respects and does not prejudice the status envisaged in the national legislation for churches and religious associations or communities of the member States”.

This Declaration sanctioned the choice to exclude from EU jurisdiction everything concerning the discipline of religious groups and, in particular, formalized the commitment to respect the legal status they enjoy in the national legal systems of single member States⁴⁰².

⁴⁰¹ G. Thüsing, D. Fink-Jamann, K. v. Hoff, *Das kirchliche Selbstbestimmungsrecht als Legitimation zur Unterscheidung nach der Religion: zum Spannungsverhältnis von kirchlicher Dienstgemeinschaft, verfassungsrechtlicher Autonomie und europäischem Diskriminierungsrecht*, cit., p. 208

⁴⁰² It is also considered that Art. 6, § 3 of the Treaty, in imposing on the Union the obligation to respect the national identity of its member States, provides a point upon which to anchor the foundations of the right of self-determination of churches: the norm does not clarify what is meant by “national identity”, but it cannot be denied that the obligation it sanctions is an expression of the principle of subsidiarity which allows the Union to intervene only in those matters that the Member States are not capable of addressing efficiently. See G. Thüsing, D. Fink-Jamann, K. v. Hoff, *Das kirchliche Selbstbestimmungsrecht als Legitimation zur Unterscheidung nach der Religion: zum Spannungsverhältnis von kirchlicher Dienstgemeinschaft, verfassungsrechtlicher Autonomie und europäischem Diskriminierungsrecht*, cit, p. 182.

This general principle is now reaffirmed in Art. 17 of the Treaty of Lisbon (which came into force on December 1st, 2009)⁴⁰³ and in this way becomes fully binding from the point of view of primary EU law⁴⁰⁴. The EU formally reiterates its commitment to respect and not prejudice the specific role which churches and other organizations of a religious character enjoy in the various national contexts, substantially guaranteeing that the legal status of religious groups continues to be defined at national rather than European level. In this way, the European legislator indirectly also protects their right to self-determination, which is certainly an integral part of the status to which the Treaty refers.

If this is so, unlike what the Hamburg Court claims, a constitutionally oriented reading of § 9 of the AGG appears the most in tune with the pursuit of the aims of the directive and respect for the principle of subsidiarity Art. 17 of the Treaty of Lisbon is inspired by. So, it can be said that the right to self-determination of religious bodies may mark the ultimate and uncrossable frontier behind which such organizations can legitimately move when they intend to give different treatment because of religious affiliation.

⁴⁰³ This norm provides: “1. The Union respects and does not prejudice the status under national law of churches and religious associations or communities in the Member States. 2. The Union equally respects the status under national law of philosophical and non-confessional organisations. 3. Recognising their identity and their specific contribution, the Union shall maintain an open, transparent and regular dialogue with these churches and organisations”.

⁴⁰⁴ It has been held that this Declaration has no meaning, able to have at best an interpretative value, on the basis of Art. 31, § 2 letter a) of the Vienna Convention on the Law of Treaties.

4.2 *Selbstbestimmungsrecht* as the basis for the legitimation of different forms of treatment

It is not easy to say if the thesis presented here can find a basis also in Italian legislation and, if so, what the implications might be. Italian labour law has never taken into consideration one of the fundamental grounds for the protection of religious affiliation in the German legal system, i.e., to answer to the need to limit the rights of participation and consultation of employees in business management in the German legal system. The main obstacle to accepting the solution adopted in the German legal system arises from the fact that Art. 3 § 5, legislative decree of. 216 of 2003, unlike § 9 of the AGG, in clarifying “which differences in treatment [...] do not constitute discrimination”, only mentions the assessment criteria provided for by the EU, without making the least hint to the right to self-determination.

It is however certain, that this right has a constitutional basis in our legal system, which in fact recognizes and protects the right to freedom of religion, both in its classical form of an individual personal right (art. 19 Cost.), and as a right proper to the various organizations of a religious nature and ultimate purpose, which, as specific “social formations”, come under the general principle of Art. 2 of the Constitution⁴⁰⁵. The Catholic Church and all other religious institutions (art. 8 Const.) are recognized “as they actually are in society, with their institutional structures, their organization and thus with their internal organization, organs of representation etc.”⁴⁰⁶.

Clearly such institutions, if they are to have an internal organization and satisfy in the best way their own religious and disciplinary needs, cannot but select freely their own personnel and guarantee, in the vast majority of cases, that the

⁴⁰⁵ P. A. D’Avack, *Libertà religiosa*. (dir. ecc.), in *Enciclopedia del Diritto*, vol. XXIV, Giuffrè, Milano, 1974, pp. 595 ss.

⁴⁰⁶ *Ivi*, p. 600.

work of their collaborators be based upon their own beliefs. And this faculty is nothing more than a manifestation of the freedom of self-determination, indeed a necessary consequence of these fundamental freedoms; a freedom which in turn, comes into conflict with a right to freedom of equal constitutional weight: that of the individual to manifest his own religious convictions⁴⁰⁷.

In similar cases, also in our legal system, the legitimacy of the requirement based on faith – demanded by an organization of a religious nature as a condition for access to a specific field of work – can only depend on a careful equilibrium to find the point of balance between the opposing needs of these two fundamental rights.

As it is not possible to hypothesize, in the abstract, a hierarchy between the values involved, the modal rule to which also in this case, the legislator and the judge are bound – in virtue of the criterion of the legitimacy of the employment requirement, as well as the reference in art. 4, § 2 of the Dir. to the general principles of EU law – “imposes that a fundamental right should never be limited more than strictly necessary to guarantee the vital minimum space for another right of an equal level”⁴⁰⁸.

So, it is unquestionable the illegitimacy of the religious requirements demanded by a religious organization when the restriction of the right to the freedom of religion of the individual (who aspires to become a member of, or to exercise dissent from, a religious community) is not contained within the bare necessary to guarantee the freedom to act and to

⁴⁰⁷ G. Thüsing, D. Fink-Jamann, K. v. Hoff, *Das kirchliche Selbstbestimmungsrecht als Legitimation zur Unterscheidung nach der Religion: zum Spannungsverhältnis von kirchlicher Dienstgemeinschaft, verfassungsrechtlicher Autonomie und europäischem Diskriminierungsrecht*, cit., p. 190.

⁴⁰⁸ F. Onida F., *Il problema delle organizzazioni di tendenza nella direttiva 2000/78/EC attuativa dell'art. 13 del Trattato sull'Unione Europea*, in “Il diritto ecclesiastico”, 3, 2001, p. 905.

expand to religious communities⁴⁰⁹. In other words: the sacrifice of the rights of the individual must never go beyond the pursuit of the aim of safeguarding the most essential and vital part of their right to self-determination. It is also from this perspective that the directive, in order to establish whether the exemption is operating out of respect for the principle of equality and not discrimination, adopts the parameter of “the ethics of organization”⁴¹⁰.

This does not mean however, that the freedom of the individual to profess his faith can be antithetical to the identity of the group, having to consider, on the other hand, that the protection of individual freedom always and in all cases goes against those basic constraints probably made necessary by the need – equally safeguarded at constitutional level – to guarantee the group, and so the religious communities, the indispensable conditions to exist and concretely achieve the grounds for their own being⁴¹¹.

⁴⁰⁹ In this case we would have what Jürgen Habermas calls “the case of oppression internal to groups”. See J. Habermas, *Equal Treatment of Cultures and the Limits of Postmodern Liberalism*, in “The Journal of Political Philosophy”, 1, 2005, p. 22, according to which “collective rights can only strengthen a group in its cultural self-assertion if they also ensure the individual members the latitude to use them realistically in reflectively deciding between critical appropriation, revision or rejection. Freedom of association certainly already safeguards the voluntary nature of group membership. But it is only the seal on a realistic right to exit. For the survival of cultural groups, the guarantee of such internal latitude as is necessary for appropriating a tradition under conditions of dissent is decisive. A dogmatically protected culture will not be able to reproduce itself, particularly in a social environment rich with alternatives”. See also Id., *Religious Tolerance – The Pacemaker for Cultural Rights*, in “Philosophy”, 1, 2004, pp. 5-18.

⁴¹⁰ P. Schnabel, *Die Richtlinie 2000/78/EG und das kirchliche Arbeitsrecht in Deutschland*, cit., p. 442.

⁴¹¹ For a confirmation in this sense see, as well as the famous judgment of the C. Cost. of December 29, 1972, No. 195 also, by way of example, Cass. April 15, 2005 n. 7837.

This also emerges from text of the directive: art. 4, § 2, as well as allowing the national legislator to acknowledge the legislation and the practice in force in that specific country in favour of religious bodies, it expressly subordinates in fact the application of the exceptions envisaged for churches and other religious bodies to the standards of protection guaranteed at national level by the “provisions” and “constitutional principles” of the member States⁴¹².

Reference to these principles, underpinned by the same logic implied in the already mentioned art. 17 of the Lisbon Treaty, ensures that the individual States, in incorporating EU legislation, reckon with the prerogatives historically granted to religious institutions in the respective constitutional systems⁴¹³, preserving, in particular, their freedom to choose, each time, the employment requirements they impose also in the light of the usefulness of the contribution of the worker to the religious aims pursued by the organization.

But there is more. The positive acknowledgement by the Union of the status of collective organizations of a religious character seems to bear out also the idea that, in our legal system, these bodies can take advantage of an exemption from respecting the equality principle when the difference in treatment is not based on religious affiliation but concerns conviction and aspects of the person closely linked to their

⁴¹² G. Thüsing, D. Fink-Jamann, K. v. Hoff K., *Das kirchliche Selbstbestimmungsrecht als Legitimation zur Unterscheidung nach der Religion: zum Spannungsverhältnis von kirchlicher Dienstgemeinschaft, verfassungsrechtlicher Autonomie und europäischem Diskriminierungsrecht*, cit., p. 189.

⁴¹³ See on this, G. Belling, *Gestaltungsfreiheit und Gestaltungszwang bei der Umsetzung der Anti-Diskriminierungsrichtlinie 2000/78/EG im Hinblick auf das kirchliche Arbeitsrecht*, cit., p. 887. See also P. Schnabel, *Die Richtlinie 2000/78/EG und das kirchliche Arbeitsrecht in Deutschland*, cit., p. 440, which outlines that in Europe there exist a great variety of models: while a number of countries have a particularly restrictive set of regulations (France), others on the other hand significantly strengthen the role of religious bodies (Germany, Australia, Ireland, Great Britain).

religious creed⁴¹⁴. Under certain conditions, the regime of favour could even explicitly regard disparities connected with identity and formally safeguarded as such by EU law, such as those provided for matters concerning sexual identity and the sexual life of the individual.⁴¹⁵

This is also confirmed in the EU directive which states that religious bodies can “demand from the people who work from them good faith behavior and loyalty to the ethics of the organization”. This disposition is justified considering that in an ideological employment relationship trust takes on fundamental importance even permeating the structure of work obligations and influencing the satisfaction of the goal pursued by the organization providing employment⁴¹⁶.

It can therefore be said – in line with the spirit of the directive – that on the basis of Italian legislation, religious bodies, generally speaking, can treat worse those employees whose behavior, even outside of work might negatively

⁴¹⁴ See also G. Thüsing, *Arbeitsrechtlicher Diskriminierungsschutz*, cit., p. 200; R. Weissflog, *A. Bug, Auswirkungen des Europarechts auf das kirchliche Arbeitsrecht, Ausarbeitung*, in www.bundestag.de, p. 11.

⁴¹⁵ An example is the case decided as early as 1983 at BAG which justified the dismissal by a religious community of one of its own employees, a psychologist, who, showing his homosexuality publicly, had behaved in a way which conflicted with the moral teaching of the Christian faith. This view has prevailed also in the most recent literature that concerns abstention from homosexual practice (as well as frequenting casinos and brothels, or committing crimes of corruption etc.) an essential and determining occupational requirement for working within Catholic church. On this see J. Joussen, *Die Folgen der europäischen Diskriminierungsverbote für das kirchliche Arbeitsrecht*, cit., p. 32.

⁴¹⁶ This is the prevalent view in our literature and case law, see, by way of example, F. Santoni, *Le organizzazioni di tendenza ed i rapporti di lavoro*, Giuffrè, Milano, 1983. M. G. Mattarolo, *Il rapporto di lavoro subordinato nelle organizzazioni di tendenza*, Cedam, Padova, 1983. For an examination of the role of the trust in the employment relationship L. Zoppoli, *La fiducia nei rapporti di lavoro*, in “Quaderni Dases”, 4, 2004.

influence the credibility of the messages they are bound to divulge.

The national courts will be required to check, in connection with the specifics of the case in point, if there exists a link between the religious creed and the personal condition⁴¹⁷ such as to deem the confidence lost which had originally led the employer to rely on the personal qualities of the ideological worker for the pursuit of the organization’s end: so, for example, if a protestant worker is publicly in a permanent homosexual relationship, the Catholic organization will certainly be able to fire him, without the objection that the Lutheran Evangelical Church is favourable to the benediction of homosexual unions.

In this way you can avoid the risk that religious organizations find themselves expropriated of the right to self-determination, which, as the Court clarified in the judgment referred to at the beginning of this article⁴¹⁸, presupposes that they always have the opportunity to preconstitute the conditions necessary to conserve their image and their credibility, and so also those necessary to work out the essential principles of doctrine and faith to which those who have decided to work in the pursuit of their ends should conform.

As we have seen, also the European antidiscrimination laws, with a view to facing the “challenge of differences”, have exhibited a certain sensitivity to the defence of the rights of the religious groups and safeguarding their specific identity, implicitly acknowledging the basic contribution that each religious organization makes in terms of social cohesion as a “spiritually qualifying force capable of taking part

⁴¹⁷ A. Lassandari, *Interesse dell'impresa e tutela antidiscriminatoria: considerazioni sulla disciplina comunitaria e nazionale*, in “Diritti Lavori Mercati”, 1, 2008, pp. 95, 118-120, who however, rightly considers it necessary to distinguish depending on the creed or religious rite in question.

⁴¹⁸ BVerfG judgment of June 4, 1985 – 2 BvR 1703, 1718/83.

constructively in the edification of the public and political sphere”.⁴¹⁹ Contemporary democracy, as has been authoritatively recalled, “is based on the presumption of autonomy of each subject which contributes to it” and so is characterized in effect by the pluralism of cultures and of groups; so, “it is evident that the democratic comparison, for it to be such, must happen between subjects capable of making use of themselves and their own ideas and, if necessary, of compromising them with those of others or, even of changing or abandoning them in the face of the good reasons of the others”⁴²⁰. It is from this point of view that § 3 of art. 17 of the Lisbon Treaty granted Churches and other religious organizations the right to take part in an “open, transparent and regulated dialogue” with the Union.

All this however, does not mean that recognizing the right of religious bodies to show differences in treatment, exempt from non-discrimination is free from all limitations.

In particular, the expansion of the regime of immunity to religious organizations other than the Catholic Church – today increasingly invoked in a social context marked by growing multiculturalism – cannot but encounter those uncrossable limits that derive from the respect of the human person, in his or her fundamental rights, as well as the obvious requirements of public order.

It is hardly necessary to recall that in our system art. 8 § 2 Const. expressly demands that the freedom of organization of the religions other than Catholicism be exercised within the context and in conformity with the fundamental principles upholding the legal system and that therefore only within the

⁴¹⁹ R. Mazzola, *Chiese cristiane, pluralismo religioso e democrazia liberale*, in F. Bolgiani, F. Margiotta Broglio, R. Mazzola (a cura di), *Chiese cristiane, pluralismo religioso e democrazia liberale*, il Mulino, Bologna, 2006, pp. 21, 44, quoting Habermas.

⁴²⁰ G. Zagrebelsky., *La democrazia pluralista non nasce dal conflitto ma dal compromesso: e come non sia rassicurante la perdita di autonomia per I cattolici quando sono in gioco i loro comportamenti politici*, in *ivi*, p. 144.

limits of public order may such religions organize themselves and carry out an activity within the State’s legal system.

An Islamic religious organization would certainly cross these limits if it fired a worker who dissented from some precepts of the Shari’ah, such as those requiring the amputation of the hand of a thief, the lapidation of an adulteress, or the genital mutilation of females etc...

It is clear that in similar cases the defence of cultural (and religious) differences and sensitivity to the rights claimed by groups would mark a dramatic regression as it could legitimate the addition to the legal sphere of an ethical/religious statute in contrast with that shared nucleus of essential principles, rights and fundamental freedoms on which western civilization rests and, in particular, could risk causing serious injury to the psycho-physical well-being of the worker.

Moral dilemmas and representations of justice in young people

Paola Ronfani, Roberto Cammarata, Roberta Bosio

1. Foreword

This short report has been written to help shed some light on a popular idea of justice, namely the conception of justice held by young people. It will address the most recent sociological and psychological approaches to childhood, which assert that children and young people are social actors capable of exercising moral choices and judgments. On the other hand, it will also look at the work of those scholars who, after analyzing “feelings of justice” and “normative social representations”, have suggested new ways of reconciling morals and sociology. Some of the most relevant approaches developed by scholars in this field are illustrated in a book that collects the findings of a qualitative research we carried out on a group of boys and girls from Lombardy⁴²¹. The aim of this research – which is part of a wider research project called Culture, rights, and normative socialization in children and young people financed by the Italian Ministry of University and Research⁴²² – was to provide an empirical test of the theoretical assumptions underpinning these approaches. Our work on young people has aimed at identifying their actual moral competence and analyzing their perceptions and representations of justice-related issues, some of which were particularly complex and dilemmatic. Another

⁴²¹ P. Ronfani (a cura di), *Non è giusto! Dilemmi morali e senso della giustizia nelle rappresentazioni degli adolescenti*, Donzelli-Lia, Roma-Urbino, 2007.

⁴²² Protocol n. 2003147971_003.

objective is to assess whether and how participatory experiences had an influence on these representations.

This short paper cannot expound these theoretical approaches more thoroughly or provide an analytical explanation of all the findings of our empirical study. Thus, we shall confine ourselves to a brief illustration of our theoretical framework, followed by a presentation of some data related to a specific field of inquiry (moral dilemmas), which will be provided as an example of our work. Finally, we shall look at the picture emerging from this study and draw some general conclusions.

2. From theoretical approaches to research

As mentioned above, our research into the conception of justice held by young people is based on feelings of justice, and in particular on the perspective developed by Raymond Boudon, who thought that these feelings are not driven by irrational impulses or emotionality but, on the contrary, they are based on axiological rationality. Social actors have a cognitive, evaluative, and value-oriented rationality; consequently, they do not base their behaviour on instrumental and utilitarian calculations but on “good” reasons. These reasons, some of which are rooted in universal principles, show them what seems to be the proper and rightful thing to do in a given situation⁴²³.

Renewed sociological attention towards norms and social values⁴²⁴ has produced mixed opinions and reactions among scholars. To put it briefly and simply, on the one hand, it is claimed that in post- or late modern societies social actors do not have the possibility and the capacity to answer questions

⁴²³ R. Boudon, *Sentimenti di giustizia*, il Mulino, Bologna, 2002.

⁴²⁴ A. Etzioni, *The Rediscovery of Norms*, in “Law and Society Review”, 1, 2000, pp. 158-178.

surrounding justice because in these individualised risk societies⁴²⁵ values are perceived as purely private matters. Thus, these “ethics under siege”⁴²⁶ lead to civic apathy and moral disengagement. The opposite approach, on the other hand, asserts that post-modern societies are not characterized by a decline in values but rather – as shown by the findings of empirical studies on values carried out on an international scale⁴²⁷ – by their shift towards “a greater concern for a deeper and stronger respect for the person, a tendency to advocate lesser control over the individual on the part of different forms of authority, be it political, religious, ideological, and so forth [...]”⁴²⁸.

An important element of this renewed interest in moral and ethical issues is the attention devoted to the so-called “popular” notions of justice, that is the beliefs, the attitudes, and the opinions held by the general public about principles of justice and the ways in which people use these principles in different settings “when they judge some aspect of their society to be right or not right”, as well as the way in which “different norms of justice are applied in different social contexts”⁴²⁹. In particular, adolescence is the period in life when notions of justice and injustice have considerable operational value since this is the time where their underlying values could lead to social, cultural, political or religious commitment. These commitments are a decisive moment in

⁴²⁵ U. Beck, *La società del rischio. Verso una nuova modernità*, Carocci, Roma, 2000.

⁴²⁶ Z. Bauman, *La società individualizzata. Come cambia la nostra esperienza*, il Mulino, Bologna, 2002, p. 235.

⁴²⁷ R. Inglehart, M. Basanez, A. Moreno, *Values and Beliefs. A Cross-Cultural Sourcebook*, The University of Michigan Press, Ann Arbor, 1998.

⁴²⁸ R. Boudon, *Declino della morale? Declino dei valori?*, il Mulino, Bologna, 2003, p. 24.

⁴²⁹ D. Miller, *Principles of Social Justice*, Harvard University Press, Cambridge-London, 1999, p. IX, 42.

the life of those who undertake them as they mark their entry into responsible adulthood⁴³⁰.

The other approach we used is the social representations theory, which draws on a long sociological tradition going back to Durkheim and his school but is also a well-established notion in social psychology, anthropology, and history. This wide-ranging heuristic framework encompasses society's cognitive and axiological systems; it refers to symbolic, dynamic realms as well as to the principles underlying the organization and the regulation of mental and social interaction between individuals and groups⁴³¹. It could thus be defined as a "system of values, ideas, and practices [...] which will enable individuals to orient themselves in and master their material social world"⁴³². Serge Moscovici, who first introduced a comprehensive social representations perspective into social psychology, pointed out that this notion is especially useful when studying common sense⁴³³. The common sense of justice was exactly the focus of our empirical research.

More specifically, normative social representations are considered as the "forceful ideas" underlying human rights⁴³⁴. In our empirical study about young people, these representations are used to investigate the degree of tolerance of injustice through a study of the discrepancies between an abstract adherence to the principles and values underpinning

⁴³⁰ S. Lebovici, *C'est pas juste*, in W. Baranès, M. A. Frison-Roche (sous la direction de), *La justice. L'obligation impossible*, Editions Autrement, Paris, 1995, p. 26.

⁴³¹ P. Mannoni, *Les représentations sociales*, Presses Universitaires de France, Paris, 1998.

⁴³² I. Galli, *La teoria delle rappresentazioni sociali*, il Mulino, Bologna, 2006, p. 30.

⁴³³ S. Moscovici, *Il fenomeno delle rappresentazioni sociali*, in Id., R. M. Farr (a cura di), *Rappresentazioni sociali*, il Mulino, Bologna, 1989, pp. 23-94.

⁴³⁴ W. Doise, *La forza delle idee. Rappresentazioni sociali e diritti umani*, il Mulino, Bologna, 2002.

human rights and, on the other hand, the acceptance of their violations. Undoubtedly, human rights and the conflicts arising from the demands made in their name⁴³⁵ stir feelings of justice. This is because these rights are underpinned by ethical values aimed at fostering “human dignity and the recognition of each individual as a moral person”⁴³⁶.

Part of our empirical research is based on moral dilemmas, some of which reproduced the ones used by Lawrence Kohlberg to identify patterns of moral development. In this regard, it has to be said that Kohlberg too emphasized the importance of social actors’ capacity of deliberation and argumentation. In fact, he thought that the different stages of moral development were not simply linked to biological development or resulting from socialization processes but they could be identified by analysing the thoughts developed during debates and discussions on justice-related issues. We therefore focused on the views held by some researchers of normative socialization. In particular, special attention was given to those who consider expressions of moral conscience in children and young people from a different perspective to moral development, thus departing from the assumption that the concepts and patterns of moral reasoning are linked to the progressive acquisition of logical reasoning skills at different stages of cognitive development. We concentrated on theories claiming that social actors, since childhood, draw on a wide variety of normative codes, that they are able to use different justice criteria in different contexts, and that, when it comes to moral decision-making, emotional motivations are just as relevant as rational ones⁴³⁷.

⁴³⁵ V. Ferrari, *Giustizia e diritti umani. Osservazioni sociologico-giuridiche*, FrancoAngeli, Milano, 1995.

⁴³⁶ G. Peces-Barba Martínez, *Teoria dei diritti fondamentali*, Giuffrè, Milano, 1993, p. 25.

⁴³⁷ E. E. Sampson, *Social Change and Contexts of Justice Motivation*, in M. J. Lerner, S. C. Lerner (eds.), *The Justice Motive in Social Behavior. Adapting to*

Emphasis was also placed on the effectiveness of the view that children, from an early age, are capable of moral agency and “moral sentiments” in their interactions with their peers and with adults when they are confronted with questions of fairness, the distribution of goods and resources, injustice, and suffering⁴³⁸.

The general interdisciplinary considerations briefly illustrated above enabled us to identify our research topics with our young people sample and formulate the questions that were dealt with by means of semi-structured interviews and within focus groups. We were aware that interviewees and focus group participants were in a particular stage of life from a cognitive and an emotional viewpoint; however, we chose not to depart from the theoretical assumptions that, as explained in more depth in the book, also informed the most recent surveys on moral sentiments, representations of justice, and the allocation of responsibility conducted among adult populations in different countries⁴³⁹.

The main theoretical assumptions of this work can be summarised as follows:

a) there is not only one absolute criterion of justice, but a wide variety of axiological criteria among which people pick

Times of Scarcity and Change, Plenum Press, New York, 1981, pp. 97-124; W. Damon, *The Development of Justice and Self-interest during Childhood*, in M. J. Lerner e S. C. Lerner (eds.), *The Justice Motive in Social Behavior. Adapting to Times of Scarcity and Change*, cit., pp. 57-72; A. Bandura, *Teoria socialcognitiva del pensiero e dell'azione morale*, in “Rassegna di psicologia”, 1, 1981, pp. 23-92; C. Kourilsky-Augeven, *Introduction*, in Id. (sous la direction de), *Socialisation juridique et conscience du droit. Attitudes individuelles, modèles culturels et changement social*, LGDJ, Paris, 1997, pp. 3-8.

⁴³⁸ B. Mayall, *Lo status morale dell'infanzia. Appunti dalla Gran Bretagna*, in H. Hengst e H. Zehier (a cura di), *Per una sociologia dell'infanzia*, FrancoAngeli, Milano, 2004, pp. 124-149.

⁴³⁹ J. Kellerhals, M. Modak, M. Sardi, N. Languin, R. Lieberherr, *Justice, sens de la responsabilité et relations sociales*, in “L'Année sociologique”, 2, 1995, pp. 317-349.

the one they deem most suitable for a given context or situation, be it personal or impersonal⁴⁴⁰;

b) there could be a discrepancy between, on the one hand, what is deemed fair at an abstract level of reasoning (the “forceful ideas” of justice and rights) and, on the other hand, what is deemed right when that reasoning and those notions are applied in some given situations;

c) participation to decision-making processes is a key procedural element when judging the rightness of a decision;

d) participatory experiences have an impact on the selection of justice criteria and on the shaping of social representations of justice-related issues;

e) the family is a privileged field to explore feelings of justice, as the rules and criteria used within the family are partly different to the ones in use outside;

f) the gender variable is key in the choice of moral criteria and notions of justice.

In brief, it was assumed that norms of justice are shaped by the actors’ social setting, status, and gender, by the nature of the relationship between them and by the type of resources at stake; ideals of justice change according to the relationship between the subjects involved and therefore needs for justice could be “particularistic” (based on the group of origin), universalistic (based on merit), or “providentialist” (aimed at satisfying primary needs), as the case may be. According to this approach, which could be defined as pluralistic, the maturity of social actors is gauged by their capacity to compare and use different justice criteria – namely need, merit, and equality – in different relational contexts.

Our survey sample included young people from different higher secondary schools, some of whom were also members of a young people’s association (Centro Nazionale Giovani Esploratori Italiani CNGEI – National Explorers Youth Corps). Most of them were given individual interviews,

⁴⁴⁰ *Ibidem*.

whereas some others were involved in focus groups. The interviews presented different scenarios related to distributive justice, procedural justice, allocation of responsibility, and acceptance of injustice. Focus group work, on the contrary, was based on the discussion of some moral dilemmas and tragic choices.

This work will focus on two out of the five dilemma scenarios proposed.

3. Survey findings at a glance. Moral dilemmas

Moral dilemmas have been widely used to explore justice from a philosophical viewpoint, for theoretical speculation, and from a psychological perspective in order to appreciate moral reasoning in terms of cognitive skills. These dilemmas, however, are also useful tools to investigate feelings and representations of justice from a sociological perspective. In particular, asking young people to take a stand on some moral dilemmas and try to think up solutions makes it possible to explore their social representations of notions of fair/unfair, justice and injustice, laws, morals, and rights. At the same time, it shows whether they are able to develop complex reasoning concerning equally complex issues of justice and whether their arguments, as it happens with adults, draw on a vast array of rules and moral principles, which are used in a selective and complementary way according to a given situation.

As mentioned above, Lawrence Kohlberg more than others made extensive use of moral dilemmas in psychological research. Kohlberg's aim was not so much to investigate the opinions held by the children and teenagers he interviewed (aged from ten to sixteen) about different dilemma scenarios. Rather, he wanted to understand the reasoning behind the development of different individual stances in order to identify individual levels of moral development. Some

dilemmas presented by Kohlberg in his interviews were submitted to our focus groups participants. The section below is a short illustration of the outcomes of the scenario discussion about two different dishonest behaviours enacted by two brothers.

4. Is stealing worse than deceiving?

In this scenario, both characters obtain money in an illicit manner. Below is the story that was presented to our young participants:

Two brothers, Alessandro and Giovanni, are experiencing great difficulties as they have to rush out of town in secret and they need money. Alessandro broke into a shop and stole 500 euros. Giovanni, on the contrary, went to see an old pensioner who was well-known in town for having helped several people. Giovanni told him that he had a serious condition and that he needed 500 euros to pay for the required surgery. In fact, Giovanni was not ill and had no intention to give the money back. Although the pensioner did not know him very well, he gave Giovanni the money. So, Alessandro and Giovanni left town with 500 euros each in their pockets.

After reading this short scenario, focus group participants were asked to give their views about which behaviour they thought was more to blame. Most participants, regardless of the school they attended, their gender, and other social, cultural, and age-related variables, thought that Giovanni, the brother who chose to get some money by deceiving an old benefactor, behaved in a more reprehensible manner. In some focus groups (in particular the one held in a technical school and the all-boy group organized in a vocational school), respondents made equally negative Judgements, whereas

hardly anybody thought that the brother who opted for the robbery was more to blame.

The reasons put forward by participants were mostly to do with trust. More blame was attributed to the behaviour of the boy who, in order to obtain money illicitly, did not “just” steal it but used the trust that had been placed in him and betrayed those who showed kindness towards him:

The fraudster’s behavior was worse because somebody was kind to you and then you let them down.

There were also those who, when considering the gravity of both behaviours, took into account the consequences to the victim:

I’d probably rob the shop, considering it’s not owned by poor people, whereas the pensioner only has his pension.

The reasons given by the few who thought the robbery was more serious were based on the use of coercion and violence. The old pensioner gave the money of his own accord (“he asked for it, in a way”), while the shopkeeper was forced to do it, he did not have any other option. This element, in their view, makes Alessandro’s behaviour more serious.

In the focus groups participants were invited to analyse what had happened from different perspectives. They were asked to give their views on the seriousness of the actions of the two brothers when considering the situation from the viewpoint of the law, of society and of the victim respectively. In the second and third case, on the whole, participants stuck with their original opinion: they were almost unanimous in their view that the fraud was worse than the robbery and they explained their choice by saying that, from the viewpoint of society, betraying somebody’s trust is worse because it undermines interpersonal relationships and charitable

behaviour. When considering the victim's point of view, it was claimed that the old man would feel he had been treated more unfairly because he had been betrayed without remedy. He would also feel guilty for having believed those lies:

Probably helping other people made the old man feel good, so realizing he had been betrayed in this way is even worse!

The shopkeeper, on the contrary, could regain his money thanks to his business and, anyway, he ought to know that these unfortunate events "come with the job".

Opinions became almost diametrically opposite when participants were asked to approach the case from a legal stance. Then, most of them identified the robbery as more serious, or anyway as the behaviour that would receive a harsher punishment. The reasons given for this change of attitude clearly revealed the separation between the legal and the moral spheres:

Cheating is morally worse, but the robbery would be judged more harshly from a legal viewpoint.

Even those who thought that the two behaviours were equally serious from a legal perspective pointed out that cheating was a more despicable act. Many of those who thought that the fraud deserved more blame also added that they believed the law was right in punishing the robbery more harshly because that action involved elements of coercion and violence, which were aggravating circumstances. Some of those who considered the fraud as more serious from a legal point of view too argued that the law "should also consider the emotional distress". Only few participants, after drawing a distinction between the legal and the moral, thought that laws should be increasingly inspired by moral rules and sentiments. On the whole, the distinction between laws and morals was

not considered as a contradiction to be solved. On the contrary, the general opinion was that it was right for laws, which “must be universal and equal for all”, to keep a distance from moral considerations, which “may also differ from one person to another”.

Focus group participants were then presented with two options. The first concerned the robber brother and consisted in choosing whether he should rob a small village shop or a big department store owned by a multinational company. The almost unanimous opinion was that robbing a big store was less serious because, in that case, the harm done would be less:

If you steal a lot of money from a small shop you could make it go bust, whereas big chain stores would not suffer much.

Here, we find the providentialist conception of responsibility evoked by Kellerhals. According to this notion, when a large, impersonal, and anonymous organization is involved, individual responsibility for the consequences of one's actions tends to be alleviated, irrespective of whether the action is lawful or not.

In this instance too, many participants pointed out that judgments change according to whether they are based on moral or legal grounds:

From a moral stance, I think that stealing in a small shop is worse, but from a legal viewpoint they're equally bad and I think that's the way it should be.

I don't think the law considers the income of those who suffered a robbery but I think it would be right if it did.

Finally, in the second option, participants were asked to decide whether it was worse to cheat a stranger or a friend. In

this case too, almost everybody thought that betraying the trust of a friend was worse:

I'd rather be betrayed by someone I don't know; I trust my friends, I believe in them.

I think that deceiving a friend is worse because not only you deceive somebody but you also wreck a friendship.

And again:

From a legal point of view it's just as bad, but from a moral stance betraying a friend is worse because you also had a bond with this person.

All participants thought that friendship was a very important and sacred value and violating it would make the fraud even more despicable. Few boys and girls though thought it would be worse to cheat a stranger and one of them gave this reason:

A friend can track you down, you might see him after a while and you could give him his money back and apologize too. It's not as bad because you can put it right.

This argument reveals the discomfort of having to choose between two reprehensible acts; the attempt is to ease this discomfort by choosing a behaviour that leaves an option open for putting things right and be freed from the sense of guilt.

5. The case of von Kleist's "*Michael Kohlhaas*"

Another particularly significant scenario we presented during our focus groups was taken from *Michael Kohlhaas*, a play written by German playwright Heinrich von Kleist in 1810. Von Kleist's work tells about Michael Kohlhaas, a horse

dealer who, after having unsuccessfully sought justice against the abuses perpetrated by a Saxon Junker who had seized and damaged two of his horses, decided to take justice into his hands and became an outlaw. Heading a mob of gangsters, he attacked the Junker's castle, wreaking havoc and slaughter among villages in order to make himself heard and have his rights restored. When questioned about the reasons for his conduct, he explained that, having been denied the protection of the laws, he considered himself "expelled from the community" and declared: "he who denies it me drives me back to the beasts of the desert, and puts in my own hand [...] the club which is to defend me". Kohlhaas eventually managed to have his horse case re-examined. The court ruled in his favour, but then he was arrested for his acts of banditry. Finally, he obtained justice for the damage he had suffered but, at the same time, he was sentenced to death for having threatened the order of the Empire. Although he had the chance to avoid punishment, Kohlhaas thought it was right to face his sentence for the crimes he had committed, thus reaffirming the supreme moral value of justice.

The dilemma raised by this story is between the duty to disobey the law when it is not right and, on the other hand, the duty to obey it anyway because it is the law. This can be summed up in one key question: is it right to break a law you deem not right because it is contrary to your moral code? Or, on the contrary, should every law, even the most unjust, be obeyed because it is the law, in the name of a meta-law, a higher principle rooted in the need for political allegiance or social order⁴⁴¹?

The question of obedience/disobedience to an unjust law has always been at the centre of philosophical debate, which is fuelled by opposing scholarly views on the conflict between moral and positive law from perspectives mostly related to

⁴⁴¹ V. Ferrari, *Giustizia e diritti umani. Osservazioni sociologico-giuridiche*, cit., p. 101.

moral and political philosophy and the philosophy of law. To put it very simply: on the one hand, there is the belief that every conflict between moral and positive law should be resolved in favour of the former. The opposing approach, on the contrary, maintains that legality and morality belong to separate spheres; thus, if the conflicts arising between them generate some moral dilemmas, these should not interfere with the general duty to obey the law. Consequently, all laws must be obeyed, even those that are wrong on moral grounds. Nevertheless, at the same time, people have the duty to make all lawful efforts to change these laws. According to this view, therefore, obedience to the law is a moral duty.

Kohlhaas's tragedy is in some way similar to that of Antigone. Von Kleist's character, just like the main character of Sophocles's tragedy, experiences a profound conflict between two duties grounded in different normative frameworks: on the one hand, the legal system and, on the other hand, moral codes. Here too, we are faced with what Persio Tincani calls non-dilemmas. These are cases which lead to different conclusions depending on the normative moral framework used. In fact, they are not dilemmas per se but they are just dealt with differently within different normative frameworks. In these cases, a decision is always possible; they are not hard cases, as they have a straightforward solution in any normative moral framework we may choose. Here, the problem is actually linked to the choice of a normative moral framework, not to the specific nature of the case itself or to the implementation of the rules of the normative framework used⁴⁴².

In Kohlhaas, we find the underlying narrative structure of much tragic literature from Antigone onwards, where the main character is confronted with two different moral systems and acts in a way as to express his/her choice, which is often

⁴⁴² P. Tincani, *Giustizia, ingiustizia, sfortuna*, in "Il politico", 1, 2002, pp. 151-166.

opposed to the political powers that be. These characters claim they are driven by such an impelling force that they could not act otherwise; they do not change their conduct even under the threat of punishment by the dominant normative system. Just like Antigone, Michael Kohlhaas too stimulated much thought among scholars, who have expressed conflicting views.

As Thomas Mann remarked, Michael Kohlhaas's story could raise very mixed feelings among readers. On the one hand, it may stir admiration for the determination displayed by the main character, who becomes a hero and a defender of justice. On the other hand, however, the crimes he committed in his "terror-bound frenzy to improve the world" and seek revenge could also cause horror and disgust⁴⁴³. In particular, Mann noted that Michael Kohlhaas received praises from Rudolf von Jhering who, in his 1872 work *The Struggle for Law* mentioned von Kleist's play and wrote enthusiastically about the ideal feeling of justice held by the main character⁴⁴⁴. For Jhering, standing up to one's rights is an individual's duty not only towards oneself but also towards society. Goethe, in contrast, as Mann remarked, had an opposite view. He defined Kohlhaas as an excessive character and his behaviour as an almost obsessive need to turn a personal matter into an issue of general interest.

Michael Kohlhaas's story also invites another important question. In fact, his fight for the recognition of the violation of his rights may not only serve to redress the injustice he had suffered, but eventually it could also secure justice for his fellow citizens. His struggle would then become of public interest. This is exactly the point Jhering made. He thought that the violation of a person's rights amounted to a violation

⁴⁴³ T. Mann, *Heinrich von Kleist e i suoi racconti*, in Id., *Nobiltà dello spirito*, Mondadori, Milano, 1997, p. 119.

⁴⁴⁴ R. von Jhering, *La lotta per il diritto*, in Id., *La lotta per il diritto e altri saggi*, Giuffrè, Milano, 1989, pp. 71-170.

of the Law⁴⁴⁵. Within this framework, Kohlhaas is not a man “obsessively confined in his narrow world of self-interest [...], but rather a staunch defender of the cause of law”⁴⁴⁶ and justice, which is considered as a moral value that cannot be seen as separate from human dignity. Consequently, defending one’s rights means preserving one’s moral existence.

Finally, this story begs the question of whether it is fair to sacrifice innocent people in the name of a higher good, which, in this case, is justice.

Our focus groups discussions were started with the question: “How do you judge the behaviour of the main character of this story? Try to put yourselves in his shoes and say what you would have done in his place”.

Almost all the participants thought that Michael Kohlhaas’s behaviour was wrong and called him “stupid”, “naive”, “crazy”, “fanatic”, and “selfish”. Their reasons drew on family and life values, which should not be sacrificed because of an injustice:

There are other values as well as justice, like the family.

It makes you wonder whether it was worth it. I don’t think it was, I wouldn’t sacrifice what he sacrificed: he lost everything in the name of a moral principle. Of course, everybody would do it in theory, but if you actually do it in practice you must be mad!

I think he did it all wrong, because, in order to obtain justice, he involved people who had nothing to do with it and then he died too. What use was justice to him in the end?

⁴⁴⁵ *Ibidem*.

⁴⁴⁶ F. Chazel, *Sentiment d’injustice, lutte pour le droit et rationalité axiologique: variations sur le “cas” de Michail Kohlhaas*, in “Droit et Société”, 55, 2003, p. 774.

These opinions confirmed the importance of the family in young people's scale of values. This is also shown in other studies⁴⁴⁷, where family ranks first.

Some participants, however, agreed with the ideal of justice supported by Kohlhaas, although they disapproved of his methods, thus showing their aversion to violence:

I don't agree with Kohlhaas's behavior although maybe, if I put myself in his shoes, overwhelmed with rage, I would have taken justice into my own hands too. Still, I wouldn't have burned down houses and villages.

I don't agree because those who had their homes burned down suffered an injustice too and if they had behaved the way he did, it would have gone on forever.

The value of non-violence also underlay the criticism expressed by almost all participants when they were asked if it was legitimate to have a violent reaction when a public authority did not acknowledge a violation of legitimate rights and did not provide redress for the wrongs suffered. Placing oneself outside the law and taking justice into one's own hands after suffering an injustice was tolerated, but never through the use of violence:

I don't think it's right to use violence but I think it's right to rebel against injustice.

If we all reacted like that, following our instinct, we wouldn't be civilized people.

Others added that taking justice into one's hands should not involve the use of violence against innocent people:

⁴⁴⁷ C. Buzzi, A. Cavalli, A. de Lillo (a cura di), *Giovani del nuovo secolo. Quinto rapporto LARD sulla condizione giovanile in Italia*, il Mulino, Bologna, 2002.

There is a limit to everything. I mean, I accept the fact that he went and burned Von Tronka's castle to the ground but I do not accept his burning down villages and killing those who lived in them.

I think that taking justice into one's hands is absolutely wrong because, even if a law is unjust, that's not the way to deal with it.

The general opinion was that the use of violence puts the victim at fault, leading to a spiralling sequence of abuses which it may become hard to get out of:

Then you'd become the bully because you're destroying villages. You'd get down to Von Tronka's level.

Some participants said that it was not worth fighting powerful people, even for a just cause, because in these cases defeat was in the cards. They thought that in the face of a court decision, albeit an unjust one, one should give in if up against very powerful people:

Surrendering is wrong but unfortunately that's the way of the world. The just will always pay the price.

If I'd been in his shoes, after the court had ruled against me, I would have just given up.

Among the few who approved of Kohlhaas's behaviour, some of them called him "heroic" and expressed their admiration for him. They pointed out that he had acted to defend a principle, the principle of justice, for which he had given up a life of comfort, his family and even his own life:

I think that Kohlhaas is to be admired because he had a sense of justice. His behavior was extreme, that's true, but he pursued his ideal even at the cost of losing his wife and

leaving his children. I don't think there would be people ready to do that nowadays.

Michael fought for justice. He lived in the 16th century, when people had to fight for justice. That's why we all have justice now, thanks to these people who fought for a principle.

Several focus group participants, even though they disapproved of Kohlhaas's behaviour, conceded that, if they had been in his shoes, they would have very likely behaved in the same way. In this case too, there was a discrepancy between what was considered as fair and unfair on an abstract level and, on the other hand, judgments expressed on the basis of experience:

I would have done exactly the same thing because suffering an injustice and not seeing it recognized would inevitably make me take justice into my own hands. I wouldn't accept the court's ruling which, in this case, appeared to be in favour of a powerful family.

Maybe, if I were to put myself in Kohlhaas's shoes, overwhelmed with rage, I would have taken justice into my own hands too. Still, I think that's absolutely wrong because, even if a law is unjust, that's not the way to deal with it.

The last question asked whether Michael Kohlhaas, by reclaiming his rights, only received redress for the wrong suffered or whether, on the contrary, he also secured justice for his fellow citizens. A high number of participants, both male and female, were convinced that Kohlhaas's actions would yield positive consequences:

People like Kohlhaas contributed to change the rules and the way we live as people and as a society. Nowadays, these things would be worse if those people did not exist.

This story certainly made justice less dependant on power. Michael's rebellion toned down the arrogance of those squires.

On the opposite side, some focus group participants did not believe that actions of people like Kohlhaas helped fight injustice:

I don't think Kohlhaas's conduct secured justice for other citizens too, because he eventually only got justice for himself. The court probably couldn't take it anymore, von Tronka was fed up with the whole thing and so they gave him what he wanted. However, I don't think that those coming after him would get the same treatment, unless they used the same means as him and rebelled like him.

6. Some final comments on our findings

On the whole, the findings of the research seem to confirm our theoretical assumptions; they were also effective when assessing young people's moral and dialectical skills in situations which did not only belong to their everyday life but also to other private and public spheres (contractual, judicial, administrative, and political), which were beyond their experience. Boys and girls involved in the research showed high competencies and a good ability to use different justice criteria. Also, the values underlying their arguments appeared to be similar to those emerging from comparable surveys conducted among young adult populations. These surveys show that, when making moral judgments, there is now an increased "awareness of complexity": "people no longer apply preconceived principles but they adapt them, discussing their validity before they use them to inform their behaviours and judgments"⁴⁴⁸.

⁴⁴⁸ R. Boudon, *Declino della morale? Declino dei valori?*, cit., p. 45.

The youth who participated in our interviews and focus groups displayed a considerable ability to apply different justice criteria in different contexts and situations and when making decisions involving individuals or the community as a whole. In addition, they also showed good reasoning skills on items dealing with legal issues.

Ethics of discussion and deliberation seem to have broken old bans and taboos; this has led to increasingly flexible moral assessments and has placed greater focus on the values of tolerance and respect for human dignity.

With regard to the questions of justice explored in our research, our first remark concerns the assumption that different relational contexts (personalized or bureaucratized) and different types of relationship between the actors involved (personal or impersonal) influenced respondents' choice of justice criteria. Our research findings seem to corroborate, though to a lesser extent, data from previous studies on justice representations conducted among adult populations, which stressed factor like the importance and the type of relationship between the actors involved. This was observed in two out of three justice scenarios where this variable was considered, namely the ones concerning distributive justice and the allocation of responsibility.

More specifically, with regards to distributive justice, equality clearly appeared to be the most popular criterion when the actors involved had an affectionate relationship with each other based on kinship or friendship. On the contrary, in a bureaucratized relational context, the criteria most frequently chosen were merit and need respectively. Always with regards to distributive justice, when, on the other hand, the choice was between notions of micro- and macro-justice to distribute economic and legal resources in the public sphere, decisions depended on the object of the question.

As for the allocation of responsibility in contractual relationships, boys and girls, on the whole, confirmed that the type of relationship between the parties had an impact on the

criteria chosen to allocate responsibility among the various actors involved. More precisely, findings reveal that higher levels of interpersonal relationships produced a greater use of providentialism, where the need to protect the individual vis-à-vis organizations is supreme.

With respect to procedural justice, relational contexts did not seem to have a bearing on the choices made by our sample. In the two scenarios analysed by our study, which were set in a family and in an institutional context respectively, boys and girls thought it would be more correct to adopt a participatory decision-making process – entailing the participation of all the parties involved, both adults and children – as opposed to autocratic decisions. Here, it was also noticed that members of our sample did not only welcome the involvement of all the subjects concerned but they also appreciated other procedural factors such as the decision-maker's impartiality and the adequate provision of information on the reasons behind decisions.

Our discrepancy assumption, which was already demonstrated in several studies conducted among adults, was confirmed by the results of the items concerning the tolerance of injustice. They show that, when dealing with human rights – which are now embedded in our common sense – there is a gap between the universal endorsement of these rights at a general and abstract level and, on the other hand, a considerable tolerance of some violations of these rights in some practical situations. Even when the sample recognized situations of injustice, in some cases a significant minority declared they were ready to accept injustice if they thought it was necessary in order to achieve what they considered a higher, overriding goal. Within the same framework, it was also demonstrated that the type of victim had an influence on the perception and the assessment of the seriousness of rights violations.

As for the impact of participatory experiences on the formation of representations of justice, it appeared to be

particularly relevant in some research items dealing with the allocation of responsibility. Boys and girls who were members of the association tended to give more weight to individual responsibility, whether it was ascribable to the subject who took the initiative or to the actor who actually caused the damage. Participatory experience therefore seemed to lead to a stronger sense of individual responsibility and to an enhanced awareness of the need to take responsibility for the consequences of one's actions. With respect to questions of human rights, the impact of membership in associations seemed to encourage a universalistic approach, bridging the gap between the conceptual adherence to human rights and, on the other hand, the perception of their actual application or violation in some concrete cases.

With respect to the influence of gender on the choice of justice criteria, the analysis of answers, on the whole, did not reveal any significant and generalizable gender-related differences but it simply identified some trends with regards to some research items. These trends seemed to be consistent with those reported in the literature: males looked more oriented towards autonomy and objective notions of justice, whereas females showed to be more inclined to adopt an ethics of care while tending to weigh and balance different justice criteria.

In particular, when dealing with concepts of distributive justice, a higher number of boys tended to go for a merit-based approach in bureaucratized contexts, whereas girls, on the contrary, seemed more willing to adopt an egalitarian perspective. With regards to the allocation of responsibility, on the contrary, female interviewees definitely appeared more inclined to identify collective responsibilities and social conditioning. Boys, in contrast, tended to give prominence to individual responsibility.

Our focus group sample was able to reason and discuss the complex questions presented to them, displaying a good operational knowledge of moral concepts. In particular, the

focus group technique, based on the active engagement of all group members in the discussion, showed the process through which participants formed their opinions about which was the right decision in a number of ethical dilemmas.

During the focus groups discussions of different scenarios, participants seemed to realise that they were confronted with dilemmatic situations and they appeared to be aware that it would have been difficult, if not impossible, to find a just solution that would satisfy all criteria. In particular, they were clearly aware of the existence of two different types of judgment: the legal and the moral. On several occasions, as mentioned above, they pointed out that what was “legally right” could not always be considered as “morally right”; it was also observed that, in a moral perspective – where specific values and criteria such as loyalty, trust, kinship, and friendship come into play – different situations would be considered in different ways, whereas, on the contrary, the law should deal with them all in the same way. With regard to dilemmas too, the relational context and the type of relationship between the subjects involved in different scenarios seemed to influence the choice of different judgment criteria.

The analysis of focus groups findings shows that, on the whole, both girls and boys articulated confident opinions about the “right” decisions that the characters of the stories should make, although they were aware of the moral conflicts those characters were faced with. Except for the tragic choice of the “speleologists dilemma” between sacrificing a life in order to save others – where participants adopted conflicting stances when choosing from a variety of possible options – the positions expressed by our sample generally enjoyed a wide consensus. In some dilemmas, this similarity of opinions and views was obvious right from the start, while in others participants reached a common position after exchanging and discussing ideas. Generally speaking, our sample proved to be aware of the fact that every choice inevitably carries positive

and negative consequences, which one needs to take responsibility for.

Finally, both focus group discussions and interviews showed that young people have a strong and realistic sense of the complexity of different moral situations. Furthermore, it also appeared that, when deciding what is right or not, they drew on a well-structured set of core values, which included not only family and friendship – as noted in the findings of some famous studies on the value orientations of young Italians and young Europeans in general – but also respect for other people, the rejection of violence, and a sense of individual responsibility for one's actions. This last element, however, as illustrated above, was tempered by a cautious awareness of the strong impact of social conditioning on individual autonomy.

In conclusion, it can be asserted that our sample showed to possess advanced moral reasoning skills, which allowed them to identify, distinguish, and evaluate the different criteria relevant to each option proposed in different research scenarios. In our view, the fact that most responses revealed the lack of a cookie-cutter approach to selecting criteria should not be regarded as a sign of young people's indecision over the use of these principles, or worse, as a sign of their moral chaos. On the contrary, it should be seen as evidence of their ability to evaluate different criteria and choose the one that best suits a given concrete situation; boys and girls involved in our research appeared to relate their choice to specific circumstances and prospective scenarios while, at the same time, maintaining their attachment to firmer general principles.

Our sample's ability to articulate sometimes complex moral reasoning, however, is at odds with the low moral status commonly attributed to young people, who are often confined to fringe roles when discussing and deciding upon ethical issues, whether at school or in administrative or

judicial proceedings⁴⁴⁹. If pedagogy is to break away from indoctrination and move towards the promotion of critical moral thinking, beyond mere concerns about reinforcing the need for social order and stability, it should promote and encourage children's involvement in discussions and debates about ethical problems and justice-related questions. The strengthening of civic ethics, that could be defined as a "set of values and judgments concerning people's rights and obligations which, broadly speaking, relate to the idea of democratic citizenship", rests on citizens' "ability to reason and argue"⁴⁵⁰.

⁴⁴⁹ B. Mayall, *Lo status morale dell'infanzia. Appunti dalla Gran Bretagna*, cit.

⁴⁵⁰ L. Sciolla, *La sfida dei valori. Rispetto delle regole e rispetto dei diritti in Italia*, il Mulino, Bologna, 2004, pp. 103, 9.

The perception of social justice between insecurity and irregularity of working

Ciro Pizzo

The intervention now submitted seeks to offer a liminal look at the link between justice and work, comparing it with images of the social justice as it related to evaluate how the fragmentation, if not the dissemination, of what once would be called the working class has affected the questioning of social justice in general, of the guarantees and safeguards' erosion, and if this is related to the different imaginaries and the different practices of claiming rights that should follow from practical social justice in our society.

There has been talk of looking only liminal because the categories studied seem to be those closest to the edge of society, ie those which should easily be cataloged on one side among the “outsiders” of society (irregular workers) and from the other between the “subjects at risk exclusion” (precarious workers)⁴⁵¹.

What we can say by now is that it seems to be facing a significant gap in the representation and perception of social justice, scrap intimately tied to the transformations in the

⁴⁵¹ About the category of the “outsiders”, see H. S. Becker, *Outsiders. Saggi di sociologia della devianza*, EGA, Torino, 1987; for a critical consideration of the concept of “exclusion”, see R. Castel, *Les pièges de l'exclusion*, in “Lien Social et Politique”, 34, 1995; Id., *Cadres l'exclusion*, in S. Karsz (sous la direction de), *L'exclusion, définir pour en finir*, Dunod, Paris, 2000; Id., *Inquadrare l'esclusione*, in G. Covili, *Gli esclusi. 1973-1977*, Quodlibet, Macerata, 2007; for the category of “désaffiliation”, more correct to understand the not-static situation of the work in the contemporary world, see again, in addition to the previous texts of the same author, R. Castel, *Le metamorfosi della questione sociale. Una cronaca del salariato*, Elio Sellino Editore, Avellino, 2007.

world of work, which is in fact the river bed which produces for the first time the concept of social justice, as recalled, for example, from the document of the Department of Economic and Social Affairs – Division for Social Policy and Development, entitled *Social Justice in an Open World. The Role of the United Nations*, issued as result of the International Forum for Social Development in the 2006.

The problem of the justice as “social” justice originates at the Industrial Revolution’s time, for the exploitation of labour that becomes “excessive” to the eyes of a part of the European population, triggering off the process of claiming “equality” and “equity” that will be embodied in the concept of “social solidarity”, in which social inequality is maintained, however, defusing the revolutionary principle of the *égalité* too, on the one hand, but on the other, even the *fraternité*.

The same theme of social justice is tied to the fortunes of the working class, historically embodied primarily from wages. The historical events of the wage earner bring to the Third and then of the Fourth State affirmation, that especially in moments of “emptiness” of jobs and social positions (during and after the world wars) gained assurances, bringing to completion the project of social solidarity. So the social solidarity becomes the alter egos of the social justice, a key concept in classical French sociology, representing the true soul that holds together the heterogeneous social body.

With the emergence of the Fordist model of work, which needs a lot of labour and which is linked progressive enlargement of the range of consumers, improves the wage workers’ conditions which are going to enter the ranks of consumers, in fact, experiencing a general improvement of living conditions compared to the past. They are regularly enrolled in the social space based on a contract that binds them “indefinitely” at their workplace, the great physical place that is the factory with its machinery, and this entry is the simultaneous more general entry – with dignity – to society.

The expansion period of the Fordist model also allows the initiation of practices of social promotion, if not among the workers themselves, at least among their children, which, thanks to the confidence in the continuity of work, and then of payment, is permitted the access to the higher rung of the social scale than that occupied by the working class itself (thanks to the various loan and accrued expenses).

In short, it establishes a dichotomy more and more polarized. On one hand we have the world of factory work, manual work, with precise imaginary related, consisting on fatigue and low intelligence, lack of freedom and dignity, as can be seen even from a latest Ipsos research⁴⁵², where the factory work still appears as a “conviction”. On the other hand, there are new jobs, “office” jobs now embodied by the service sector, a sector which has expanded increasingly, particularly in the more economically advanced countries, where labour cost is becoming higher and then disappears in the industrial settlements, moving the latter towards countries where labour costs much less.

If we consider social justice as an expectation of claims of status (which is perceived by both groups), we can see how there is a generational difference in how claims of justice itself, practice actually deployed to do this instance.

On one side there are the irregular workers that installed in the interstices of the society, in the voids, in the holes, in those not integrated parts of the society to the official social body, they have accustomed and socialized to this parallel universe, which is generally defined as the world of “undeclared work”, in which container can enter all those in the world of formal employment are not entitled to

⁴⁵² That's a research conducted for the text of A. Calabrò, *Orgoglio industriale. La scommessa italiana contro la crisi globale*, Mondadori, Milano, 2009.

citizenship. They are workers *sans papier*⁴⁵³ that can not draw on the collective agreements and related guarantees. Just as the sans-papier in the world of migration⁴⁵⁴, they are people who draw from the classic imaginaries of work and able to activate the proximity networks, or sometimes trigger Social services – not always public Social service – that now compensate for proximity networks⁴⁵⁵. But also in their work schedules they reflect a still Fordist imaginary, as in case of holidays too, for example. Even in the practices to claim a space, a “place” for them in society (I think the movement of long-term unemployed and “senescent” workers that go out too soon from the productive circuits to retire them and they are of difficult reemployability), mobilizing the imaginings of

⁴⁵³ For the sense here concerned of “*sans papier*”, see M. Ferraris, *Sans Papier. Ontologia dell'attualità*, Castelvechi, Roma, 2007; Id., *Documentalità. Perché è necessario lasciar tracce*, Laterza, Roma-Bari, 2009.

⁴⁵⁴ As general introduction, see D. Bigo, *Editorial. Circuler, refouler, enfermer, éloigner: zones d'attente et centre de rétentions aux frontières des démocraties occidentales*, in “Cultures & Conflits”, 23, 1996, [En ligne], mis en ligne le 15 mars 2006. URL: <http://conflits.revues.org/index344.html>. Consulté le 16 janvier 2010; F. Jobard, *Le banni et l'ennemi. D'une technique policière de maintien de la tranquillité et de l'ordre publics*, in “Cultures & Conflits”, 43, 2001, [En ligne], mis en ligne le 28 février 2003. URL: <http://conflits.revues.org/index571.html>. Consulté le 16 janvier 2010; M. Bietlot, *Le camp, révélateur d'une politique inquiétante de l'étranger*, in “Cultures & Conflits”, 57, 2005, [En ligne], mis en ligne le 07 janvier 2010. URL : <http://conflits.revues.org/index1763.html>. Consulté le 16 janvier 2010.

⁴⁵⁵ I think the description of Jack London's East End of London, *The People of the Abyss* (J. London, *Il popolo degli abissi*, Robin Edizioni, Roma 2008), but also to Totò in the film *Totò e Peppino divisi a Berlino* (Italy, 1962, direct by G. Bianchi), able to take the trip Acerra-Berlin, with only 600 lire in his pocket, before the judge, the son of immigrants who rose through the ranks, utterly unable even to imagine such a thing. Very important consideration you can find in P. Bourdieu (sous la direction de), *La Misère du monde*, Seuil, Paris, 1993; L. Wacquant, *Castigar a los parias urbanos*, in “Oficios Terrestres” 17, 2005; Id., *La penalizzazione della povertà e l'ascesa del neo-liberalismo*, in G. Covili, *Gli esclusi. 1973-1977*, cit.; Id., *Parias Urbains. Ghetto, Banlieues, États*, Découverte, Paris, 2006.

classic protest actions that push for a “high visibility”, occupations of the centre, stations, roofs, road closures, fires, noisy processions, etc., thus reactivating the resources of the classic “dangerous classes”⁴⁵⁶.

On the other, we have young people in casual employment – a generation of workers weakly socialized, maybe members of society in a manner not deeply rooted – with an ego, an individual dimension, particularly developed in accordance with the spirit that Durkheim attributed to countries of Protestant culture⁴⁵⁷. They are especially “office” workers, a traditional very fragmented and hierarchical setting of small numbers of workers, which has never allowed the establishment of a large and unified group (just think of the different types of contracts). The practices of distinction are fierce and very extensive, especially compared to the workmen’s universe, from which the separation is looked for in every way, despite the “wage-earning” of a lot of paperwork.

Different are also the practices of claiming social justice deployed, as the office workers and the precarious ones are not able to draw on traditional practices, at which they are not socialized and maintain a certain “class” detachment, because considered violent and uncivilized. The image of precarious employment is that one of workers living in conditions of

⁴⁵⁶ For the “dangerous classes” see L. Chevalier, *Classi lavoratrici e classi pericolose. Parigi nella rivoluzione industriale*, Laterza, Bari, 1976. For important cases of revolt, see R. Castel, *La discriminazione negativa. Cittadini o indigeni?*, Quodlibet, Macerata, 2008; Ag. Petrillo, *Città in rivolta. Los Angeles, Buenos Aires, Genova*, ombre corte, Verona, 2004; An. Petrillo (a cura di), *Biopolitica di un rifiuto. Le rivolte anti-discarica a Napoli e in Campania*, ombre corte, Verona, 2009.

⁴⁵⁷ It seems so confirmed the spirit “Protestant” of capitalism today triumphant in a society individualized and individualizing, for which see M. Weber, *L’etica protestante e lo spirito del capitalismo*, Bur-Rizzoli, Milano, 1996; for Durkheim, see particularly É. Durkheim, *Il suicidio*, in Id., *Il suicidio - L’educazione morale*, Utet, Torino, 1998.

“continuous discreditability”, which makes less-developed the networks of proximity and solidarity when they lose work. The image becomes that one of those who took away the boxes with their things from the offices, which take the path of “invisibility”. For them having recourse to social services smell of defeat and fall, know of stigma to hide⁴⁵⁸.

The fragmentation and ultra-segmentation of the job makes these workers elusive to the practices and possibilities of trade union that were favoured in factory environments, where in this sociation form often led the practice of group solidarity, which was encouraged by the number and continuity of time and place of shared work⁴⁵⁹.

Today it seems rather that the precarious class can access to guarantees according to practices that remind the *ancien régime*, in term of “gracious concession” or to push and lobby pressures, on which perhaps engraves economic considerations of maintenance of the social equilibrium and the possibility not to bait a wider social crisis. We have to consider that to the working guarantees of the youngest classes are related the guarantees of the pensions of the former working class now out of the production system.

⁴⁵⁸ Just think of Japan, where there is a ultra-socialization of the mass-individual and where the unemployment is considered such a shame. There is maybe a correlation between the unemployment rate and the suicide rate, as proposed by D. Lester, B. Yang, *The Economy and Suicide. Economic Perspectives on Suicide*, Nova Science Publishers, New York, 1997; see also G. Wehrfritz, *Death By Conformity, with H. Takayama and K. Itoi in Tokyo and D. Hodgson in Akita*, in “Newsweek”, 20.08.2001; for the japanese attitude to the suicide, see Y. Takahashi, *Culture and Suicide: From a Japanese Psychiatrist's Perspective*, in A. A. Leenaars, R. W. Maris, Y. Takahashi (eds.), *Suicide. Individual, Cultural, International Perspectives*, American Association of Suicidology–Guilford Press, New York, 1997; for a confrontation with Durkheimian perspective, see W. S. F. Pickering, G. Walford (eds.), *Durkheim's Suicide: a century of research and debate*, Routledge, London, 2000.

⁴⁵⁹ See B. J. Silver, *Le forze del lavoro. Movimenti operai e globalizzazione dal 1870*, Bruno Mondadori, Milano, 2003; G. Baglioni, *L'accerchiamento. Perché si riduce la tutela sindacale tradizionale*, il Mulino, Bologna, 2008.

The inscription related to the contract records a track and promises a continuous track, a continuous history, ensuring a continuity of identity, on the contrary the “atypical” inscription by insecure, uncertain, atypical contracts, in fact, seems what the temporary residence permits, always with the risk of finding themselves among the *sans papier* of the society, among those without title to be part of the real people who access services and are entitled to.

Reserve army that cannot draw or knows where to draw the imaginaries which is not socialized to, as the violent protests and occupations (do not occupy the office, you will leave with the boxes), among these troops can be seen a high rate of social suicide, metaphorically transforming the idea of Durkheim.

The irregular workers that in the past shared by age different imaginary, drew on the resources assigned to these imaginary and maintained networks, resources and capabilities to enable them in neighbourhoods where they work. Just as the immigrant peddlers, they know to survive even with little money, always occupy the interstices in which young precarious workers are now precipitated as hell.

The irregulars are accustomed to the squares, the public places, the visibility, which constantly maintain and know how to use as a weapon, as indeed the previous generations⁴⁶⁰. The other visibility, the social one – more correctly the “visible distinction” – hardly-won with the study and who promised the young “white collar” or “self-entrepreneurs” the full right to walk, to make crowds, traffic on Saturday night, to make social life, if before made them only Munch-style “ghosts”⁴⁶¹, now increasingly likely to see them imprisoned and buried in

⁴⁶⁰ As we have recently seen for example in Italy for the school, confirming that the gap seems to be just generational. You can see a lot of them posted on YouTube, starting for example with this news programme: <http://www.youtube.com/watch?v=qdmUvng2ac8>.

⁴⁶¹ I think first to *Evening on Karl Johan* (1892), but also to *Anxiety* (1894).

front of the only free public spaces opened to all not-checked avatar which are the virtual squares of social network and Internet.

The Reasons of Law

Vito Marcelletti

I wish to open my essay with an elementary remark, maybe obvious. When we involve such concepts as truth, fairness or reason, in reality we indirectly refer to principles, ideas, models that somehow have defined our relation to the outer reality ever since. They represent the cognitive, ethical and moral map on which we address our social acts and define our horizon of values, the normative setting in which we elaborate our contents, under the banner of cultural pluralism. Therefore they are a collective and shared legacy, allowing us to be legitimatised as a human community, a social ensemble and then as a nation, as an international community, thus giving birth to what Robert Bellah considers a civil religion⁴⁶². This is the result of a long walk, often not linear, rather complicated and suffered, which corresponds to what Weber defines a process of “common rationality”, at whose origin lies the idea of individual – the individual being here meant as an autonomous, independent entity, equipped with a sense of its own dignity and vital interests. Individualism, therefore, represents an “a priori form” of moral and political life, the origin of moral feelings. And it is innate. Boudon is right when asserts, in the footsteps of Durkheim, that individualism is not a Western peculiarity at all: he considers, indeed, the demand for self-respect as a universal need, even when this demand is so opposed by historical forces to be constrained to a state of mere potentiality. Some factors like the improvements in the

⁴⁶² R. N. Bellah, P.E. Hammond, *Varieties of civil religion*, Harper & Row, San Francisco, 1980.

division of labour⁴⁶³, involving the diversification of roles and social abilities, definitely favoured individualism – here's the reason why the process of individualization has found the ideal conditions to assert itself in Western democratic societies rather than elsewhere⁴⁶⁴.

In this process of rationalization, or maybe of Secularization, spaces of action and liberty of the individual increase in proportion with the cultural innovations selected on the basis of rational criteria. It is a sort of program, in which you have to choose the most appropriate ways to achieve the expected goals. Principles like habeas corpus and freedom of speech, for example, introduce the juridical instruments which guarantee individual rights. The separation of powers principle conceived by Montesquieu, distinguishing between the executive, the legislative and the judicial power, inspired the United States Constitution, the Declaration of the Rights of Man and of the Citizen and, as Rufino reminds us⁴⁶⁵, it marked the birth of the state of law, ratifying the definitive break with the *Ancien Régime* and the beginning of Modernity. According to Tocqueville, for example, French Revolution considered the citizen in an abstract way, not depending on any hypothetical peculiar society. It set not only the specific rights of the French Citizen, but also the overall rights and duties of men in political issues. Thanks to its features of universality concerning welfare state and governance, it succeeded in being globally intelligible and reproducible in different places at the same time⁴⁶⁶.

The effectiveness of the separation of powers principle irrevocably asserted itself since it enables political power to

⁴⁶³ É. Durkheim, *La divisione del lavoro sociale*, Edizioni di Comunità, Milano, 1971.

⁴⁶⁴ See R. Boudon, *Il relativismo*, il Mulino, Bologna, 2009.

⁴⁶⁵ A. Rufino, *Norma e conflitto. Cultura giuridica e regole sociali dallo Stato moderno alla società globale*, FrancoAngeli, Milano, 2009.

⁴⁶⁶ R. Aron, *Le tappe del pensiero sociologico*, Mondadori, Milano, 1989.

work more efficiently, offering guarantees to citizens towards the abuses the State may be tempted to commit. The same is valid with respect to parliamentarism, universal suffrage and all the key institutions of democracy: their adoption is to be considered as irrevocable, because they unquestionably have the effect to manage and mitigate social and political conflicts, reduce public violence, increase the chances for the citizen to enjoy social peace, favour wealth-production and improve life standards. On the whole, when a political institution seems to be able to guarantee the respect for individuals' dignity, it tends to be perceived as legitimate, to receive collective approval and, if the circumstances permit, to assert itself in practice⁴⁶⁷. This suggests us that the perception of justice in the global era is not so different from the past, in so far as even in the past the individual judged a norm or a political institution as fair, reasonable and legitimate inasmuch as he perceived its function as a guarantor of his personal dignity and vital interests. What, instead, has profoundly changed, under the action of cultural innovations, is the evolutionary degree of moral sensibility. Nowadays, in fact, a political institution, as well as a law or any kind of political measure, in order to be considered fair and reasonable, must not only respond to the requirements of instrumental rationality – which means adhering to a utilitarian logic or to a merely pragmatically-rooted principle. This is no longer enough on its own. To get the consensus of public opinion, cultural, institutional and economic innovations must be perceived as morally acceptable and ethically sustainable, as well. In short, they must also respond to the requirements of what Boudon calls *assiologic rationality*; substantially, they have to be culturally compatible with the moral sensibility of a certain age. As Durkheim reminds us, during the years the harshness of legal sanctions progressively diminished in the West. The law of the talion has been gradually rejected. Private

⁴⁶⁷ R. Boudon, *Il relativismo*, cit.

vengeances and clan feuds have been replaced by a justice based on cross-examination of the parts under the eyes of independent referees.

Many examples can actually confirm what has just been said. First of all, let us consider death penalty: while it once was a sort of show for the public that thoughtlessly and even with delight used to take part to the executions – as Tocqueville tells us about Madame de Sévigné –, the attitude towards this penalty is nowadays completely different. Today death penalty arouses, in fact, a widespread indignation and consternation in the public opinion; and even in those States where it is still in force, there are many anti-death-penalty associations, groups and movements fighting to have it abolished.

Torture can be considered as an example, as well: with no doubts, torture is an effective method from the practical point of view, but it is now considered as a cruel and inhuman system arousing many ethical issues, and rightly so. The Bush administration was harshly criticized because of the facts happened in Guantanamo and Abu Ghraib, which cost a lot to the last American government in terms of credibility and popular consensus. In light of this, Barack Obama's victory demonstrates Americans' will to turn over a new leaf, if considering their recent past. We can easily observe that there is a feedback system⁴⁶⁸ between the results of the moral sensibility improvement – which is a product of cultural innovations – and the action of the moral sensibility on the rational selection of new legal instruments, which have to be not only effective from the practical point of view, but also suitable for the public opinion's moral and ethical sensibility. That's why many associations and opinion movements have been spreading during these years, promoting the implementation of legal measures and bills regarding the

⁴⁶⁸ L. Caramiello, *Ripensare il mondo. Appunti per una geopolitica della complessità*, in "Mezzogiorno Italia", 1, 2003.

safeguard of the environment, the homosexuals and minorities' rights and the equal opportunities.

Nevertheless, there are some cultural trends and schools of thought related to a culturalist approach, that harshly criticize this view. According to them, the process of individualization is a product of the Western Civilization, and a characteristic of the Western civilization only. According to what Boudon calls wrong cultural relativism, the idea of progress is a kind of ideological fetish. What is called into question is not only the objective grounding of this paradigm, but also its practical effectiveness and the reasonableness of the principles and values it expresses. The principles it refers to would in fact be – in one case – nothing else than the result of power relations and – in the other case – only a simple convention, an arbitrary rule with nothing more than a formal value. Considering it to be correct, it wouldn't match with the fact that any tyrant or authoritarian leader, as he gets the power, first eliminates any opposition and deprives the Parliament of its authority, and then abolishes or strongly restricts citizens' liberty and civil rights. This is therefore the evidence of the fact that these principles actually have an effect on the social body. Such principles cannot be considered as something characteristic of the Western culture only, even if it has to be admitted that democratic institutions have elsewhere great troubles in catching on. This is due to the political weight and relevance of some traditional historical and social forces markedly contrasting with the rationalization processes occurring in any aspect of life, both public and private. In spite of this, if we consider what is actually happening in Iran, China or Russia, we can easily notice how the desire of a democratic participation is deeply felt by a large part of citizens and expressed through the claiming of their civil, political and individual liberty rights.

The concept of public opinion isn't, as many assert, a mere intellectual speculation, at all. It is instead an effective instrument to control and monitor the action of the

government. Adam Smith's concept of impartial spectator helps us to properly understand the importance of the democratic machinery. It relies on the idea that a citizen is an impartial spectator in relation to many issues concerning the State. It means that the citizen is capable of stepping outside of himself, removing his own interests, passions and prejudices from his judgments and evaluations and he deduces them from the common sense only. Basically, the citizen considers a proposition as a good one when he feels to have good reasons to consider it so. It recalls Rousseau's "general will" theory that states that considering issues that don't bring individual passions and interests into play, one person usually judges an institution as a good institution if he has got convincing reasons to express such a judgment. For this reason, common sense tends to establish itself in democratic societies, where the importance of the impartial spectator cannot be ignored, even if it may happen that some historical forces opposing his action change this paradigm, as it has already happened in the past.

On the other hand, we can also consider what happened during the first half of the last century, when Nazi-Fascism spread in Europe. During that period, not only power elites and traditionally-oriented parts of the society, but also philosophers, intellectuals and jurists ideologically agreed with that credo. Among them, Carl Schmitt – author of "The Tyranny of Values"⁴⁶⁹ – maintained the supremacy of traditions and the myth of race, explicitly opposing to the universalism of rights. Heidegger himself openly supported Nazi regime.

All in all, the impartial spectator wants assiologic rationality and pragmatic rationality to be conjugated. The balance of powers, for example, is a widely supported principle, even if very difficult to be actually applied. Not only executive, legislative and judicial powers have to be limited

⁴⁶⁹ C. Schmitt, *La tirannia dei valori*, Adelphi, Milano, 2008.

one with the others, but also all the other powers spreading in contemporary societies have to.

Finally, a good democracy should reject an illegitimate conversion of economical power into political power or, on the contrary, the conversion of political power into the economical one. It should fight the conversion of bureaucratic power into political power, or the illegitimate conversion of judicial power into political power as well as that of political power into the judicial one. And a good democracy should also fight the conversion of the power generated by media into political power and vice versa⁴⁷⁰. But here the chapter has probably yet to be written. It is of course a new challenge on the path of the law.

⁴⁷⁰ R. Boudon, *Il relativismo*, cit.

The Ombudsman: law, rights and accountability

Samuele Animalì

1. A clandestine Institution?

In Italy ombudsmen are an expression of local authorities (Regions, Municipalities, Provinces). As such, they are more than thirty years old⁴⁷¹. They are an answer to a widespread social need of not purely formal guarantee, as regards the right functioning of what is Public. They are administrative bodies not bureaucratically classified, although carrying out public functions with specific intervention and initiative powers. Their scheme is established by regional laws or by local statutes and rules. Generally, the discipline of the ombudsman imitates international documents as regards the main features: an autonomous, independent, impartial body, which co-operates with other bodies involved in extra-judicial defence of rights, assists citizens in conciliatory view, encourages administration's virtuous behaviour⁴⁷².

Instead, other independent administrative authorities are an expression of administrative power, which shows itself into compulsory. They generally are sectoral Authorities, such as Communication Authority, Privacy Commissioner, Antitrust, or Bank of Italy⁴⁷³. In fact, Italian Ombudsmen have

⁴⁷¹ The first regional ombudsman was established in Italy in 1974 (Tuscany).

⁴⁷² In particular, it contains important references to the resolution of the UN ombudsman and Resolution nn 48/93, 80/99 Council of Europe.

⁴⁷³ On independent authorities in Italy, see A. La Spina, G. Majone, *Lo Stato regolatore*, il Mulino, Bologna, 2000. Moreover someone is talking about failure of regulation and the decline of independent authorities (see,

administrative powers, such as the possibility of reviewing denials of access to documents. Their decisions, however, cannot directly reform or cancel administrative measures or force other authorities on executing them.

In other countries the Ombudsman appears to have greater importance in the legal system. This happens both in democracies with ancient traditions and in Eastern Europe, for example, where the constitution of a national Ombudsman for human rights was imposed by international institutions like UN and the European Council.

In detail, the Ombudsman appears in Italian legislation as a tool occasionally used to support specific administrative reforms (L. n. 241/90 on Administrative Proceedings, Consolidation of the ordinance of local governments), while a systematic discipline for this figure was never designed⁴⁷⁴. The establishment of a National Ombudsman, as an opportunity to bring this thirty-years-old experience into a formal system, was an idea never accepted by Italian Parliament up to now⁴⁷⁵. This lack of perceived urgency of an ad hoc discipline can perhaps be explained by the fact that the ombudsman's social function is more valued than his legal function.

But there is also uncertainty as regards the identification of its social function. It is disputed whether it is a mediation tool or an alternative dispute resolution one, whether it is a supervisory body, an instrument for participation or even a

for example, M. Clarich, *Autorità indipendenti. Bilancio e prospettive di un modello*, il Mulino, Bologna, 2005).

⁴⁷⁴ The history of the institution is outlined in almost all the work devoted to civic defense, which it seems appropriate to recall here without any claim to completeness. Mention just a few monographs in Italian, as S. Pignataro, *La difesa civica nell'ordinamento italiano*, Cedam, Padova, 2002; M. Mariani, A. Di Bernardo, A. L. Doria, *Il difensore civico. Esperienze comparate di tutela dei diritti*, Giappichelli, Torino, 2004; D. Mastropasqua, *Il difensore civico. Profili sistematici ed operativi*, Cacucci, Bari, 2003.

⁴⁷⁵ The most important is the Draft (*Proposta di legge*) n. 1382 signed Migliori-Gozi.

mode of public communication. It is certainly a kind of foreign body in relation to domestic legal culture, but it can be interesting to think about the border line between inside and outside.

Twenty years ago Italian ombudsmen were almost exclusively senior public officials, or retired judges. They were authoritative persons who provided their experiences and their social network to community, in order to solve problems of some unfortunate people, ill-treated by the government.

But since the '90s many formal controls on the activities of Italian public administration have been removed. At the same time, those reforms tried to increase the transparency and the efficiency degree of public administration. They tried to increase citizens' opportunity to know administrators' work as well as managers' liability of achieving useful results for citizens themselves. Responsibility replaces loyalty as agreement basis between the State with its employees and the State with its citizens.

Civil servant whose main duties are loyalty and respect of hierarchy, has no freedom. On the other side, accountability assumes that one can be asked for freedom use rather than for compliance with superiors' instructions. That leads to an organizational structure where managerial thinking lives together with formal processes, typical of more traditional forms of bureaucracy and professional self-government. In this context, situations of privilege and substantial irresponsibility can survive⁴⁷⁶.

Public management now has fairly broad powers and discretion in a context in which bad- or non-exercise of these powers is not sanctioned by the market nor by users' control, least of all by administrative bodies. Judicial control remains, but delegating to it improper functions of social and political control stresses inefficiency (increasing workload) and

⁴⁷⁶ J. Clarke, J. Newman, *The Managerial State. Power, Politics and Ideology in the Remaking of Welfare*, Sage, London, 1997.

generates charges of politicization (thereby de-legitimizing judicial function itself). This situation increased the importance of ombudsman's functions, in the shape of possible, last control. In detail, if transparency sets up as a value (whereas the former rule was administrative procedures' secrecy), those bodies focused on openness become pivotal to reforms' success and proper harmonization of interests.

Before and normally regardless of the intervention of the Judge, the quality of administrative intervention therefore assigns the satisfaction degree in legally protected situations. Mere verification of compliance is not enough to protect rights in this perspective. Tools of conflict resolution between different logics of appropriate action, first of all between the formal ones and those that aim directly to results, should be available too. They should be available even for conflicts evoked in the theory of governance. The issue of citizens' involvement is therefore highlighted, as participation in decision making or as a strategy of regulation and control (*à la* Foucault)⁴⁷⁷.

Participation foreseen by the constituents was accomplished through institutional patterns related to the culture of the age: exercise of voting rights, political parties, trade unions, other social groups. Nowadays democratic spaces occur in administrative system too (the so called Shared Administration)⁴⁷⁸. Ombudsman is usually mentioned in local Statutes among the items devoted to participation, because it represents a kind of filter that selects forms of admissible interference with respect to governance and government practices. In the work of the ombudsman we find therefore a form of organizational learning and an aspect of the research of shared scenarios about public policies. In

⁴⁷⁷ J. Newman, *Nuova governance, nuove razionalità organizzative? Servizi pubblici e riconfigurazione del potere*, in "Studi organizzativi", 1, 2006, pp. 97-109.

⁴⁷⁸ G. Arena, *Cittadini attivi*, Laterza, Roma-Bari, 2006.

particular this is ought to the empowerment of disadvantaged groups of citizens.

Bipolar paradigm, whereby public bodies are the only qualified ones to operate on public interest and citizens are only a target for public powers' intervention, is now overcome. Current framework assumes that the actions of the political system, of administrative system, of citizens who relate to politics and administration, all converge in public concern.

Efficiency, effectiveness, cheapness are administrative action parameters, not goals as for themselves. Subjective legal position is not necessarily opposed to public concern. This hint can also be found in the Italian Constitution. Art. 32, for example, configures health right as a civil right and as a public interest. The same concept is stated in Art. 3 where the removal of obstacles hindering the full development of human being is a public concern, "a task for Republic".

Dealing with gradual reduction of the gap between principles affirmed in fundamental rights and political and administrative practices naturally addresses the paradoxes which describe a predatory use of public goods, i.e. those goods that everyone can enjoy and that are consequently exposed to degradation and destruction due to selfish actors' habits⁴⁷⁹: environment, public economic resources, historical and artistic heritage, infrastructures, but also social relations, education, laws, collective security, market regulation.

Many people have a private interest to enjoy these public goods (if public services work, I can move faster and cheaper, I don't need to buy products such as bottled water or services such as private schools, etc.). However, they often prefer to defend private well-being, even if this means public goods' decay. In a famous article that dates back to 1968, Hardin

⁴⁷⁹ M. Olson, *The logic of collective action*, Harvard University Press, Cambridge (Mass.), 1965; C. Donolo, *L'intelligenza delle istituzioni*, Feltrinelli, Milano, 1997.

spoke of “tragedy of commons” referring to this predatory use of resources.

This is not the time to stop and talk about what are the conditions for cooperation chance, but we can say that you can get out of this vicious circle constantly rebuilding confidence. In the game of opposite interests a precondition to ensure liability in the hands of those who decide is to consider the citizen as a useful knowledge bearer for purposes of administration (for example, criteria already established by L. n. 241/90).

Formal control, i.e. the simple comparison between planned and achieved targets, doesn’t create any relationship with social needs that identify interests at stake. There is the need to activate processes that lead to meaning construction regarding administrative action. This need specially appears when this meaning construction is challenged by a single voice and by deficiencies in administration speech. Administrative and individual actions insert, qualify and recognize themselves into a stable, shared or at least identifiable value guidance.

2. From conflicts to rights

Italian Ombudsman therefore qualifies itself as an instrument to control and verify administrative actions and as a form of protection of civil rights as well⁴⁸⁰. This ambivalence cannot easily be set into institutional frames or into legal or quasi-legal categories. Ombudsman’s work has

⁴⁸⁰ F. P. Regoli, *Il difensore civico*, in “Rivista della Corte dei conti”, 1, 2005, gives an interesting list of ombudsman powers as resulting from regional statutes. The transformation of Ombudsman functions is already outlined in the Italian commentaries dated back in time, like 1995 or M. Comba, *s.v. Ombudsman*, in *Digesto delle discipline pubblicistiche*, Utet, Torino, 1995, pp. 296-306; AA.VV., *Atti del seminario “Il difensore civico: un istituto da rifondare”*, ISR, Roma, 1991.

been depicted as a kind of alternative dispute resolution (ADR), or referring it as to soft law⁴⁸¹.

“Soft law” stands for a group of regulation forms characterized by production of not straight binding rules. These rules do not give rise to a proper legal obligation, but to a “soft obligation”. Legally speaking, this is a not binding obligation, the breach of which does not imply a punishment. As for example, you can think to European Union guidelines, which influence the behavior of legal entities which are intended for, producing legal effects against them.

Similar observations apply also as regards ombudsman association for ADR.

In Italy, there was a talk about restoring justice with regard to D.L. n. 274/00 – criminal jurisdiction of Giudice di pace (small claims justice). The government devolved to honorary judges decisions on a series of minor crimes such as beatings, minor injuries, insults, threats, etc.. These are mostly criminal charges relating to micro-private conflicts. Traditional legal system does not consider these conflicts to be particularly serious. Nevertheless, they often create serious inconvenience for people living them, and this may lead to more serious injuries. The procedure gives a particularly important role to the person harmed by the injuries. There is provision of a step apart from trial, submitted to third parties. The main purpose here is to reach a conflict resolution that is satisfactory to the injured party.

Arbitrative and conciliative protection and small claims-specialized judges are particularly common in United States. This allows to reduce the burden on the courts and to adopt

⁴⁸¹ A socio-legal reading is L. Cominelli, *Il mediatore europeo, ombudsman dell'Unione*, Giuffrè, Milano, 2005. S. Sabetta, *Tra ombudsman e difensore civico. Nascita di una nuova funzione*, in “*Altalex, quotidiano di informazione giuridica*”, in www.altalex.com/index.php?idnot=3238, Dicembre, 2005, sees the ombudsman directly as a counterbalance to increasing litigiousness spreading from the reduction of the welfare state, with consequent widening of social problems and increasing polarization of wealth.

more appropriate judicial forms for protection of specific rights⁴⁸². These often are unofficial, non-coercive forms of justice, based on persuasion rather than force, they are not bureaucratic nor professional. It's a mediation that occurs in the shadow of law; disputants know that if mediation fails, you go to the courts⁴⁸³.

Ombudsman also provides a limited advice on civil matters and private relations, as a form of access to justice. This is a benefit not provided in regional and local Statutes. It's a common practice at the initiative of Ombudsmen and of wide tolerance of the administrative bodies, consistent with independence of such role.

Unlike sectoral Authorities (i.e. Privacy, Antitrust, etc.), Ombudsman has a "general competence". He thus represents an alternative and support to extra-legal self protection. He avoids the recourse to self-help and to the market: debt collection agencies, private health and police, social aid of environmental or consumers associations. There's special focus on consumers' rights: while public services privatization grows, relationships among formally private parties in fact refer to provision of public services, or to other monopolistic or quasi-monopolistic services.

He serves as an alternative or a dyke to infra legal protection (tips, obliging health services). He avoids the recourse to illegal markets for protection, to gratuities exceeding the allowed limit, to corruption, to bribery, to squatting, to proletarian dispossessions perhaps based on the

⁴⁸² M. Cappelletti, B. Garth, J. Weisner, K. F. Koch (eds.), *Access to Justice*, Giuffrè-Sijthoff and Noordhoff, Milano-Alphen aan den Rijn, 1978-1979; M. Cappelletti (ed.), *Access to justice and the Welfare State*, Le Monnier-Sijthoff-Bruylant- Klett-Cotta, Firenze-Alphen aan den Rijn-Bruxelles-Stuttgart, 1981; A. D. Sarat, *Access to Justice: Citizen Participation and the American Legal Order*, in L. Lipson, S. Wheeler (eds.), *Law and the social sciences*, Russell Sage Foundation, New York, 1986, pp. 519-580.

⁴⁸³ M. Galanter, *Justice in many rooms: courts, private ordering, and indigenous law*, in "Journal of Legal Pluralism", 19, 1981, pp. 1-47.

perception of a moral right. This protection is semi-formal and often informal, but institutional, it is not simply self-protection.

Against the public administration, Ombudsman represents an antidote to pitfalls and frustrations when the citizens haven't alternative interlocutors (exit) or the possibility to cut in effectively in the decision making. When citizen comes to strategies not profitably viable, he is doomed to regress to the condition of the customer that you must convince, seduce and satisfy⁴⁸⁴. The possibility of a not illegal self-protection rests on an assumption that is far from being realized: fair resource distribution, which should ensure effective freedom of choice.

Conciliation, arbitration and mediation intervene on already existing conflicts. Moreover, these are proceedings where you can not endorse the position of a single stakeholder. On the other hand, the formal equality of the parties – albeit sometimes only in theory – is the precondition for whatever trial or arbitration, while social position of parties facing the ombudsman is certainly unbalanced. On one side there is the individual, the consumer, the citizen. On the other side there is an administration, a company, public power. Every ombudsman's action is characterized by this fundamental imbalance: two companies, two governments or two citizens each other conflicting cannot engage Ombudsman. But Ombudsman has no jurisdiction, he does not take judgements which stand as directly executable by public authority. So ombudsman's role is more outstanding when it is more available or cheaper than other forms of pressure or sponsorship. This situation may depend on structural features of forms of rights' protection but also on administration attitude, on local circumstances or on the nature of individual legal situations that emerge.

⁴⁸⁴ F. Cassano, *Homo civicus. La ragionevole follia dei beni comuni*, Dedalo, Bari, 2004; A. O. Hirschman, *Exit, voice and loyalty: responses to decline in firms, organizations and states*, Harvard University Press, Cambridge (Mass.), 1970.

Judicial proceedings are often expensive and still reserved for a relatively limited and closed group of cases. Ombudsman becomes a final safeguard clause and the closure of an otherwise much weaker protection system.

Ombudsman cannot be compared with Arbiter because is not apart from parties to the case, like a Judge or an Arbiter. Ombudsman is an administrative entity which can react with *ex officio* initiative; he never works on conflicts. He sometimes encourages dialectic. The deflation of recourse to justice is an externality, the goal is to protect people forcing public administration to better run. There is no way, interest, will, to reach a judge. It is not an “alternative” right, but a positive right that requires “fine tuning”, rather than a judge ready to brandish Solomon’s sword.

There are rights granted by lawmakers, sometimes in constitutions too, but not compulsively protected, for which there is not an identifiable party from whom claim the benefit, a specifically obliged subject, so there is no justiciability. You can consider for example workers rights, but also health rights, especially in respect of the weakest⁴⁸⁵. There was talk of social rights, or distribution rights. These rights can be fulfilled by corresponding government or other authority’s obligations. Satisfaction of these rights has to cope with the process of efficient allocation of goods and services. The issue is to protect workers, consumers and customers, tenants, etc. against the power of employers, producers, landlords, changing the reward structure of capitalist economy. These rights are based on public interventions that include mandatory measures (such as prohibition of child exploitation, workplace safety, prohibition of pollution) benefits in kind (creation of nurseries, post-primary education schools, universities, health services) and money transfers⁴⁸⁶.

⁴⁸⁵ R. Dworkin, *Taking Rights Seriously*, Duckworth, London, 1977.

⁴⁸⁶ These are c.d. third-generation rights (N. Bobbio, *L’età dei diritti*, Einaudi, Torino, 1990). See also U. K. Preuss, *The Concept of Rights and the*

This is a contribution to endorsement of civil guarantees, starting from constitutionally recognized ones, but it also refers to those guarantees that gradually establish themselves in society.

Mechanisms through which collective problems are identified, alternative solutions discussed, taken decisions executed, are discussed as regards administration. Ombudsman move in a horizon in which public institutions' performance, political integration and proper functioning of economic system are the result of successful accumulation of social capital at local level⁴⁸⁷.

Widening range of rights intensifies the perception and the awareness that social actors have these rights. So one can expect that there is someone protects them, in order to avoid administration arbitrariness⁴⁸⁸.

More rights are met, but there is still a lot of dissatisfaction because of increased expectations. Proliferation

Welfare State, in G. Teubner (ed.), *Dilemmas of Law in the Welfare State*, De Gruyter, Berlin, 1986, pp. 151-172. For an analysis of the situations covered by the term "social rights", G. Corso, *I diritti sociali nella costituzione italiana*, in "Rivista trimestrale di diritto pubblico", 3, 1981. For Ombudsman on common interests, S. Cimini, *Il possibile ruolo del difensore civico nella tutela degli interessi diffusi*, in "Notiziario giuridico regionale", 1, 1997.

⁴⁸⁷ In this regard we could critically evaluate the role of ombudsman in a horizon in which to consider performance of public institutions, political integration and proper functioning of the economic system as the result of successful accumulation of capital, following authors such as R. D. Putnam, *Making Democracy Work. Civic traditions in modern Italy*, Princeton University Press, Princeton, 1993 and J. S. Coleman, *Foundations of Social Theory*, Belknap, Cambridge (Mass.), 1990 and literature also referred to, even critically.

⁴⁸⁸ L. M. Friedman, *The Republic of choice*, Harvard University Press, Cambridge (Mass.), 1990, with reference to the United States, speaks of "liability explosion". Explosion of rights is of course an explosion of litigation regarding the rights themselves M. Galanter, *Adjudication, Litigation, and Related Phenomena*, in L. Lipson, S. Wheeler (eds.), *Law and the Social Science*, cit., pp. 151-257.

of new social demands generates both subjective positions, which claim protection without being able to catch it (yet), and already recognized rights which enjoyment is not full because they are not adequately protected⁴⁸⁹.

The figure of mediation does not seem relevant because the main function of guarantee authority is to find acceptable compromises; it is important because it is “medium”. Even the etymology of the word ombudsman is a reference to one who acts as an intermediary. It is activated an institution which interrupted communication channels and understated meanings (the meaning of rules, of procedural acts ...). His job is apt to reactivate processes that lead to the construction of meaning as regards administrative action.

3. *Erubescimus sine lege loqui*

According to Corte Costituzionale (Rulings n. 112/2004 and n. 173/2004) Ombudsman is an administrative body in charge of citizens’ protection and of vigilance over administration work; it has persuasive rather than sanctionatory powers.

In such a way, Ombudsman sets up as a judiciary of influence⁴⁹⁰. Ombudsman’s vocation is not to refer to a power of control, but just to support someone.

There is also a literal work of auditing functional to what above said, that is listening, observation and acquisition of data, rather than inquisition and correction of behaviour and proceedings. He provides analysis, evaluations, recommendations and qualified comments but has no power to decide and to punish. In this sense, Ombudsman would be

⁴⁸⁹ A. La Spina, *Le strategie informali di autotutela del cittadino: significato, presupposti, linee di tendenza*, in “Quaderni di sociologia”, 4, 1993.

⁴⁹⁰ G. De Vergottini, *s.v. Ombudsman*, in *Enciclopedia del diritto*, vol. XXIX, Giuffrè, Milano, 1979.

nothing more than the “contemporary” country priest, who in days gone by resolved disputes among his parishioners with a pat on the back. An institution that can not exercise power, can not affect proceedings, is thus ordered to “legal non-existence” before than to ineffectiveness⁴⁹¹.

But, it may also be noted that the threat and the opportunity to work by convincing seem inconsistent if both are available to the same individual. That short-circuit between consistency with legal categories and effectiveness has not empirical evidence. Lastly, note that our country priest has little to do with the legal framework, while the ombudsman legally motivates his actions.

Jurists are taught that a right without action, a right without full legal protection, is not a right. This kind of statement currently rests on the assumption of separation of powers and legal positivism. Both of them seem rather to be in crisis (there is no space and not even need to explain in what sense). One can also observe that the crisis of (Italian) justice coincides with an expansion of judicial function exercise.

This is particularly evident with regard to crime, to criminal sanctions or criminal heavier penalties for injuries related to phenomena gradually depicted as social threats and emergency sources: sexual violence, immigration, drugs, but also matters of less ideological importance, like car accidents. In administration too there's the bias to think that the control instrument par excellence of the work of public officials should be judges and public prosecutors, properly supported by police and jailers, when necessary.

The hardness of proposed penalty intervention plays, above all, a symbolic value. An adjustment of investigation,

⁴⁹¹ I. Manzi, *Il difensore civico: storia e prospettive dell'ombudsman italiano*, in “Diritto e diritti rivista telematica”, www.diritto.it/sentenze/tarmarche/tar_marche_dottr01_03.html, Dicembre, 2005.

police, and judiciary instruments may not always correspond to tightening of penalties. As for the prison: it is in a state of overcrowding coming from these policies. Drug users and foreigners are the majority of inmates, paying for relatively short punishment or awaiting trial. Politics inconsistency contributes to credibility loss of public institutions, triggering a process of further attrition of their authority⁴⁹².

This creates a vicious circle in which the assumption of not typical duties ends with attack to jurisdiction and creates expectations intended to remain unfulfilled. It seems as if you move on jurisdiction expectations, which can still be subject to administrative attention and care. Singling out of rights and their reception at legislative level, thanks to politic mediation, are followed by an implementation that takes place through official acts. At this stage we have further examination of rights or interests, because legal precepts are quite open to a wide range of meanings.

The same function as social control is not limited to criminal policy, but characterizes other political processes and their regulations, such as social, urban and planning policy⁴⁹³. In an institutional perspective⁴⁹⁴ rules are guidance criteria for the actor, decisions criteria for the operator, interpretations criteria for the observer, and these are the three dimensions that influence each other.

Important attempts to redefine the role of the law in systemic view⁴⁹⁵ lie upon the reconciliation of material and formal, assuming self-correction based on data coming from

⁴⁹² A. Febbrajo, *Regolazione giuridica e autoregolazione sociale*, in "Sociologia del diritto", 2-3, 1986, pp. 145-159.

⁴⁹³ M. Raiteri, *Diritto, regolazione, controllo*, Giuffrè. Milano, 2004. About the issue of priority and independence of social regulation, A. Febbrajo, *Regolazione giuridica e autoregolazione sociale*, cit.

⁴⁹⁴ N. MacCormick, O. Weinberger, *An Institutional Theory of Law*, Reidel, Dordrecht, 1986.

⁴⁹⁵ E.g., G. Teubner, *Law as Autopoietic System*, Blackwell, Oxford-Cambridge (Mass.), 1993.

civil society. The existence of a set of rules does not guarantee effective prosecution of political instances which caused them. Their affection for certain events, decisions, behaviours, actions (of administration and of users) is sociologically describable as the sense node of such a kind of actions⁴⁹⁶. The rights are given and in fact denied starting from administrative dimension. In this dimension legal rule represents the pattern of decision-making structures and a form of action justification⁴⁹⁷, the key code and common interpretation of social action.

The law is not a set of regulatory actions by the Parliament with delegation to the Government of the function of implementing policies. It is rather an instrument that reproduces standardized behaviour patterns and provides legal and political control over processes of social self-regulation.

The function performed by Ombudsmen is therefore anything but outside the law. Especially when they come to fundamental rights (you can think of architectural barriers, or discrimination, for example) institutional forms of rationality, that are reflected in the rules, may be in contrast each other. The solution for these conflicts has a fully legal content even though found through mediation. Ombudsmen, in particular, select and elaborate again social demands in legal and administrative terms, defining their specific relevance in comparison with the issues of legal regulation. They deal also with continually re-definition of rights, specifically fundamental rights, taken as limit and guidance for public policy.

⁴⁹⁶ C. Pennisi, *Istituzioni e cultura giuridica*, Giappichelli, Torino, 1998.

⁴⁹⁷ M. C. Agodi, T. Consoli, C. Pennisi, M. Scuderi, *Il diritto delle burocrazie*, Giuffrè, Milano, 2001.